

Session and Chapter.	Short Title.	Extent of Repeal.
7 Edw. 7. c. 43	The Education (Administrative Provisions) Act, 1907.	Section four, without prejudice to the legality of anything retrospectively legalised thereby. In subsection (1) of section fourteen the words "or a ground of exemption for the purposes of section nine of the latter Act."
9 Edw. 7. c. 29	The Education (Administrative Provisions) Act, 1909.	Section three, without prejudice to the legality of anything retrospectively legalised thereby.
5 & 6 Geo. 5. c. 95.	The Education (Small Population Grants) Act, 1915.	The whole Act.
6 & 7 Geo. 5. c. 35.	The Elementary Education (Fee Grant) Act, 1916.	The whole Act.

CHAPTER 40.

An Act to Consolidate the Enactments relating to
Income Tax. [8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

CHARGE OF INCOME TAX.

Charge of
income tax.

1. Where any Act enacts that income tax shall be charged for any year at any rate, the tax at that rate shall be charged for that year in respect of all property, profits, or gains respectively described or comprised in the schedules marked A, B, C, D, and E, contained in the First Schedule to this Act and in accordance with the Rules respectively applicable to those Schedules.

Yearly
assessments.

2. Every assessment and charge to tax shall be made for a year commencing on the sixth day of April and ending on the following fifth day of April, except where under the provisions of this Act weekly wage-earners are to be assessed and charged quarterly.

Fractions of
twenty shillings.

3. The due proportion of tax shall be charged for every fractional part of twenty shillings, but no tax shall be charged of a lower denomination than one penny.

PART II.

SUPER-TAX.

4. In addition to the income tax charged at the rate prescribed for any year, there shall be charged, levied, and paid for that year in respect of the income of any individual, the total of which from all sources exceeds two thousand five hundred pounds, an additional duty of income tax (in this Act referred to as super-tax) at the rate or rates prescribed by Parliament for that year. Charge of super tax.

5.—(1) For the purposes of super-tax, the total income of any individual from all sources shall be taken to be the total income of that individual from all sources for the previous year, estimated in the same manner as the total income from all sources is estimated for the purposes of exemption or abatement under this Act, but subject to the provisions hereinafter contained. Method of estimating income for purposes of super-tax.

(2) Where an assessment to income tax has become final and conclusive for the purposes of income tax for any year, the assessment shall also be final and conclusive in estimating total income from all sources for the purposes of super-tax for the following year, and no allowance or adjustment of liability on the ground of diminution of income or loss shall be taken into account in estimating the total income from all sources, unless that allowance or adjustment has been previously made in respect of income tax on an application under the special provisions of this Act relating thereto.

(3) In estimating the income of the previous year for the purpose of super-tax—

- (a) there shall be deducted in respect of any land on which income tax is charged upon the annual value estimated otherwise than in relation to profits (in addition to any other deduction), any sum by which the assessment is reduced for the purposes of collection, or on which income tax has been repaid under the provisions of this Act in respect of the cost of maintenance, repairs, insurance, and management; and
- (b) there shall be deducted, in the case of an individual in the service of the Crown abroad, any such sum as the Treasury may allow for expenses which in their opinion are necessarily incidental to the discharge of the functions of his office, and for which an allowance has not already been made;
- (c) any income which is chargeable with income tax by way of deduction shall be deemed to be income of the year in which it is receivable, and any deductions allowable on account of any annual sums paid out of the property or profits of the individual, shall be allowed as deductions in respect of the year in which they are payable, notwithstanding that the income or the annual sums, as the case may be, accrued in whole or in part before that year.

Charge of
super-tax in
case of death.

6. In the case of the death of an individual liable to super-tax during any year for which super-tax is charged, a part only of the year's super-tax shall be payable, proportionate to the part of the year which has elapsed before the date of the death.

Assessment,
collection,
and recovery
of super-tax.

7.—(1) Super-tax shall be assessed and charged by the special commissioners.

(2) Every person upon whom notice is served, in manner prescribed by regulations under this section, by the special commissioners, requiring him to make a return of his total income from all sources, or, in the case of a notice served upon any person who is chargeable with or liable to be assessed to income tax, as representing an incapacitated, non-resident, or deceased person, of the total income from all sources of the incapacitated, non-resident, or deceased person, shall, whether he is or is not chargeable with super-tax, make such a return in the form and within the time required by the notice.

(3) It shall be the duty of every person chargeable with super-tax to give notice that he is chargeable to the special commissioners before the thirtieth day of September in the year for which super-tax is chargeable.

(4) If any person without reasonable excuse fails to make any return or to give any notice required by this section, he shall be liable to a penalty not exceeding fifty pounds, and after judgment has been given for that penalty to a further penalty of the like amount for every day during which the failure continues.

(5) If any person fails to make a return under this section, or if the special commissioners are not satisfied with any return made under this section, they may make an assessment of super-tax according to the best of their judgment.

(6) All provisions of this Act relating to persons who are to be chargeable with income tax, and to income tax assessments, and to appeals against those assessments, and to the collection and recovery of income tax, and to cases to be stated for the opinion of the High Court shall, so far as they are applicable, apply to the charge, assessment, collection, and recovery of super-tax under this section, and the special commissioners shall, for the purpose of assessment, have any powers of a surveyor, and for the purpose of the representation of the Crown on any appeal before the special commissioners, any person nominated in that behalf by the Commissioners of Inland Revenue shall have the same powers at, and upon the determination of, the appeal as a surveyor has at, and upon the determination of, any appeal relating to income tax.

(7) The special commissioners may amend any assessment made by them under this section, or make an assessment or an additional assessment, during any time within the year of assessment, or within three years after the expiration thereof.

(8) The Commissioners of Inland Revenue may make regulations for the purpose of carrying this section into effect.

Right of hus-
band or wife
to require

8.—(1) If an application is made for the purpose in such manner and form as may be prescribed by the Commissioners

of Inland Revenue, either by a husband or wife, within six months before the sixth day of May in any year of assessment— separate assessment.

(a) super-tax for that year shall be assessed, charged, and recovered on the income of the husband and on the income of the wife as if they were not married, and all the provisions of this Act with respect to the assessment, charge, and recovery of super-tax, and the penalties for failure to make a return shall apply as if they were not married; and

(b) the income of the husband and wife shall be treated as one in estimating total income for the purpose of super-tax, and the amount of super-tax payable in respect of the total income shall be divided between the husband and wife in proportion to their respective incomes, and the total amount payable shall not be less than it would have been if an application had not been made under this section.

(2) The Commissioners of Inland Revenue may require returns for the purposes of this section to be made at any time, and the provisions of this Act relating to penalties imposed in the case of income tax for neglect or refusal to deliver, or for delay in delivering, true and correct statements of profits or gains, shall, with the necessary modifications, apply in the case of the neglect or refusal to make, or wilful delay in making, any such return.

PART III.

EXEMPTION, ABATEMENT, AND RELIEF.

9. An individual who claims and proves, in the manner prescribed by this Act, that his total income from all sources for the year of assessment, estimated in accordance with the provisions of this Act, does not exceed the amounts in the six sections next following, shall be entitled to such relief as is mentioned in those sections. Relief from tax based on total income.

10. Where the income does not exceed one hundred and thirty pounds, the claimant shall be entitled to exemption from income tax. Exemption.

11. Where the income, although exceeding one hundred and thirty pounds, does not exceed seven hundred pounds, the claimant shall be entitled to relief, by way of abatement, as follows :— Abatement.

- (a) If the income does not exceed four hundred pounds, relief from tax upon one hundred and twenty pounds; or
- (b) If the income exceeds four hundred pounds, and does not exceed six hundred pounds, relief from tax upon one hundred pounds; or
- (c) If the income exceeds six hundred pounds and does not exceed seven hundred pounds, relief from tax upon seventy pounds.

Relief in
respect of
children.

12.—(1) Where the income, although exceeding one hundred and thirty pounds, does not exceed eight hundred pounds, and the claimant proves that he has a child or children living and under the age of sixteen years at the commencement of the year of assessment, he shall be entitled, in respect of every such child, to relief from tax upon twenty-five pounds.

The expressions “child” and “children” in this provision include a stepchild or stepchildren, but do not include an illegitimate child or illegitimate children: Provided that where the parents of any illegitimate child or children shall, after the birth of such child or children, have married each other, such illegitimate child or children shall be included in the expressions “child” and “children.”

(2) Where the income is limited as aforesaid, and the claimant proves that for the year of assessment he has the custody of and maintains at his own expense a child or children under the age of sixteen years at the commencement of that year, and that neither he nor any other individual is entitled to relief from tax in respect of the same child or children under subsection (1) of this section or, if any other individual is entitled to such relief, that that other individual has relinquished his claim thereto, he shall be entitled in respect of every such child to relief from tax upon twenty-five pounds.

(3) Where the income although exceeding eight hundred pounds does not exceed one thousand pounds, and the claimant proves that he would, if his income did not exceed eight hundred pounds, be entitled under this section to relief in respect of three or more children, he shall be entitled in respect of each of those children above the number of two to relief from tax upon twenty-five pounds.

Relief in
in respect of
wife and cer-
tain relatives.

13.—(1) Where the income although exceeding one hundred and thirty pounds does not exceed eight hundred pounds, and the claimant proves that for the year of assessment he has a wife living with him, or in the case of a claimant being a widower that a person being a female relative of his or of his deceased wife is resident with him for the purpose of having the charge and care of any child of his, or that he maintains at his own expense any person being a relative of his or of his wife, who is incapacitated by old age or infirmity from maintaining himself and whose income from all sources does not exceed twenty-five pounds a year, he shall be entitled in respect of his wife or any such female relative and in respect of each person whom he so maintains, to relief from tax upon twenty-five pounds.

(2) In this section the expression “relative” includes any person of whom the individual in question had the custody and whom he maintained at his own expense while that person was under the age of sixteen years, and the expression “child” means a child in respect of whom relief is given under the preceding section of this Act.

Relief in
respect of

14.—(1) Where the income does not exceed two thousand five hundred pounds, and any part of that income is earned

income, the claimant shall be entitled, subject to the provisions of this section, to such relief from tax as will reduce the amount payable on the earned income to the amount which would be payable if tax were charged on that income at the rate or rates in that behalf provided by Parliament in respect of the year of assessment.

(2) The relief given under this section shall be in addition to and not in derogation of any exemption, abatement, or other relief under this Act, except that where an individual is entitled to abatement on account of his income not exceeding seven hundred pounds, or to relief in respect of premiums or payments for life insurance or deferred annuities, or in respect of children, or of a wife or other female relative or of dependent relatives, relief shall be given under this section only in respect of such earned income (if any) as remains after deducting therefrom the amount of income on which he is so relieved of tax, and where exemption, abatement, or relief as aforesaid is allowed by way of repayment of tax after relief has been given under this section, the amount repaid shall be adjusted, so that the total amount of the relief given under this section and by way of exemption, abatement, or relief as aforesaid, shall not exceed the amount which would have been given if the whole relief had been claimed simultaneously.

(3) For the purposes of this section the expression "earned income" means—

- (a) any income arising in respect of any remuneration from any office or employment of profit held by the individual, or in respect of any pension, superannuation, or other allowance, deferred pay, or compensation for loss of office, given in respect of the past services of the individual or of the husband or parent of the individual in any office or employment of profit, or given to the individual in respect of the past services of any deceased person, whether the individual or husband or parent of the individual shall have contributed to such pension, superannuation allowance, or deferred pay, or not; and
- (b) any income from any property which is attached to or forms part of the emoluments of any office or employment of profit held by the individual; and
- (c) any income which is charged under Schedule B or Schedule D, or the rules applicable to Schedule D, and is immediately derived by the individual from the carrying on or exercise by him of his trade, profession, or vocation, either as an individual, or, in the case of a partnership, as a partner personally acting therein.

(4) In cases where the profits of a wife are deemed to be profits of the husband, any reference in this section to the individual includes either the husband or the wife.

15.—(1) Where the income does not exceed two thousand pounds, the claimant shall be entitled to the repayment of such a part of the tax paid by him as will reduce the amount of

earned
income.

Relief in
respect of
unearned
income.

tax on his unearned income to the amount which would have been paid if the tax were charged on that income at the reduced rate or rates in that behalf provided by Parliament in respect of the year of assessment.

(2) The relief given under this section shall be in addition to and not in derogation of any exemption, abatement or other relief under this Act, except that where any such exemption, abatement or relief is to be determined by reference to the amount of the tax on any sum, the amount of the tax shall be calculated at the reduced rate.

Method of allowance of relief.

16. Except as otherwise provided, any exemption, abatement or relief under the preceding provisions of this Part of this Act shall be given either by discharge or reduction of the assessment, or by repayment of the excess which has been paid, or by all or any of those means, as the case may require.

No relief to be given in respect of charges on income.

17. A claimant shall not be entitled to exemption, abatement or relief in respect of any income the tax on which he is entitled to charge against any other person, or to deduct, retain, or satisfy out of any payment which he is liable to make to any other person.

Income tax assessment conclusive in estimating total income for purposes of relief.

18. Where an assessment has become final and conclusive for the purposes of tax for any year of assessment, that assessment shall also be final and conclusive in estimating total income from all sources for the purposes of any exemption, abatement or relief under this Act, and no allowance or adjustment of liability, on the ground of diminution of income or loss, shall be taken into account in estimating such total income from all sources for such purposes unless that allowance or adjustment has been previously made on an application under the special provisions of this Act relating thereto.

Basis of estimating income from lands, &c.

19. For the purpose of a claim under the preceding provisions of this Part of this Act, the income arising from the ownership of lands, tenements, hereditaments, or heritages shall, subject to any allowance, reduction, or relief granted under this Act, be deemed to be the annual value thereof estimated in accordance with the rules applicable to Schedule A and the income arising from the occupation of lands, tenements, hereditaments and heritages shall, subject to any allowance, reduction or relief granted under this Act, be deemed the assessable value thereof estimated in accordance with the rules applicable to Schedule B, and where a claimant is both owner and occupier, the amount of the annual value under Schedule A, added to the amount of the assessable value under Schedule B, shall be deemed to be the income arising from those lands, tenements, hereditaments or heritages.

Partners, &c. may make separate claims for relief.

20. The following persons having joint interests, that is to say,—

(a) coparceners, joint tenants, or tenants in common of the profits of any property; and

- (b) joint tenants, or tenants of land or tenements in partnership, being in the actual and joint occupation thereof in partnership, who are entitled to the profits thereof in shares; and
- (c) partners carrying on a trade, profession or vocation together who are entitled to the profits thereof in shares,

may claim exemption, abatement or relief under the preceding provisions of this Part of this Act according to their respective shares and interests, and any such claims which are proved to the satisfaction of the commissioners to whom they are made, may be dealt with in the same manner as in the case of several interests :

Provided as follows :—

- (i) Profits arising from the occupation of lands shall not be separately charged if the lands are let or underlet without the lessor relinquishing the possession thereof or if the lessee is not exclusively in the possession and occupation of the lands :
- (ii) The income of a partner from a partnership carrying on any trade, profession, or vocation shall be deemed to be the share to which he is entitled during the year to which the claim relates, in the partnership profits, such profits being estimated according to the several rules and directions of this Act.

21.—(1) Where the total joint income of a husband and wife does not exceed five hundred pounds, and upon a claim for exemption, abatement, or relief, the general commissioners are satisfied that such total income includes profits of the wife from any business carried on or exercised by means of her own personal labour, and that the rest of the total income, or any part thereof, arises or accrues from profits of the husband unconnected with the business of the wife, they shall deal with the claim as if it were a claim in respect of the said profits of the wife, and a separate claim on the part of the husband in respect of the rest of the total income, but they shall deal with any income of the husband arising or accruing from the business of his wife, or from any source connected therewith, as if it were part of the income of the wife.

Relief in respect of separate business of a married woman.

(2) In this section “business” means any trade, profession, employment, or vocation, or any office or employment of profit, and the expression “profits” includes any profits, gains, or remuneration arising or accruing from the business and chargeable under Schedule D or Schedule E.

22.—(1) In the case of weekly wage-earners to whom the provisions of this Act as to quarterly assessment apply, the assessment and charge of tax in each quarter shall not affect the grant of any exemption, abatement or relief which is dependent wholly or partially on total annual income; and any such exemption, abatement or relief shall be given in cases where the

Application of provisions as to relief in cases of weekly wage-earners.

tax is assessed and charged quarterly under this Act, as if the total wages on which the tax is charged and the total tax charged for the four quarters of the year were respectively the total income for the year from the wages and the total tax charged for the year in respect of the wages.

(2) The Commissioners of Inland Revenue may, however, if they think fit in any case, in accordance with regulations made by them, allow any such exemption, abatement or relief by way of reduction of the quarterly assessment or repayment of the quarterly tax.

Relief to be based on income as reduced in respect of loss of profits.

23. Where relief has been granted for any year of assessment under any provisions of this Act providing for the reduction of an assessment on any source of income in cases where the profits of the year of assessment fall short, or in cases of deprivation of or loss of profits or gains from some specific cause, the amount of the assessment as reduced shall be deemed to be the income from that source in ascertaining the total income from all sources for that year for the purpose of any claim for exemption, abatement or relief.

Restriction of tax when margin of income above a certain limit is small.

24.—(1) Where, owing to the fact that the total income of any person exceeds a certain limit—

- (a) he is liable to pay income tax or super-tax at a higher rate; or
- (b) he ceases to be entitled to any exemption or abatement; or
- (c) he becomes entitled to a reduced exemption or abatement,

the amount of income tax or super-tax payable by that person shall, where necessary, be reduced so as not to exceed the sum of the following amounts, that is to say—

the amount which would have been payable if his income had reached, but had not exceeded, that limit; and
the amount by which his total income exceeds that limit.

(2) Where income tax is charged at different rates on different parts of the total income, the deduction from total income required in calculating the maximum tax payable under this section for the purpose of bringing the total income down to the limit shall be made from that part of the total income which is taxed at the lowest rate.

Relief from tax in respect of income accumulated under trusts.

25. Where in pursuance of the provisions of any will or settlement any income arising from any fund is accumulated for the benefit of any person contingently on his attaining some specified age or marrying, and the aggregate amount in any year of assessment of that income and the income from any other fund subject to the like trusts for accumulation and of the total income of that person from all sources (hereinafter referred to as “the aggregate yearly income”) is of such an amount only as would entitle an individual either to total exemption from tax or to relief from tax, that person shall, on

making a claim for the purpose within three years after the end of the year of assessment in which the contingency happens, be entitled, on proof of the claim in manner prescribed by this Act, to have repaid to him on account of the tax which has been paid in respect of the income during the period of accumulation a sum equal to the aggregate amount of relief to which he would have been entitled if his total income from all sources for each of the several years of the said period had been equal to the aggregate yearly income for that year; but in calculating that sum a deduction shall be made in respect of any relief already received.

26. No exemption, abatement, or relief under this Act which depends wholly or partially on the total income of an individual from all sources shall be given to any person unless the person is resident in the United Kingdom :

No relief where individual not resident in the United Kingdom.

Provided that any person who is or has been employed in the service of the Crown, or who is employed in the service of any missionary society abroad, or in the service of any of the native states under the protectorate of the British Crown, and any person resident in the Isle of Man or Channel Islands, and any person resident abroad who satisfies the Commissioners of Inland Revenue that he is so resident for the sake of health, and any widow who is in receipt of a pension chargeable with tax and granted to her in consideration of the employment of her late husband in the service of the Crown, shall be entitled to any exemption, abatement or relief to which he or she would be entitled if resident in the United Kingdom, and if his or her total income from all sources were calculated as including any income in respect of which tax may not be chargeable, as well as income in respect of which tax is chargeable.

27.—(1) Any person who claims exemption, abatement or relief under the preceding provisions of this Part of this Act, shall, within the time limited by this Act for the delivery of lists, declarations, and statements, or within such further time as the general commissioners for the division may for any special reason allow, deliver to the assessor of the parish in which he resides, a notice of his claim, together with a declaration and statement in the prescribed form, signed by him, setting forth—

Delivery and allowance of claims for relief.

- (a) all the particular sources from which his income arises, and the particular amount arising from each source;
- (b) all particulars of any yearly interest or other annual payments, reserved or charged thereon, whereby his income is or may be diminished; and
- (c) all particulars of sums which he has charged or may be entitled to charge on account of tax against any other person, or which he has deducted, or may be entitled to deduct, out of any payment to which he is or may be liable.

(2) Any surveyor may examine every such declaration and statement and take copies of or extracts from the same.

(3) The assessor shall transmit to the commissioners the notice of claim and the declaration and statement.

If the surveyor does not within forty days after the transmission or within such further time as the commissioners on just cause may allow, make an objection to the claim, the commissioners may allow the claim.

(4) If it appears that any property or profits of the claimant are charged, or are liable to be charged, in some other division, the commissioners shall certify the allowance, in the prescribed form, to the Commissioners of Inland Revenue, who shall direct the appropriate relief to be given in that other division.

(5) If the surveyor objects in writing to such claim stating that he has reason to believe that the income of the claimant, or any other particulars in the declaration or statement of the claimant, are not truly or fully set forth in any specified particular, the claim shall be heard and determined by way of appeal by the general commissioners, in like manner as other appeals under this Act and with the like liability to penalties, and if the claim is allowed the commissioners shall grant and issue all necessary certificates accordingly.

Method of
making and
proving
claims.

28.—(1) All claims under the preceding provisions of this Part of this Act shall be made and proved before the general commissioners for the division in which the claimant resides, pursuant to the powers and provisions under which tax under Schedule D is ascertained and charged, and whether he be personally charged in that division or not.

(2) If the whole income of the claimant arises from an office or employment of profit, or from a pension or stipend under the jurisdiction of the commissioners of a department or office, the claim may be made to and allowed by those commissioners.

(3) If a claimant is not within the United Kingdom, an affidavit stating the particulars required by this Act, and taken before any person who has authority to administer, in the place where the claimant resides, an oath with regard to any matter relating to the public revenue of the United Kingdom, may be received by the respective commissioners.

(4) If satisfactory proof is given to the commissioners that a claimant is unable to attend in person, a claim on his behalf may be made by any guardian, trustee, attorney, agent or factor acting for him.

(5) Where a person is assessable on behalf of any other person, he may make a claim as aforesaid on behalf of that other person.

General com-
missioners to
certify claim
to special
commis-
sioners.

29.—(1) If it is proved to the satisfaction of the general commissioners that any person whose claim for exemption, abatement, or relief has been allowed, has paid any tax, by deduction or otherwise, the general commissioners may, in the form prescribed, certify the facts proved before them to the special commissioners.

(2) The certificate of the general commissioners shall state the particulars of the different sources of income in respect of

which tax has been paid, the relief to which the claimant is entitled, the amount repayable in respect thereof, and the name and place of abode of the claimant.

(3) On receipt of the certificate, the special commissioners shall issue an order for repayment.

30.—(1) A person who in making a claim for or obtaining any exemption, abatement, or relief hereinbefore described, or in obtaining any certificate as aforesaid—

Penalty for fraudulent claims.

(a) is guilty of any fraud or contrivance; or

(b) fraudulently conceals or untruly declares any income or any sum which he has charged against or deducted from, or was entitled to charge against or to deduct from another person; or

(c) fraudulently makes a second claim for the same cause, shall forfeit the sum of twenty pounds and treble the tax chargeable in respect of all the sources of his income and as if such claim had not been allowed.

(2) A person who knowingly and wilfully aids or abets any person in committing an offence under this section shall forfeit the sum of fifty pounds.

31.—(1) Where, on an application made for the purpose, under the provisions of this Act, tax for any year is assessable and chargeable on the incomes of a husband and wife respectively as if they were not married :—

Right of husband and wife to claim relief separately.

(a) All the provisions of this Act relating to claims for exemption, abatement, or relief, and the proof to be given with respect thereto, shall apply as if they were not married, and a claim for the relief hereinbefore granted in the case where the wife carries on a separate business, may be made by the wife as well as by the husband; and

(b) The income of the husband and wife shall be treated as one in estimating the amount to be repaid or allowed in respect of any exemption, abatement or relief which depends wholly or partially on total income (except so far as otherwise required for the purpose of dealing with any claim for exemption, abatement, or relief made in the case where the wife carries on a separate business as aforesaid), and the total amount of any exemption, abatement, or relief given in respect of the incomes of husband and wife, shall not exceed that which would have been given if any such application as aforesaid had not been made; and

(c) The benefit of any such exemption, abatement, or relief may be given either by way of reduction of assessment, or by repayment of any excess of tax which has been paid, or by both of those means, as the case requires, and shall, in the case of relief given in respect of earned income (including any exemption,

abatement, or relief given in respect of the profits of a wife from a business carried on separately from her husband as aforesaid), be given in proportion to the income earned respectively by the husband and the wife, and in the case of relief given in respect of payments for life insurance or deferred annuities, be given to the husband or wife, as the case may be, by whom any such payment is made, and, in any other case, be given in proportion to the respective incomes of the husband and wife; and

- (d) For the purpose of any exemption, abatement, or relief, a return may be made by the husband or the wife of the total income of the husband and wife, but if the Commissioners of Inland Revenue are not satisfied with such return, they may obtain a return from the wife or husband, as the case may be.

(2) The Commissioners of Inland Revenue may require returns for the purposes of this section to be made at any time, and the provisions of this Act relating to penalties for neglect or refusal to deliver, or for delay in delivering, true and correct statements of profits or gains, shall, with the necessary modifications, apply in the case of the neglect or refusal to make or wilful delay in making any such return.

Relief in respect of Insurance, Losses, and Certain Payments.

Relief in
respect of
life insurance
premiums, &c.

32.—(1) Any person—

- (a) who has made an insurance on his life or the life of his wife, or who has contracted for any deferred annuity on his own life or the life of his wife, with any insurance company legally established in the United Kingdom or in any British Possession, or lawfully carrying on business in the United Kingdom, or with a registered friendly society, or, in the case of a deferred annuity, with the National Debt Commissioners; and
- (b) who is under any Act of Parliament liable to the payment of an annual sum, or to the deduction of an annual sum from his salary or stipend, in order to secure a deferred annuity to his widow, or a provision to his children after his death;

shall be entitled to a deduction of the amount of the annual premium paid by him for any such insurance or contract, or of the annual sum paid by him or deducted from his salary or stipend, from any profits or gains in respect of which he is liable to be charged under Schedules D or E.

(2) If any such person is charged to tax under any Schedule and has paid that tax, or has paid or has been charged with tax by deduction or otherwise, he shall, on a claim being made to the special commissioners, and on production to them of the receipt for his annual payment, and proof of the facts to their

satisfaction, be entitled to repayment of tax on the amount thereof.

(3) No such allowance—

- (a) shall be made in respect of any such amounts beyond one-sixth of the total chargeable income of the person from all sources estimated in accordance with this Act;
- (b) shall entitle any person to claim any exemption, abatement or relief on the ground that his total income is thereby reduced below any prescribed amount;
- (c) shall exceed, in respect of any premium or other payment payable on a policy for securing a capital sum on death (whether in conjunction with any other benefit or not), seven per cent. of the actual capital sum assured, and, in calculating any such capital sum, no account shall be taken of any sum payable on the happening of any other contingency, or of the value of any premiums agreed to be returned, or of any benefit by way of bonus, or otherwise, which is to be or may be received either before or after death, either by the person paying the premium, or by any other person, and which is not the sum actually assured;
- (d) shall exceed one hundred pounds in all in respect of any premiums or payments to which this section applies and which are payable for securing any other benefits than as last aforesaid;
- (e) shall, as regards insurances or contracts for deferred annuities made after the twenty-second day of June, nineteen hundred and sixteen,
 - (i) be given at a greater rate of tax than three shillings in the pound;
 - (ii) be given except in respect of premiums or other payments payable on policies for securing a capital sum on death, whether in conjunction with any other benefit or not; or
 - (iii) be given in respect of premiums or payments payable during the period of deferment in respect of a policy of deferred assurance:

Provided that the two last-mentioned restrictions shall not affect premiums or payments payable on policies or contracts made in connection with any superannuation or bonâ fide pension scheme for the benefit of the employees of any employer or of persons engaged in any particular trade, profession, vocation or business, or on any policy taken out by a teacher in a secondary school pending the establishment of a superannuation or pension scheme for those teachers.

(4) This section shall apply to all war insurance premiums, whether payable annually or not.

(5) War insurance premiums shall not be taken into account in calculating the aforesaid limits of one-sixth of the total income from all sources, or of seven per cent., or of one hundred pounds.

(6) In this section the expression "war insurance premiums" means any additional premium or other sum paid in order to extend an existing life insurance policy to risks arising from war or war service abroad, and any part of any premium or other sum paid in respect of a life insurance policy covering those risks, or either of them, which appears to the commissioners to whom the claim for relief is made to be attributable to those risks, or either of them.

(7) Where premiums in respect of any insurance effected with a registered friendly society are made payable for shorter periods than three months, a person who claims relief under this section must, in order to obtain relief, produce to the surveyor a certificate, signed by an officer of the society, specifying the correct amount of premiums paid during the year of assessment.

A person who wilfully gives or produces a false certificate shall forfeit the sum of fifty pounds.

Relief to life assurance companies and others in respect of expenses of management.

33.—(1) Where an assurance company carrying on life assurance business, or any company whose business consists mainly in the making of investments, and the principal part of whose income is derived therefrom, or any savings bank or other bank for savings, claims and proves to the satisfaction of the special commissioners that, for any year of assessment, it has been charged to tax by deduction or otherwise, and has not been charged in respect of its profits in accordance with the rules applicable to Case I. of Schedule D, the company or bank shall be entitled to repayment of so much of the tax paid by it as is equal to the amount of the tax on any sums disbursed as expenses of management (including commissions) for that year:

Provided that—

- (a) relief shall not be given under this section so as to make the tax paid by the company or bank less than the tax which would have been paid if the profits had been charged in accordance with the said rules; and
- (b) the amount of any fines, fees, or profits arising from reversions in the case of an assurance company, and, in the case of any other company or any such bank, the amount of any income or profits derived from sources not charged to tax, shall be deducted from the amount treated as expenses of management for the year; and
- (c) in calculating profits arising from reversions, the company may set off against those profits any loss arising from reversions for any previous year during which any enactment granting this relief was in operation.

(2) Notice of any claim to the special commissioners under this section, together with the particulars thereof, shall be given, in writing to the surveyor within twelve months after the expiration of the year of assessment in respect of which the claim is made, and where the surveyor objects to such claim the special commissioners shall hear and determine the same in like manner as in the case of an appeal to them against an assessment under Schedule D, and the provisions of this Act relating to the statement of a case for the opinion of the High Court on a point of law shall apply.

(3) A company or bank shall not be entitled to any relief under this section in respect of any expenses as to which relief may be claimed or allowed under rules 7 and 8 of No. V. of Schedule A.

(4) Where an assurance company, not having its head office in the United Kingdom, is charged under Case III. of Schedule D, on a proportion of the income from the investments of its life assurance fund, or on a basis substituted therefor, the relief in respect of expenses of management shall be calculated by reference to a like proportion of its total expenses of management for the year, estimated according to the provisions of this Act.

(5) Where income arising from the investments of the foreign life assurance fund of an assurance company has been relieved from tax in pursuance of the provisions of this Act, a corresponding reduction shall be made in the relief granted under this section in respect of the expenses of management.

34.—(1) Where any person sustains a loss in any trade, profession, employment or vocation, carried on by him either solely or in partnership, or in the occupation of lands for the purpose of husbandry only, or in the occupation of woodlands in respect of which he has elected to be charged to tax under Schedule D, he may upon giving notice in writing to the surveyor within six months after the year of assessment, apply to the general commissioners or to the special commissioners, for an adjustment of his liability by reference to the loss and to the aggregate amount of his income for that year estimated according to this Act.

Relief in respect of certain losses.

(2) The commissioners shall, on proof to their satisfaction of the amount of the loss, and of the payment of tax upon the aggregate amount of income, give a certificate authorising repayment of so much of the sum paid for tax as would represent the tax upon income equal to the amount of loss, and the certificate may extend to give any exemption, abatement, or relief depending upon total income from all sources, authorised by this Act.

Upon the receipt of the certificate the Commissioners of Inland Revenue shall cause repayment to be made in conformity therewith.

(3) If any person shall be guilty of any fraud or contrivance in making any application under this section, or in obtaining any such adjustment or certificate as aforesaid, he shall forfeit the sum of fifty pounds.

(4) Where repayment has been made to a person for any year under this section, he shall not be entitled, in computing the amount of the assessment for any subsequent year, to a deduction of any portion of the amount in respect of which such repayment has been obtained.

Relief in respect of "customs" levied in burghs in Scotland.

35. Where in any burgh in Scotland tolls commonly known by the name of customs are levied under the authority of any Act of Parliament or charter, and are applied and expended in the burgh in defraying the expenses of paving, lighting, or cleansing the same, or of the police thereof, or in discharging any other similar public burdens, any tax which has been charged and paid in respect of any such tolls shall, as regards so much of the tolls as shall have been expended as aforesaid, be repaid on due proof of the necessary facts to the satisfaction of the special commissioners.

Repayment in respect of interest paid to banks, discount houses, &c. out of taxed profits.

36.—(1) Where interest payable in the United Kingdom on an advance from a bank carrying on a bonâ fide banking business in the United Kingdom is paid to the bank without deduction of tax out of profits or gains brought into charge to tax, the person by whom the interest is paid shall be entitled, on proof of the facts to the satisfaction of the special commissioners, to repayment of tax on the amount of the interest.

(2) A like repayment shall on the like proof be made in the case of interest (not being yearly interest) payable in the United Kingdom on an advance from a person who in the opinion of the Commissioners of Inland Revenue is bonâ fide carrying on business as a member of a stock exchange in the United Kingdom, or from any person who in the opinion of the said Commissioners is bonâ fide carrying on the business of a discount house in the United Kingdom :

Provided that no repayment shall be made unless the Commissioners of Inland Revenue are satisfied that the interest has been or will be brought into account in the statement delivered or to be delivered for the purposes of income tax by the person making the advance.

Relief to Charities, Friendly Societies, &c.

Exemption in respect of rents of lands belonging to hospitals and other charities.

37.—(1) Exemption shall be granted—

(a) from tax under Schedule A in respect of the rents and profits of any lands, tenements, hereditaments, or heritages belonging to any hospital, public school or almshouse, or vested in trustees for charitable purposes, so far as the same are applied to charitable purposes only :

Provided that any assessment upon the respective properties shall not be vacated or altered, but shall be in force and levied, notwithstanding the allowance of any such exemption ;

- (b) from tax under Schedule C in respect of any interest, annuities, dividends or shares of annuities, and from tax under Schedule D, in respect of any yearly interest or other annual payment forming part of the income of any body of persons or trust established for charitable purpose only, or which, according to the rules or regulations established by Act of Parliament, charter, decree, deed of trust, or will, are applicable to charitable purposes only, and so far as the same are applied to charitable purposes only ;
- (c) from tax under Schedule C in respect of any interest, annuities, dividends or shares of annuities, in the names of trustees applicable solely towards the repairs of any cathedral, college, church or chapel, or any building used solely for the purpose of divine worship, and so far as the same are applied to those purposes.

38. The Trustees of the British Museum shall be granted exemption from tax under Schedule A in respect of the lands and tenements vested in them, and shall also be granted the like exemptions in respect of any dividends of stock vested in them, or in any other person for their use, as are granted to charitable institutions under this Act.

**Exemption
for British
Museum.**

39.—(1) An unregistered friendly society whose income does not exceed one hundred and sixty pounds shall be entitled to exemption from tax, and a registered friendly society which is precluded, by Act of Parliament or by its rules, from assuring to any person a sum exceeding three hundred pounds by way of gross sum, or fifty-two pounds a year by way of annuity, shall be entitled to exemption from tax under Schedules A, C, and D.

**Exemption
for friendly
societies,
trade unions,
savings banks,
&c.**

(2) A registered trade union which is precluded, by Act of Parliament or by its rules, from assuring to any person a sum exceeding three hundred pounds by way of gross sum, or fifty-two pounds a year by way of annuity, shall be entitled to exemption from tax under Schedules A, C, and D in respect of its interest and dividends which are applicable and applied solely for the purpose of provident benefits.

The expression “ provident benefits ” includes any payment, expressly authorised by the registered rules of the trade union, which is made to a member during sickness or incapacity from personal injury or while out of work, or to an aged member by way of superannuation, or to a member who has met with an accident, or has lost his tools by fire or theft, and includes a payment in discharge or aid of funeral expenses on the death

of a member, or the wife of a member, or as provision for the children of a deceased member.

26 & 27 Vict.
c. 87.

(3) (a) Any savings bank certified under the Savings Bank Act, 1863, shall be entitled to exemption from tax in respect of its interest and dividends arising from investments with the National Debt Commissioners.

(b) Any savings bank, whether certified under the Savings Bank Act, 1863, or not, shall be entitled to exemption from tax under Schedules C and D in respect of the income of its funds, so far as such income is applied in the payment or credit of interest to any depositor :

Provided as follows :—

(i) in the case of a depositor whose income from all sources exceeds one hundred and thirty pounds a year, any interest or dividends paid or credited to him without deduction of tax shall be charged under Case III. of Schedule D ; and

(ii) where the interest paid or credited to any depositor in the year for which exemption is claimed by the bank exceeds the sum of five pounds, the bank and any branch thereof shall make a return to the surveyor for the district in which the bank or branch is situate of the name and place of residence of every depositor to whom any such sum has been paid or credited, and of the amount thereof, and unless such returns are duly made, the bank shall not be entitled to any relief in respect of any such sums. Any such return shall be made on or before the first day of May in the year following that in respect of which exemption is claimed.

56 & 57 Vict.
c. 39.

(4) A society registered under the Industrial and Provident Societies Act, 1893, shall be entitled to exemption from tax under Schedules C and D, unless it sells to persons not members thereof, and the number of its shares is limited by its rules or practice, but no member of or person employed by the society shall be exempt from charge to the tax to which he would otherwise be liable.

1 & 2 Geo. 5.
c. 55

(5) An approved society within the meaning of Part I. of the National Insurance Act, 1911, and any branch of such a society, shall be entitled to exemption in respect of the income derived from any funds or credits of the society under that Part of that Act, or any investment thereof, and the Insurance Commissioners, the Scottish Insurance Commissioners, the Irish Insurance Commissioners, and the Welsh Insurance Commissioners, shall be entitled to a similar exemption in respect of any income derived from any funds held by them, or under their control or management, under or for the purposes of that Act.

Any such exemption shall be in addition to and not in derogation of any other exemption.

(6) An insurance committee established under Part I. of the National Insurance Act, 1911, shall in respect of income derived from any funds or credits of the committee under the National Insurance (Health) Acts, 1911 to 1918, or any investment thereof, and the trustees of the special fund constituted by subsection (6) of Section forty-eight of the National Insurance Act, 1911, as amended by the National Health Insurance Act, 1918, shall in respect of income derived from that fund, be entitled to exemption from tax, and the National Health Insurance Joint Committee shall be entitled to a similar exemption in respect of any income derived from any funds held by that committee or under the control or management of that committee under or for the purpose of the National Insurance (Health) Acts, 1911 to 1918. 7 & 8 Geo. 5.
c. 62.

Any such exemption shall be in addition to and not in derogation of any other exemption.

40.—(1) Any claim under the last three preceding sections shall be made to the special commissioners in writing, in such form as may be prescribed by the Commissioners of Inland Revenue, and the special commissioners on proof of the facts to their satisfaction shall allow such claim accordingly : Provisions as
to claiming
repayments.

Provided that any claim under section thirty-eight or any claim under subsection (1) of section thirty-nine of this Act as to tax under Schedule A may be made to the general commissioners.

(2) The special commissioners shall require every such claim to be verified by affidavit, and proof of the claim may be given by the treasurer, trustee, or any duly authorised agent, on affidavit made before a general or additional commissioner for the division in which such person resides.

(3) Where the special commissioners allow a claim they shall issue an order for repayment.

(4) A person who makes a false or fraudulent claim for exemption under the said sections in respect of any interest, annuities, dividends or shares of annuities charged or chargeable under Schedule C shall forfeit the sum of one hundred pounds, and if such claim is made by any person in his own behalf he shall in addition be liable to be charged in treble the tax so chargeable.

41. Save as hereinbefore provided in the case of income accumulated until the happening of a contingency, no claim for repayment of tax under this Act shall be allowed unless it is made within three years next after the end of the year of assessment to which it relates. Limit of time
for claims for
repayment.

PART IV.

SPECIAL PROVISIONS.

42.—(1) Where any person who, during any year of assessment as respects which this section is continued in force by any Act, has served or is serving as a member of any of the naval or Reduced rates
of tax and
other relief
applicable to

the service
pay of sailors,
soldiers, and
others.

military forces of the Crown, or of the Air force, or in service of a naval or military character in connection with the present war for which payment is made out of money provided by Parliament, or in any work abroad of the British Red Cross Society, or the Saint John Ambulance Association, or any other body with similar objects or has served or serves for not less than three months as master or member of the crew of any ship or fishing boat, proves that he is assessed or charged to tax, or has paid tax either by way of deduction or otherwise on his pay in connection with any such service, he shall be entitled to claim such relief from income tax as will reduce the amount of income tax on that pay to the amount which would have been payable if the tax were charged on that pay at the rate of—

- 9d. if his total income from all sources does not exceed three hundred pounds;
- 1s. 3d. if his total income exceeds three hundred pounds and does not exceed five hundred pounds;
- 1s. 9d. if his total income exceeds five hundred pounds and does not exceed one thousand pounds;
- 2s. 3d. if his total income exceeds one thousand pounds and does not exceed one thousand five hundred pounds;
- 2s. 9d. if his total income exceeds one thousand five hundred pounds and does not exceed two thousand pounds;
- 3s. 3d. if his total income exceeds two thousand pounds and does not exceed two thousand five hundred pounds;
- 3s. 6d. if his total income exceeds two thousand five hundred pounds.

(2) The relief given under this section shall be in addition to and not in derogation of any exemption, abatement or other relief under this Act :

Provided that—

- (a) relief in respect of earned income shall be given in respect of the pay by reference to the rates under this section, and not by reference to the rates applicable to earned income in other cases; and
- (b) where the total income of the claimant does not exceed one hundred and sixty pounds, he shall be entitled to exemption, and where the total income, although exceeding one hundred and sixty pounds does not exceed three hundred pounds, he shall be entitled to relief from tax by way of abatement upon one hundred and sixty pounds, instead of upon one hundred and twenty pounds; and
- (c) any deductions on account of abatement or on account of relief in respect of premiums or payments for life insurance or deferred annuities, or in respect of children, or of a wife or other female relative or of dependent relatives which, under the provisions hereinbefore contained, are required to be made in computing the amount of earned income in respect of which relief may be given under this Act, shall

not be made from the pay unless and except in so far as the amount of those deductions exceeds the aggregate amount of the earned income other than the pay and of the unearned income.

(3) All the provisions of this Act relating to claims for exemption, abatement or relief, or the proof to be given with respect to those claims, shall apply to claims for relief under this section and the proof to be given with respect to those claims.

43.—(1) Where it is proved to the satisfaction of the commissioners by whom the assessment was made that a person assessed under Schedule D has suffered a diminution of profits or gains due to circumstances attributable directly or indirectly to the present war, whether or not those circumstances are a specific cause within the meaning of the provision relating to relief in respect of deprivation or loss of profits or gains chargeable under that Schedule, the following provisions shall apply, and the diminution of profits or gains shall not entitle the person to relief under that provision :—

Relief in respect of diminution of profits or gains due to the war.

(a) If within or at the end of any year of assessment as respects which this section is continued in force by any Act, the profits or gains during that year of the person assessed are found and shown by him to have fallen short of the sum on which the assessment was made for that year, the assessment shall be amended as the case may require, and, if the tax charged has been paid, any tax overpaid shall be repaid in like manner as other repayments under this Act :

(b) Provided that no reduction or repayment shall be made unless the profits of the year of assessment are proved to be less than the profits for one year on the average of the last three years, including the year of assessment, nor shall any relief granted extend to any greater amount than the difference between the sum on which the assessment was made and such average profits for one year.

(2) Where the person assessed is a person who, in connection with the aforesaid war, is or has been serving during any year of assessment as respects which this section is continued in force by any Act as a member of any of the naval or military forces of the Crown, or of the Air Force, or in any work abroad of the British Red Cross Society, or the Saint John Ambulance Association, or any other body with similar objects, the provisions of paragraph (b) of the last preceding subsection shall not apply.

(3) The provisions of this Act relating to the statement of a case on a point of law shall apply to cases in which relief is claimed under this section.

44. If any individual, who has been assessed or charged to tax for any year of assessment as respects which this section is

Relief where income of year falls short of

assessed in-
come by more
than ten per
cent.

continued in force by any Act, claims and proves, in manner provided by this Act, that his actual income from all sources for that year is less by more than ten per cent. than the income on which he has been so assessed and charged, he shall be entitled to repayment of such part of any tax paid by him, either by way of deduction or otherwise, as is equal to the difference between the amount of the tax so paid and the amount which would have been so paid if he had been assessed or charged on his actual income for the said year.

Limit to
relief in
respect of
insurance
premiums to
be calculated
by reference
to pre-war
income.

45.—(1) In any year of assessment to which this section applies, the total income of a person from all sources by reference to which a limit to the relief granted in respect of the premiums on insurance policies is calculated, shall be taken to be and to have been the total income from all sources estimated in accordance with this Act for the year ending the fifth day of April nineteen hundred and fourteen, where such total income is or was greater than the income by reference to which the said limit would be calculated but for this section.

(2) This section shall apply to any year of assessment which includes any time during which the present war continues.

Securities
issued free
from tax.

46.—(1) Where the Treasury have before the commencement of this Act issued or may thereafter issue any securities which they have power to issue for the purpose of raising any money or any loan, with a condition that the interest thereon shall not be liable to tax or super-tax, so long as it is shown, in manner directed by the Treasury, that the securities are in the beneficial ownership of persons who are not ordinarily resident in the United Kingdom, the interest of securities issued with such a condition shall be exempt accordingly.

(2) Where securities so issued for the time being form part of the investments of the foreign life assurance fund of an assurance company, the income arising from those securities, if applied for the purposes of that fund or re-invested so as to form part of that fund, shall not be liable to tax.

(3) Where the special commissioners are satisfied that any income arising abroad from the investments of the foreign life assurance fund of an assurance company has been remitted to the United Kingdom and invested, as part of the investments of that fund, in any such securities issued as aforesaid, that income shall not be liable to tax, and any tax paid thereon shall, if necessary, be repaid to the company.

(4) Where any securities have before the commencement of this Act been issued or are hereafter issued in the United States of America by a municipal corporation, county council, or other local authority in the United Kingdom for the purpose of raising any money which they are authorised to borrow, the securities, if issued under the authority of the Treasury, shall not be liable to tax or super-tax, except where they are held by persons domiciled in the United Kingdom or by British subjects ordinarily resident in the United Kingdom.

The expression "local authority" in this subsection includes the Metropolitan Water Board and any other public body which is recognised as a local authority for the purposes of this subsection by the Local Government Board.

47.—(1) The accumulated interest payable in respect of any war savings certificate issued by the Treasury through the Post Office, under which the purchaser, by virtue of an immediate payment of fifteen shillings and sixpence, becomes entitled after five years to receive the sum of one pound, shall not be liable to tax so long as the amount of the certificates held by the person who is for the time being the holder of the certificate, does not exceed the amount which an individual is for the time being authorised to hold under regulations made by the Treasury.

Relief in respect of war savings certificates.

(2) Where the currency of any war savings certificate has been extended under section forty-one of the Finance Act, 1918, the foregoing provisions of this section shall apply with respect to any interest payable in respect of the certificate for the period after the expiration of five years from the date on which it was issued up to the date on which it is repaid or redeemed as it applies to the said accumulated interest.

8 & 9 Geo. 5. c. 15.

48.—(1) Where any securities have been issued in connection with any Government loan raised for the purposes of the present war and such securities were issued subject to the condition that the interest thereon should be exempt from assessment to tax, but should not be exempt from super-tax, the interest on the securities shall be exempt from assessment to tax, but shall not be exempt from super-tax.

Provisions as to interest free from tax.

(2) The interest on any such securities shall, for the purposes of super-tax and for the purposes of any relief from tax which depends on the total income from all sources, be treated as part of the total income from all sources as if the amount actually received represented net income after deduction of tax at the highest current rate; but nothing in this provision shall be construed as entitling any person to the repayment of any sum on account of tax on the ground that he is to be treated as having paid tax at such rate as aforesaid on the interest so exempt.

49.—(1) The interest on any stock inscribed in the Post Office Stock Register under the provisions of the War Loan (Supplemental Provisions) Act, 1915, where the stock does not exceed the nominal amount of two hundred pounds shall be paid without deduction of tax, but any such interest shall be chargeable under Case III. of Schedule D.

Payment of interest without deduction of tax.

5 & 6 Geo. 5. c. 93.

(2) The Treasury may direct that any Exchequer bonds, issued under their authority during the continuance of the present war and a period of six months thereafter, and any securities issued under the War Loan Acts, 1914 to 1917, or any Act amending those Acts shall be issued, or shall be deemed to have been issued, subject to the condition that the interest on the bonds and securities shall be paid without deduction of

tax, and the interest shall be so paid accordingly, but any such interest shall be chargeable under Case III. of Schedule D.

(3) Where interest on any securities issued in connection with any Government loan raised for the purposes of the present war is paid without deduction of tax, any person by whom such interest is paid, and any person who receives on behalf of any other person being a registered or inscribed holder of any such security any interest so paid without deduction of tax, and any person who has acted as intermediary in the purchase of any securities on which the interest is payable without deduction of tax, shall, on being so required by the Commissioners of Inland Revenue, furnish to them—

(i) the names and addresses of the persons to whom such interest has been paid or on whose behalf such interest has been received or on whose behalf such securities have been purchased;

(ii) the amount of the interest so paid or received, or the amount of the securities so purchased.

Provision for
postponement
of payment of
super-tax
when income
has dimi-
nished.

50.—(1) Where it is proved to the satisfaction of the special commissioners that the actual income from all sources of any individual charged to super-tax for any year of assessment as respects which this section is continued in force by any Act is, or will be, less than two-thirds of the income on which he is liable to be so charged, he shall be entitled to postpone the payment of so much of the super-tax payable by him as represents the difference between the super-tax payable on the income on which he is liable to be charged, and the super-tax which would have been payable by him if he had been charged on his actual income; and any amount of which the payment is so postponed shall, subject to any provisions which may be made by Parliament, become payable on the first day of January next after the end of the said year of assessment.

(2) Any payment of super-tax which, under any Act, has been postponed until the first day of January in any year of assessment as respects which this section is continued in force by any Act, may be further postponed until the first day of January next after the end of that year if the individual from whom the payment is due proves, to the satisfaction of the special commissioners, that his actual income from all sources for that year of assessment is, or will be, less than two-thirds of the income on which he was liable to be charged to super-tax for the year of assessment in respect of which the payment of super-tax was so postponed.

Relief from
super-tax to
persons serv-
ing in the war.

51. Where it is proved to the satisfaction of the special commissioners—

(a) that any individual, in connection with the present war, is or has been, during any year of assessment, serving as a member of any of the military or naval forces of the Crown or of the Air force, or in any work abroad of the British Red Cross Society, or the Saint

John Ambulance Association, or any other body with similar objects; and

- (b) that the total income of that individual from all sources for that year is or was less than his total income from all sources for the previous year;

the total income of that individual from all sources for the purposes of super-tax for that year shall be taken to be his total income from all sources for that year, estimated in the same manner as, under this Act, his total income for the previous year is required to be estimated for the purposes of super-tax, and where the tax has been paid repayment shall be made accordingly.

52. For the purpose of any relief given to persons serving as members of the naval or military forces of the Crown or of the Air force, a person shall not be deemed to have served as a member of the naval or military forces of the Crown or of the Air force unless he has served—

Definition of naval, military, and Air force service.

- (a) on the active list of the navy; or
 (b) in the army or the Air force, as the case may be, either with the colours or as an airman in air-force service, or as an officer on full pay, or at a rate of pay which appears to the income tax commissioners concerned, after consultation with the Army Council or the Air Council, as the case may be, to be equivalent to full pay, and either out of the British Islands or for at least one month continuously in the British Islands.

53.—(1) Where, in calculating for the purposes of Part II. of the Munitions of War Act, 1915, the profits of a controlled establishment, a deduction has been allowed under that Part of that Act, or rules made thereunder, in respect of exceptional depreciation or obsolescence of buildings, plant or machinery, and the sums so deducted have not been deducted or allowed in computing the amount upon which tax has been paid in respect of those profits, there shall be allowed a repayment of tax equal to the amount of the tax at the rate at which that tax has been paid, on the amount of the sums so deducted :

Repayment of tax on sums deducted from profits under Munitions of War Act, 1915.
 5 & 6 Geo. 5 c. 54.

Provided that the repayment of tax under this section—

- (a) shall be made in respect of the year of assessment which includes the end of the period of assessment in respect of which the said deductions have been allowed under the Munitions of War Act, 1915; and
 (b) shall be deemed to have effected a reduction of the income tax assessment by the amount upon which tax has been so repaid.

(2) Where a deduction on account of any of the matters specified in subsection (1) of this section has been allowed for the purposes of excess profits duty in calculating the profits of a controlled establishment for any period during which it is subject to control, this section shall, subject to the necessary modifications, apply as it applies where a deduction has been

allowed in calculating the profits of a controlled establishment for the purposes of Part II. of the Munitions of War Act, 1915 :

Provided that a repayment of tax shall not be allowed under this subsection and also under subsection (1) of this section in respect of the same deduction.

(3) The provisions of this Act relating to the allowance of a deduction during succeeding years for wear and tear of machinery or plant where full effect cannot be given to any such deduction in any year shall apply, with the necessary modifications, with respect to any repayment of tax under this section.

(4) Any application for relief under this section shall be made to the commissioners by whom the income tax assessment has been made, and those commissioners, upon proof of the facts to their satisfaction, shall certify to the Commissioners of Inland Revenue the sum repayable, and the Commissioners of Inland Revenue shall cause repayment to be made accordingly.

Additional
income tax
on securities
which the
Treasury are
willing to
purchase.

54.—(1) Where, in addition to any other tax or super-tax charged for any year, an additional duty of income tax is charged in respect of any part of the income of any person to which this section applies, that additional duty shall be charged, levied and paid in accordance with the provisions of this section.

The income to which this section applies is the income derived from securities which are for the time being included in the Treasury special list as defined by this section, while those securities are so included ; and the income shall, for the purposes of this section, be deemed to be derived at the time when the interest or dividends payable in respect of the securities become payable.

(2) A person shall be entitled to relief from such additional duty of income tax—

- (a) in respect of income derived between the date of the publication of the Treasury special list and a date twenty-eight days thereafter, if the securities are during that period offered to the Treasury and ultimately become at the absolute disposal of the Treasury ; and
- (b) in respect of income derived from any securities included in the Treasury special list after the securities have been placed at the absolute disposal of the Treasury ; and
- (c) in respect of income derived from any such securities after a person has placed the securities conditionally at the disposal of the Treasury, if the securities ultimately become at the absolute disposal of the Treasury without unreasonable delay on the part of that person ; and
- (d) in respect of income derived from any such securities, whether they ultimately become at the absolute disposal of the Treasury or not, if it is shown to the

satisfaction of the Treasury that any delay in placing, or failure to place, those securities at the disposal of the Treasury has arisen from circumstances beyond the control of the holders of the securities; and

- (e) in respect of income derived from any such securities held, in any country outside the United Kingdom, by persons who are not domiciled in the United Kingdom, or by trustees who are prevented by the laws of such other country or by the terms of their trust, from placing the securities at the disposal of the Treasury, and are not entitled to the benefit of any indemnity conferred by Act of Parliament in respect of the contravention of those terms, if the securities were so held before the twenty-ninth day of May nineteen hundred and sixteen, or where such securities are under the jurisdiction of a court in such other country and it would be contrary to the laws of such other country to place such securities at the disposal of the Treasury; and
- (f) in respect of income derived from any such securities which are deposited with persons outside the United Kingdom as a security for a loan from those persons, or have otherwise been made security for a loan from persons outside the United Kingdom, if they were so deposited or made security before the twenty-ninth day of May nineteen hundred and sixteen, or after that date with the approval of the Treasury, and if the Treasury are satisfied that the securities cannot be released without impairing the security for the loan; and
- (g) in respect of income derived from any such securities which are proved to the special commissioners to be held by any company or persons concerned in trade or business in any country outside the United Kingdom as a condition (imposed in that country) of carrying on that trade or business.

The provisions of this subsection shall apply to an offer of securities for deposit in the same manner as they apply to an offer of securities for sale, and securities when accepted for deposit shall, while so deposited, for the purposes of this subsection, be deemed to be at the absolute disposal of the Treasury.

(3) The power under this Act to require a person to deliver statements for the purposes of tax shall include power to require him to make such returns as appear to the Commissioners of Inland Revenue to be necessary for the purpose of ascertaining whether any of the income of that person (whether or not tax thereon is chargeable by deduction), is income to which this section applies, including such particulars as to that income as the Commissioners may require, and this Act, including the provisions imposing penalties, shall apply accordingly.

(4) Where any income to which this section applies is derived from securities which are held on trust by more than one trustee, the securities may be placed at the disposal of the Treasury if, where there are two trustees, one trustee and the persons entitled to the income of the securities, and, where there are more than two trustees, one-half or more of the number of the trustees and the persons entitled to the income of the securities, are willing that the securities should be so placed at the disposal of the Treasury; and any action taken by such trustees or beneficiaries for the purpose of placing any such securities at the disposal of the Treasury shall, notwithstanding anything in the terms of the trust or any rule of law to the contrary, be as valid and effectual in all respects as though all the trustees had consented thereto and had joined therein.

(5) A person shall not be entitled to any exemption, abatement or relief under this Act (other than relief depending solely on residence or domicile) in respect of the additional duty charged in accordance with the provisions contained in this section, but in all other respects the provisions of this Act relating to persons who are to be chargeable with tax, and to assessments, and appeals against those assessments, and to the collection and recovery of tax, and to cases to be stated for the opinion of the High Court, shall, so far as they are applicable, apply to the assessment, charge, collection and recovery of the duty under this section:

Provided that the Treasury may give directions that the additional duty shall, instead of being charged by deduction, be charged up to the same amount by direct assessment for the period, and in the cases mentioned in those directions, and where any such directions are given, this Act shall have effect accordingly.

(6) In this section—

The expression “securities” includes stocks, shares, and other securities; and

The expression “the Treasury special list” means any list published by the Treasury in the “Gazette,” and for the time being in force, of securities which the Treasury are willing to purchase in connection with any arrangements for the regulation and maintenance of the foreign exchanges.

Relief in
respect of
colonial
income tax.

55.—(1) If any person who has paid, by deduction or otherwise, United Kingdom income tax for any year of assessment as respects which this section is continued in force by any Act, on any part of his income, at a rate exceeding three shillings and sixpence, proves to the satisfaction of the special commissioners that he has also paid any colonial income tax in respect of the same part of his income, he shall be entitled to repayment of a part of the United Kingdom income tax paid by him, equal to the difference between the amount so paid and the amount he would have paid if the tax had been charged

at the rate of three shillings and sixpence, or, if that difference exceeds the amount of tax on that part of his income at the rate of the colonial income tax, equal to that amount.

(2) In this section the expression "United Kingdom income tax" means income tax chargeable in accordance with the provisions of this Act; and the expression "colonial income tax" means income tax charged under any law in force in any British possession, or any tax so charged which appears to the special commissioners to correspond to United Kingdom income tax.

56. The provisions of this Act relating to the deduction to be allowed in respect of diminished value by reason of wear and tear shall have effect as if the references therein to diminished value by reason of wear and tear during the year of any machinery or plant included references to diminished value by reason of any machinery or plant having been temporarily out of use at any time during the year through circumstances attributable, directly or indirectly, to the present war.

Deduction for diminished value due to temporary non-user of plant.

PART V.

ADMINISTRATION.

Commissioners of Inland Revenue.

57.—(1) All duties of income tax shall be under the care and management of the Commissioners of Inland Revenue.

General powers and duties of Commissioners of Inland Revenue.

(2) The said Commissioners may do all such acts as may be deemed necessary and expedient for raising, collecting, receiving, and accounting for the tax in the like and as full and ample a manner as they are authorised to do with relation to any other duties under their care and management, and, unless the Treasury otherwise direct, shall appoint such officers and other persons for collecting, receiving, managing, and accounting for any duties of income tax as are not required to be appointed by some other authority.

(3) All such appointments shall continue in force, notwithstanding the death, or ceasing to hold office, of any Commissioner of Inland Revenue, and the holders shall have power to execute the duties of their respective offices, and to enforce, in the execution thereof, all laws and regulations relating to the tax in every part of the United Kingdom.

(4) The Commissioners may suspend, reduce, discharge, or restore, as they see cause, any such officer or person.

General Commissioners.

58. All matters relating to the income tax under Schedules A, B and D, so far as they are not directed by this Act to be executed, and under Schedule E so far as they are not executed, by any other commissioners, shall be executed, as heretofore, by the commissioners for the general purposes of the income tax (in this Act referred to as general commissioners), who shall,

General commissioners.

subject to the provisions of this Act, continue to act for the same separate areas as heretofore (in this Act referred to as divisions).

Appointment
of general
commis-
sioners.

59.—(1) The persons who are general commissioners in each division at the time of the commencement of this Act shall continue in office as if they had been appointed thereunder.

(2) Vacancies amongst the said general commissioners shall be supplied by persons whose names are included in any list made for that purpose in force at the commencement of this Act or in any list to supply vacancies made under this Act.

(3) The number of general commissioners appointed, and authorised to act, for any division, and the number of persons to supply vacancies, respectively, shall not exceed seven or be less than three, but the Commissioners of Inland Revenue may, if they think fit, authorise an increase to any number not exceeding fourteen in each such case respectively :

Provided as follows :—

(i) The general commissioners may, if they think it necessary for the purpose of expediting the hearing of appeals in cases where, under the provisions of this Act, weekly wage-earners are charged in respect of their wages in each quarter of the year, add to the number of general commissioners, by the co-optation or appointment of such persons for the purpose, as they may think fit :

(ii) For the divisions formed by the cities and towns named in the Second Schedule to this Act, or in which those cities or towns are situate, further general commissioners, and persons to supply vacancies, to the numbers therein mentioned, shall be chosen, in the manner therein set forth, to act with the persons to be otherwise appointed, and the names of all such commissioners and persons shall be returned to the Commissioners of Inland Revenue.

(4) In Scotland, the sheriff depute and the sheriff substitute of any county or division shall be, *ex officio* and without other qualification, general commissioners for the county or division.

(5) When any general commissioner dies, or declines to act, or having acted declines to act further, the remaining commissioners shall select to take his place a person on the list to supply vacancies who was chosen in the same manner as the person whose place he takes.

(6) If at any time the number of general commissioners qualified and willing to act for any division is reduced below the authorised number and cannot be duly completed from the persons on the lists to supply vacancies, or if the number of persons on any such list is reduced below the authorised number, new appointments of general commissioners may be made, or new names of persons added to the list to supply vacancies in accordance with the following provisions :—

(a) The Commissioners of Inland Revenue shall, when they deem it necessary, convene from time to time, by

- notice in the Gazette, a meeting of the Land Tax Commissioners having jurisdiction with regard to land tax within the said division, who shall meet at such time and place as shall be appointed by any such notice :
- (b) The said Land Tax Commissioners shall, at every such meeting, by a majority, choose and set down in writing the names of such of the Land Tax Commissioners as are qualified, as hereinafter provided, and are fit and proper persons to act as general commissioners for the said division. The names of the persons so chosen shall be set down in the order determined by the majority :
 - (c) The persons so set down, and in the order in which they shall be set down, in the list shall, subject to the limit as to number hereinbefore prescribed, be general commissioners or be added to the list to supply vacancies, as the case may require :
 - (d) If at any such meeting as aforesaid there shall not be found among the persons appointed to be Land Tax Commissioners a sufficient number of names of qualified persons to act as commissioners and to supply vacancies so as to complete the due number for each list, the commissioners present may appoint any persons residing within the division, possessing the prescribed qualification, until the requisite number in each such list shall be completed, although such persons may not have been appointed Land Tax Commissioners; and if the requisite number of persons cannot be found among residents in the division, the commissioners present may select such number from the Land Tax Commissioners for any adjoining or neighbouring land tax division :
 - (e) In Scotland general commissioners may be appointed by the commissioners of supply, at the meeting held annually in pursuance of subsection (2) of section twelve of the Local Government (Scotland) Act, 1889, as well as at any meeting convened for the purpose in conformity with the provisions of this section : 52 & 53 Vict.
c. 50.
 - (f) In any division formed by or comprising any of the cities or towns named in the Second Schedule to this Act, the persons named in that Schedule shall, on notice from the clerk to the acting commissioners for that division, as often as occasion may require, select and add new names to the list of persons chosen by them to supply vacancies among the general commissioners appointed by them.
 - (7) If a sufficient number of duly qualified persons to be chosen, either to act as general commissioners or to supply vacancies, cannot be found for any city division, any person

qualified to act for the county division in or adjoining which the city division is situate may be chosen for the city division.

(8) If any list for supplying vacancies, to be made and renewed in accordance with the provisions of this Act, is defective, so that the due number of commissioners cannot be supplied therefrom, it may be completed from time to time by the acting general commissioners for the division where such failure has happened.

(9) The names of persons so chosen as aforesaid shall be transmitted to the Commissioners of Inland Revenue in the order in which they have been set down in the lists, and where the requisite number of duly qualified persons has been chosen to act as general commissioners in any division, no other person shall, save as herein provided, interfere as a commissioner so long as they continue to act.

Procedure to be adopted in case of default of general commissioners.

60.—(1) If in any division there shall be neglect in appointing general commissioners, or if the commissioners appointed shall neglect or refuse to act, or, having acted, decline to act further, the Land Tax Commissioners, or any of them not exceeding seven in number, possessing the prescribed qualification, shall, on notice thereof given to their clerk by any surveyor authorised by the Commissioners of Inland Revenue to give such notice, forthwith take upon themselves the execution of this Act, and execute all matters which general commissioners are required and authorised to perform.

(2) If the number of Land Tax Commissioners in any division, possessing the prescribed qualification, be insufficient for the purpose, the commissioners of any adjoining division within the same county, possessing the prescribed qualification, shall, on like notice as aforesaid, execute this Act as general commissioners by themselves or in concurrence with any persons willing to act as commissioners for the division.

(3) If the persons to whom any such notice has been given shall not take upon themselves the execution of this Act within ten days next after such notice, or shall not proceed therein with due diligence, the special commissioners may execute this Act in such division in all matters directed to be done by general commissioners.

(4) Where names of commissioners willing to act in a division are not returned to the Commissioners of Inland Revenue, the Commissioners of Inland Revenue may cause such notices as aforesaid to be given to two or more of the persons on whom the right of executing this Act shall devolve, as hereinbefore mentioned.

Additional Commissioners.

Additional commissioners.

61.—(1) Whenever the general commissioners, acting in and for any division, deem it expedient that certain of the powers under this Act shall be executed by commissioners other than and in addition to the persons appointed as hereinbefore prescribed, they may, at any meeting held for the purpose, set down

in writing lists of the names of persons residing in the division who may appear to the majority to be fit and proper persons to act as additional commissioners.

(2) Such lists shall contain the names of so many of those persons as the said commissioners shall, in their discretion, after taking into consideration the size of the division and the number of persons to be assessed therein, think requisite for the purpose.

(3) Any such list signed by the said general commissioners shall be sufficient authority for such additional commissioners, being respectively qualified under this Act, to take upon themselves the execution of their powers and duties under this Act :

Provided as follows :—

(a) Persons appointed to supply vacancies in any division may be chosen and may act as additional commissioners until their services are required as general commissioners :

(b) Where no additional commissioners are appointed in any division the general commissioners for that division shall execute this Act in all matters authorised to be done by additional commissioners.

62.—(1) Whenever the general commissioners shall have named additional commissioners as aforesaid, they shall cause notice thereof in writing, signed by any two or more of them, to be served on the additional commissioners by the assessors of the respective parishes, naming the day (not being later than ten days after the date of the notice), and the place appointed by the general commissioners, for the first meeting of the additional commissioners so named, and requiring their attendance accordingly.

Procedure of
additional
commis-
sioners.

(2) At or before such meeting the additional commissioners shall respectively make the prescribed declaration, and the general commissioners shall appoint a day for the additional commissioners to bring in their certificates of assessment in the manner directed by this Act.

(3) The general commissioners may divide the additional commissioners into committees and allot to each committee distinct parishes, wards, or places, in which each such committee shall act separately in the execution of this Act, provided that meetings of committees shall be so arranged that the clerk may be enabled to attend every meeting.

(4) Not more than seven persons shall act together as additional commissioners for any division, or on any committee, and if more than seven persons be present at any meeting, then the seven persons first in order on the list signed by the general commissioners shall act, and the rest shall withdraw.

(5) Not less than two additional commissioners shall be competent to form any meeting, and any act, authorised by this Act, shall be valid, if done by the authority of the majority of the additional commissioners present.

Power to
appoint a
greater num-
ber of general
commis-
sioners in
lieu of addi-
tional com-
missioners.

63.—(1) Where the general commissioners for any division consider it expedient that a greater number than seven general commissioners should be appointed, instead of appointing additional commissioners they may appoint for that division a greater number of general commissioners, not exceeding seven, qualified as required by this Act, observing, in the case of any such appointment, the same rules as in the appointment of general commissioners by the Land Tax Commissioners :

Provided that in any such case—

- (a) no addition shall be made to the number of persons to supply vacancies; and
- (b) the general commissioners, at their first meeting after any such appointment, shall choose by lot not less than two or more than seven of their number to execute the office of additional commissioners, and the persons so chosen shall be additional commissioners for executing this Act, and the remaining commissioners shall execute the powers of general commissioners.

(2) Where additional commissioners have not been appointed, and where a greater number of general commissioners instead of additional commissioners has not been appointed specially to execute the powers of additional commissioners, the general commissioners shall divide themselves in such manner that not less than two of their number shall be appointed to exercise the powers of additional commissioners; and if there shall not remain two persons at least qualified to act as general commissioners in the division, the general commissioners in any adjoining division of the same county, or such number of them as shall be requisite, shall act as general commissioners.

General and Additional Commissioners.

Power of
newly ap-
pointed com-
missioners to
assess for
former years

64.—(1) Any newly appointed general and additional commissioners shall, subject to the provisions of this Act, have authority to execute this Act and such authority may be exercised—

- (a) with respect to any income tax which has not, but which ought to have been assessed in any former year; and
- (b) with respect to arrears of income tax assessed in any former year;

and they shall have power to assess, collect, and levy any such tax and arrears of tax.

(2) The general commissioners and additional commissioners and the Land Tax Commissioners respectively shall, for the execution of such of their duties as are required by this Act to be done at a meeting, meet together from time to time, within the times prescribed by this Act within their respective divisions, at the most usual place of meeting :

Provided that any such meeting may be held and any such duties may be executed—

- (i) within any city, town, or place being a county of itself, or otherwise having exclusive jurisdiction, which adjoins the respective divisions of the commissioners; or
- (ii) with the consent of the Commissioners of Inland Revenue, at any place outside the boundary of the division for which they act;

and all things done by them at any such place of meeting shall be as valid and effectual in law as if the same had been done at a place of meeting within the division.

65.—(1) No person required by this Act to be qualified in respect of estate who does not possess one of the alternative qualifications described in the Third Schedule to this Act shall be capable of acting as a general commissioner unless he be the eldest son of a person possessing in right of his own estate three times the value in estate required for the qualification of a commissioner, or in the case of a county division in Scotland twice that value :

Qualification
of general
and addi-
tional com-
missioners.

Provided as follows :—

- (a) No estate consisting of lands or tenements shall be required to be situate in the division for which any person shall be a commissioner :
- (b) Where proof of qualification is required, such proof shall lie on the person from whom the qualification is required, and shall be given on oath if required, and such oath shall specify in writing particulars of the estate :
- (c) No qualification shall be required as a commissioner for any county division in Scotland for any provost, baillie, dean of guild, treasurer, master of the merchants company, or deacon convener of the trades for the time being of any royal burgh in Scotland, or any baillie for the time being of any borough of regality or barony of Scotland who shall be respectively Land Tax Commissioners for any county in Scotland.

(2) Additional commissioners must possess a qualification in respect of estate of the like nature as, and of one half the value of, that required for general commissioners for the same division.

(3) Where, in any city division for which separate commissioners have been appointed to act in execution of the Acts relating to land tax, there shall not be found a sufficient number of persons, qualified as aforesaid, willing to act as general commissioners or additional commissioners, any persons residing in the city division, liable to be charged under this Act in respect of annual profits or gains, however arising, to the amount of not less than two hundred pounds, may be appointed to act as general or additional commissioners.

(4) A general commissioner shall not be precluded from acting as such by reason of his acting, or having acted, as an additional commissioner, except only in the hearing or determining of appeals relating to assessments made by him as an additional commissioner.

First meeting
of general
commis-
sioners and
appointment,
&c. of clerk.

66.—(1) The first meeting of the general commissioners for every division for each year of assessment shall be held in England before the tenth, and in Scotland before the thirtieth, day of April.

(2) At that meeting the said commissioners shall, by a majority, elect, for the said year of assessment, a fit person to be their clerk, and, if they deem it necessary, one other fit person to be his assistant, for all matters under their jurisdiction within their division.

(3) The clerk to the general commissioners for each division or his assistant shall be appointed clerk to the additional commissioners for the same division, and shall attend their meetings as such.

(4) Every such clerk and assistant shall execute his office under the provisions and regulations of this Act, and shall act as such in all matters under the jurisdiction of the general and additional commissioners respectively.

(5) The person elected as clerk shall be the sole clerk to the commissioners for that year, and shall not, during the year for which he is appointed, be removable from office, otherwise than for just cause, and by a majority of commissioners present at a meeting of the commissioners called for that purpose.

(6) Any such meeting as last aforesaid shall be summoned by a notice in writing, signed by the commissioners, or in Scotland by their respective conveners, and served upon each commissioner qualified for the division.

(7) If in the course of a year a vacancy occurs by the death, dismissal, or resignation or otherwise of any clerk, the general commissioners shall, in the manner hereinbefore prescribed, elect a person to be clerk for the remainder of that year.

(8) A clerk shall not demand, or receive, any fee, gratuity, or perquisite, for anything done by him as clerk in pursuance of this Act, from any person otherwise than as permitted by this Act.

(9) A person who holds the office of clerk to the commissioners shall receive as remuneration—

(a) a sum not less than the amount paid to the clerk by way of poundage for income tax for the year which commenced on the sixth day of April eighteen hundred and ninety; and

(b) such further sum, if any, as the Commissioners of Inland Revenue, if they consider it expedient, may with the consent of the Treasury grant either on account of expenses incurred other than necessary office expenses or as additional remuneration.

(10) A clerk or clerk's assistant who—

(a) wilfully obstructs or delays the execution of this Act;
or

(b) negligently conducts or wilfully misconducts himself
in the execution of this Act,

shall incur a penalty of one hundred pounds, and shall be dismissed from his office, and be incapable of again acting as clerk or clerk's assistant.

Special Commissioners.

67.—(1) The Commissioners of Inland Revenue, together with such other persons as the Treasury by warrant may from time to time appoint, shall be commissioners for the special purposes of the Income Tax Acts (herein referred to as "special commissioners"), and shall, by virtue of their office and appointment, respectively, and without other qualification, have authority to execute such powers, and to perform such duties, as are assigned to them by this Act. Special commissioners.

(2) In cases in which the special commissioners have authority to make, sign or allow assessments, or to hear appeals, they shall possess and exercise all the powers of the additional commissioners and general commissioners with respect to assessments, appeals, and the collection and recovery of tax.

(3) The special commissioners shall, in matters within their jurisdiction, have all the powers of any other commissioners under this Act, but, save when acting in the place of general commissioners or in the matter of any appeal, shall not have power to summon any person to be examined before them, but all inquiries by or before them shall be answered by affidavit, to be taken before one of the general commissioners in their respective divisions.

(4) Special commissioners shall be allowed such sums in respect of salary and incidental expenses as the Treasury direct.

(5) The Treasury shall cause an account of all appointments of special commissioners with salaries to be laid before Parliament, within twenty days of their appointment, or, if Parliament be not then sitting, within twenty days after the next meeting of Parliament.

Other Commissioners.

68. For the purpose of assessing and charging income tax in the cases mentioned in this section the following persons shall be commissioners, and shall have all the powers of the general commissioners for that purpose, and shall make assessments under and subject to the provisions and rules of this Act, that is to say:— Banks of England and Ireland and National Debt Commissioners.

(1) The governor and directors of the Bank of England and Bank of Ireland respectively, in respect of interest, annuities, dividends and shares of annuities, and the

profits attached to the same, payable to either Bank out of the public revenue of the United Kingdom :

- (2) The governor and directors of the Bank of England and of the Bank of Ireland respectively, in respect of—

(a) interest, annuities, dividends, and shares of annuities, intrusted to either Bank for payment;

(b) profits or gains of either Bank chargeable under Schedule D;

(c) all other interest, annuities, and dividends, and salaries and pensions payable by either Bank; and

(d) all other profits chargeable with tax arising within any office or department under the management or control of either Bank.

- (3) The National Debt Commissioners in respect of—

(a) interest, annuities, and dividends payable by them; and

(b) all salaries and pensions payable in any office or department under their management or control.

Commissioners for courts, public departments, and Houses of Parliament,

69.—(1) (a) The Lord Chancellor, the judges, and the principal officer or officers of each court or public department of office under the Crown, shall have authority to appoint commissioners from among the officers of that court or department :

Provided that—

- (i) The Treasury may determine that, in any particular department of office, or in any naval or military court, commissioners shall not be appointed, and that the officers of any such department or court shall be assessed in some other department named by them :

- (ii) In any case where, under the provisions hereinafter contained, the Treasury appoint commissioners in any court or department, they may, where necessary, unite two or more courts or departments under the same commissioners, but in any such case there shall be distinct officers from each court or department so united for assessing and collecting the tax, and where the commissioners of one department execute this Act in relation to any other department, the assessors and collectors for such last-named department shall be appointed from the officers of that department :

- (iii) If any dispute arises as to the department in which any office is executed, the Treasury shall determine the same.

(b) In this subsection the expression “court,” unless the context otherwise requires, includes every court, whether civil, judicial, criminal, ecclesiastical, commissary, naval, or military.

(2) The Speaker and the principal clerk of either House of Parliament, and the principal or other officers in any county palatine, or of the Duchy of Cornwall, or of any ecclesiastical court, or of any inferior court of justice, or ecclesiastical body or corporation, shall respectively be authorised to appoint commissioners from among the persons executing offices in either House of Parliament, or in their respective departments of office.

(3) Any three or more commissioners, not exceeding seven, appointed as aforesaid, shall execute this Act in relation to the offices and employments of profit in either House of Parliament, or in their respective courts or departments.

(4) The names of commissioners so appointed shall be notified to the Commissioners of Inland Revenue within one month after the fifth day of April in every year, and the failure of notification in due time shall be conclusive evidence of default in making any such appointment.

(5) (a) Where there shall be any default in the appointment of commissioners under this section, the Treasury, within one month of the notification by the Commissioners of Inland Revenue of such default, shall appoint commissioners from the officers of either House of Parliament, or any court or department, as the case may require.

(b) If in any case the Treasury make no such appointment as aforesaid, the general commissioners shall, on due notice execute this Act in respect of the offices and employments of profit concerned.

(c) Where there is not a sufficient number of officers in a court or department proper to be appointed, the Treasury may direct that the commissioners for some other department shall execute this Act in respect of the offices and employments of profit in that court or department.

(6) Every appointment under this section shall be until other commissioners are appointed, but may be renewed annually on or before the fifth day of April :

Provided that commissioners once appointed may continue to act from year to year without any new appointment, unless it be deemed expedient that any department, for which commissioners have been appointed under the provisions of this Act, should be assessed under the commissioners of some other department.

(7) In respect of tax on pensions or stipends payable by the Crown, or out of the public revenue, in cases not otherwise provided for by this Act, the paymasters of civil services, and such other persons as the Treasury shall appoint, shall be commissioners for executing this Act in relation thereto or shall appoint commissioners from among the officers of their departments for the purpose.

(8) (a) The Treasury may, if they think special circumstances so require, by minute assign to the persons to whom this subsection applies such remuneration as they think expedient.

(b) Every such minute shall state the circumstances under which it is made, and shall be laid before Parliament within one month after it is made, or, if Parliament be not then sitting, within one month after the next meeting of Parliament.

(c) The persons to whom this subsection applies are persons acting as clerks to commissioners, or as assessors or collectors, in the offices of either House of Parliament, the National Debt Commissioners, courts and public departments, or in the offices of paymasters of civil services.

Commissioners for public offices in municipalities.

70.—(1) In every corporate city, borough, town or place, the mayor and members of the corporation, by whatever name described, or any three or more of them, not exceeding seven, shall be commissioners for executing this Act in relation to public offices or employments of profit therein, and in every guild, fraternity, company or society, whether corporate or not corporate, therein, and may act in all respects as fully and effectually as any other commissioners in relation to tax under this Act.

(2) The names of any such commissioners shall be notified to the Commissioners of Inland Revenue within one month after the fifth day of April in every year, and the failure of notification in due time shall be conclusive evidence of default in making any such appointment.

General Provisions as to Commissioners.

Validity of acts of commissioners.

71. If any commissioners fail to hold a meeting, or to make any appointment, or to do any other act required of them by this Act, within the time prescribed by this Act, they shall do so as soon as may be after the expiration of that time, and any meeting so held, or appointment so made, or act so performed, shall be valid and effectual, except in the case where the appointment of a collector has been or may be, by reason of neglect or omission or otherwise, absolutely vested in the Commissioners of Inland Revenue.

Declarations by commissioners for public offices and election of clerks, assessors, and collectors.

72. The respective commissioners for executing this Act in relation to offices and employments of profit and pensions and stipends shall, as soon as practicable after their appointment, meet and make and subscribe the declaration contained in Part II. of the Fourth Schedule to this Act, and may respectively elect a clerk and assessors, and if the tax cannot be deducted at the department of office of the commissioners or at the office for which they act, they may, from among the officers in their respective departments, appoint separate assessors and collectors for each such department.

Qualification of ex officio commissioners.

73. Any commissioner for executing this Act in relation to offices or employments of profit, or pensions, stipends, interest, annuities, or dividends, who acts as a commissioner by virtue of his office shall require no other qualification.

74.—(1) Every commissioner acting in the execution of this Act shall be chargeable with tax in the same manner as any other person, but shall take no part in the proceedings, and shall not be present, when any assessment, statement or schedule is under consideration, or any controversy or appeal is being determined, with reference to any case in which he is interested, either in his own right or in the right of any other person as his agent, except during the hearing of an appeal for the purpose of being examined orally by the commissioners, and he shall withdraw during the consideration and determination of the controversy or appeal.

Disqualifi-
cation of
commis-
sioners to
take part in
determination
of their own
cases.

(2) A commissioner who, in any such case, takes any part in the determination of any such controversy or appeal, or fails to withdraw, shall incur a penalty of fifty pounds.

Inspectors and Surveyors.

75.—(1) The Treasury may appoint inspectors and surveyors, and all such inspectors and surveyors and all other officers or persons employed in the execution of this Act shall observe and follow the orders, instructions and directions of the Commissioners of Inland Revenue.

Appointment
of inspectors
and surveyors.

(2) The Treasury may fix such salaries and allowances for the remuneration of inspectors and surveyors, and all other officers or persons employed in the execution of this Act as the Treasury think fit, and may discharge such incidental charges and expenses in connection therewith as the Treasury may think reasonable.

Assessors.

76.—(1) The general commissioners may appoint assessors, and for that purpose shall, in England, before the tenth, and in Scotland before the thirtieth, day of April in each year, direct their joint and several precept to so many of the inhabitants of each parish as they think most convenient, requiring them to appear before the commissioners, at a time not exceeding ten days after the date of the precept, and at a place appointed.

Appointment
of assessors.

(2) On their appearance, the said commissioners shall appoint such of the said inhabitants as they think proper to be assessors for the parish, and thereupon the declarations contained in Parts I. and II. of the Fourth Schedule to this Act shall be made and subscribed by the said assessors, and the said commissioners shall issue to them their warrants of appointment, signed by the commissioners, together with such instructions as shall be necessary for carrying this Act into execution, and shall appoint another day, not later in England than the twentieth day of July, and in Scotland than the first Wednesday in August of the same year, for them to appear before the commissioners and bring in their certificates of assessments, which shall be verified upon oath.

(3) An assessor's appointment shall be for the year commencing on the sixth day of April in each year, and shall continue during that year and until other assessors are appointed for the same parish.

(4) The general commissioners, or the surveyor, may give notice to an assessor that he is to be continued in office, and any such notice may require him to attend, at a day and place named therein, for the purpose of receiving into his charge all notices and papers to be delivered to him for the due execution of his office.

(5) Where two able and sufficient inhabitants cannot be found in a parish, the general commissioners shall nominate and appoint fit persons residing near to that parish to be assessors for that parish.

(6) No person who inhabits any city, borough, or town corporate shall be compelled to be an assessor for any place outside the limits thereof.

(7) If there is a failure in the appointment of an assessor for any parish whereby the assessment of the tax is likely to be delayed, the magistrates or justices having jurisdiction in or over the parish or any two of them shall, on notice of such failure from the surveyor, appoint an assessor in the manner directed for the appointment of an assessor by the commissioners.

(8) Where an officer of inland revenue has been appointed to be an assessor, within any county or burgh, for the purposes of the Lands Valuation (Scotland) Act, 1854, no other person shall be appointed to be assessor for the district or division of such officer for the tax under this Act; but where a person other than the officer of inland revenue of a district or division was assessor for or within that district or division on the fourteenth day of August eighteen hundred and eighty-four he shall be as capable of being re-appointed assessor as if this Act had not been passed.

(9) Every assessor shall duly serve and deliver, in the parish for which he is appointed, all notices and precepts which are required to be given or issued by or in pursuance of this Act, and shall verify the service thereof.

17 & 18 Vict.
c. 91.

Powers of
surveyors
to act as
assessors in
certain cases.

77.—(1) If assessors for any parish—

- (i) are not appointed in pursuance of this Act; or
- (ii) having been appointed, or having been continued in office, do not take upon themselves the office at or before the time limited,

the surveyor of the district may execute the duty of assessor for the parish until assessors are appointed and take upon themselves the said office.

(2) Within the administrative county of London the surveyors acting therein shall be assessors for the tax chargeable under Schedules A and B, and no assessors of the said tax shall be appointed by the general commissioners.

(3) Where the annual value of any property, which has been adopted for the purpose of the tax chargeable under

Schedules A and B for any year, is prescribed by any enactment to be taken as the annual value of that property for the same purpose for any subsequent year, the surveyor shall be the assessor of the tax under Schedules A and B for that subsequent year.

78. An assessor shall receive by way of remuneration—

Remunera-
tion of
assessors.

- (a) In respect of assessments of tax under Schedules D and E, such sum as the Commissioners of Inland Revenue, with the approval of the Treasury, may direct, not being less than the amount of the allowance to the assessor for the year which commenced on the sixth day of April eighteen hundred and ninety; and
- (b) In any year in which he acts as assessor of tax under Schedules A and B, such sum as the said Commissioners with the like approval may direct, not being less than the amount of the allowance, in respect of the assessments under those schedules, made to the assessor appointed for the year which commenced on the sixth day of April eighteen hundred and eighty-eight:

Provided that in the event of a change in any area of assessment, the general commissioners for the division may adjust and apportion the amounts receivable under this section as they think fit.

79.—(1) A person to whom a precept as aforesaid is directed by the general commissioners, requiring his appearance for the purpose of being appointed assessor, who—

Penalties on
assessors.

- (a) wilfully neglects or refuses to appear in accordance with the precept; or
- (b) having appeared, refuses to submit to be appointed assessor; or
- (c) neglects or refuses to make and subscribe the declaration of office contained in Part II. of the Fourth Schedule to this Act,

shall for every such offence incur a penalty of ten pounds.

(2) A person appointed assessor by the general commissioners who—

- (a) wilfully neglects or refuses to perform his duty in the due and speedy execution of this Act; or
- (b) wilfully neglects or refuses to assess himself and every other person chargeable with tax, or to make his assessments in accordance with law; or
- (c) acts as assessor before making the declaration of office contained in Part II. of the Fourth Schedule to this Act,

shall for every such offence incur a penalty of twenty pounds.

(3) A person appointed assessor by the magistrates or justices who—

- (a) wilfully neglects or refuses to take on himself the office of assessor; or
- (b) wilfully neglects or refuses to perform his duty in the due and speedy execution of this Act; or
- (c) wilfully neglects or refuses to assess himself and every other person chargeable with tax, or to make his assessments in accordance with law; or
- (d) neglects or refuses to make and subscribe the declaration of office contained in Part II. of the Fourth Schedule to this Act,

shall for every such offence incur a penalty of fifty pounds.

Collectors, &c.

Appoint-
ment of
collectors in
England.

80.—(1) In England, the general commissioners shall, in the month of April in every year, nominate one or more able and sufficient persons, resident in the parish, to the office of collector of taxes, for every parish within the division for which the commissioners act.

(2) If there be no such person, so resident, who is willing to take the office of collector, the commissioners may nominate an able and sufficient person resident in a neighbouring parish.

(3) No person shall be compelled to accept the office of collector, or be liable to any penalty for neglecting or refusing to take upon himself that office, if within fourteen days after he has received notice of his nomination he signifies, either personally or by means of a registered letter addressed to the clerk to the commissioners, his refusal to accept the office.

(4) If a person nominated fails to notify his refusal within the time prescribed, and fails, when required by the commissioners, to attend a meeting for the purpose of receiving his appointment and warrant as collector, he shall incur a penalty of twenty pounds.

(5) Upon the expiration of the time limited for refusal of office, the commissioners shall appoint from among the persons who have been nominated, and have not, in the manner prescribed, declined office, such person or persons, as they think fit, to be collector or collectors for the parish in respect of which he or they were nominated.

(6) The nomination or appointment of a person as collector shall be notified to him either personally or by registered letter.

(7) Where a person nominated refuses office in manner aforesaid, the commissioners may nominate some other able and sufficient person, in the manner directed by this section.

(8) If the collector for a parish dies before his accounts for any year have been closed, the authority by whom the deceased collector was appointed for that year may appoint to the vacant office such person or persons as they think fit, but any such person

or persons proposed to be appointed may decline office in the manner provided by this section.

81.—(1) The Commissioners of Inland Revenue may when-
ever they think fit—

Power of
Commis-
sioners of
Inland
Revenue to
require
security.

(a) give notice to the general commissioners that they require any person, nominated or appointed collector for any parish named in the notice, to give security to the satisfaction of the Commissioners of Inland Revenue for the due collecting, accounting for, and paying over of the moneys collected or to be collected by him, and for the due performance of his duties as collector;

(b) cause the like notice to be given to any person who has been appointed collector.

(2) After any such notice to the general commissioners, they shall not appoint any person to be collector for that parish unless he has previously given the required security.

(3) If a person who has been appointed collector, and to whom any such notice as aforesaid has been given, fails to give security within the time limited by the notice, his nomination, appointment, and authority as collector shall cease at the expiration of that time.

82.—(1) The security to be given by a collector, to the satisfaction of the Commissioners of Inland Revenue, shall be either by bond to the Crown, entered into by the collector with sureties approved by them, or by such security as they determine, and in such sum as they require.

Nature of
security to
be given.

(2) Every such bond shall contain the condition that the collector shall—

(a) duly demand the tax and moneys of the persons on whom the same are charged, or from or by whom the same are payable; and

(b) in case of non-payment thereof, enforce the powers of this and any other Act in that behalf against those who make default; and

(c) account for, and pay over, all such moneys as shall come to his hands as or for the said tax to the proper officer appointed by the Commissioners of Inland Revenue for the receipt thereof,

and shall contain such other terms and provisions as the Commissioners of Inland Revenue may think fit and proper.

83.—(1) The general commissioners may require collectors, on their appointment, to give security to their satisfaction.

Power of
general
commis-
sioners or in-
habitants of
parish to
require
security.

(2) Any two or more inhabitants of a parish, who are respectively assessed and charged to tax, may, by notice in writing to the appropriate general commissioners, require that the person whom they propose to appoint as collector for that parish shall give security to the satisfaction of the commissioners.

(3) Any such notice shall be served upon the clerk to the commissioners, either personally or by registered letter addressed

to him, and, after the receipt thereof, the commissioners shall not appoint a person who has not given such security.

(4) (a) The security to be given to the commissioners may be by a joint and several bond, with two sureties at the least, to and in the names of any two or more of the commissioners; and

(b) The penal sum in any such bond shall, if so required, be equal to the whole of the tax and moneys assessed and charged in the parish, and to be collected by the person whom it is proposed to appoint collector for that parish, and from whom security is required.

Power of
Commissioners of
Inland
Revenue to
appoint col-
lectors in
certain cases.

84.—(1) If for any year of assessment a collector for any parish shall not have been appointed on or before the thirty-first day of May, the power to appoint a collector for that year, and for every subsequent year, shall vest in the Commissioners of Inland Revenue, and they shall appoint a collector for that parish accordingly.

(2) If a vacancy caused by death is not filled within forty days from the death by the authority empowered to appoint, the vacancy for that year shall be filled by the Commissioners of Inland Revenue.

(3) If after the Commissioners of Inland Revenue have given notice, as aforesaid, that they require security to be given—

(a) there is neglect or delay in the appointment of collectors who have previously given the required security to the Crown; or

(b) a person nominated or appointed collector fails to give the required security,

the Commissioners of Inland Revenue may appoint a collector or collectors for the parish in which the neglect, delay or failure has occurred.

(4) A person appointed collector by the Commissioners of Inland Revenue shall have, and exercise, the like powers and authorities under this Act as a collector appointed by the general commissioners.

(5) The appointment of a collector by the Commissioners of Inland Revenue shall be by warrant under their hands, and any such warrant shall have the like force and effect, and confer the like power and authority, as a warrant of the general commissioners directed to a person appointed by them to be a collector.

Appoint-
ment of col-
lectors in
Scotland.

85.—(1) The Treasury shall appoint the collectors in and for Scotland.

(2) The Treasury may appoint distributors of stamps in Scotland, or any of them, or other persons, to be collectors or other officers for collecting and receiving the tax in Scotland, and for such parts of Scotland as the Treasury may think fit.

(3) Such salaries and allowances as the Treasury think fit shall be granted to such distributors or other persons, and they shall hold their respective offices during the will and

pleasure of the Treasury or of the Commissioners of Inland Revenue.

(4) Such distributors or other persons shall, before they act in the execution of their respective offices, give security to the satisfaction of the Commissioners of Inland Revenue.

(5) No county or burgh in Scotland shall be liable for any deficiency in the collection of tax occasioned by the default of any collector appointed as aforesaid.

(6) If a person, other than a distributor of stamps in Scotland, is appointed to be a collector or other officer as aforesaid, a return, showing the name of such person, with his salary and allowances, shall be laid by the Treasury before Parliament within twenty-one days after the commencement of the session of Parliament which shall next follow every such appointment.

(7) In this section the term "distributor of stamps" includes "sub-distributor of stamps."

86.—(1) An action or suit which is brought against a collector, in respect of anything done in pursuance of this Act, shall be defended by the general commissioners for the division where such collector has been appointed by them or has acted under their warrant or directions. Proceedings against collectors.

(2) The costs and charges attending any such action or suit, and of any other action or suit brought by or against the said general commissioners or any collector appointed by them, in respect of anything done in pursuance of this Act, or any other Act relating to income tax, shall be defrayed by an assessment, made in just proportion, on the persons, lands, tenements, hereditaments or heritages liable to be assessed in the parish in, or relating to which, the alleged cause of action arose, or for which such collector was appointed.

(3) A collector shall, for the purpose of any indictment or criminal proceedings for any felony or misdemeanor committed by him as such collector, be deemed to be employed in the public service of the Crown, and to be a clerk, officer, or servant of the Commissioners of Inland Revenue.

87. A collector for any area of collection shall receive such remuneration, not being less than the amount received, by way of allowance, in respect of income tax collected by the collector for that area for the year which commenced on the sixth day of April eighteen hundred and ninety, as the Commissioners of Inland Revenue, with the approval of the Treasury, may direct, and any such remuneration shall be paid in such manner and under such regulations as may be prescribed by the Commissioners of Inland Revenue : Remuneration of collectors.

Provided that, in the event of a change in any area of collection, the general commissioners for the division may adjust and apportion the amount receivable under this section as they think fit.

88.—(1) Where the remuneration to which an assessor or collector of income tax is entitled under this Act, together with Limitation of remuneration.

any allowance to which he may be entitled as assessor or collector of inhabited house duty or land tax, would exceed a sum which, in the opinion of the general commissioners for the division in which he acts, represents a fair remuneration for his trouble, the said commissioners may fix the amount of such remuneration, and the amount so fixed shall be the sole amount receivable by him by way of remuneration, and the other provisions of this Act as to the remuneration of an assessor or collector shall not apply.

(2) The aggregate amount of the remuneration of an assessor or collector under this Act, and any Act relating to land tax or inhabited house duty, shall in no case exceed the sum of one thousand pounds, exclusive of necessary office expenses.

Declaration on taking Office.

**Declarations
by officers
named in
Schedule 4.**

89.—(1) Every person appointed to one of the offices named in Part I. of the Fourth Schedule to this Act shall, before he begins to act in the execution of this Act so far as relates to the tax under Schedule D, make and subscribe the declaration therein contained, in respect of his office.

(2) The declaration may be made before any general, additional, or special commissioner, but where it is made by any such commissioner, it shall be made either before a general commissioner or a special commissioner.

(3) A person who acts in the execution of his office in relation to the tax under Schedule D (otherwise than in respect of any such declaration made before him) before he has made the prescribed declaration shall forfeit the sum of one hundred pounds.

Areas.

**Parishes for
purposes of
assessment.**

90.—(1) The parishes for which assessments of the tax are to be made, and for which assessors and collectors are to be appointed, shall, in England, elsewhere than in the city of London, be the parishes for the time being existing for the purposes of poor law administration, but no alteration of any parish for the purposes of poor law administration shall take effect for the purposes of this Act during any year in which, under any enactment, the annual value of any property adopted under Schedules A and B for the preceding year is taken as the annual value for that year.

(2) If a parish shall become partly in the jurisdiction of one body of general commissioners, and partly in the jurisdiction of one or more other such bodies, the Commissioners of Inland Revenue, by order in writing, shall determine which shall have jurisdiction, and thereupon the whole of the parish shall be within that jurisdiction :

Provided that the parish of Lambeth, in the county of London, shall, for the purposes of the tax and the collection thereof, continue to be divided into the two parts for which separate

jurisdictions existed at the commencement of this Act, and each such part shall, for those purposes, be deemed to be a parish and within the jurisdiction of the general commissioners who at that time had jurisdiction therein.

(3) If at any time the Commissioners of Inland Revenue consider that a parish is so large that it ought to be divided into districts for which separate assessors and collectors should be appointed, they may, with the consent of the Treasury, certify in writing to the general commissioners having jurisdiction therein, that the parish shall be divided into the districts specified in the certificate, at the time therein mentioned, and thereafter each of those districts shall be treated as a parish for which a separate assessment of the tax is to be made, and for which assessors and collectors are to be appointed. Any such division may be cancelled or altered by the Commissioners of Inland Revenue, at any time, with the like consent and by a like certificate.

(4) This section shall not apply to the Inner Temple, Middle Temple, Lincoln's Inn, Gray's Inn, and the Inns of Chancery thereunto respectively belonging.

91.—(1) The assessment, charge, and collection of tax within the Universities of Oxford and Cambridge shall be subject to the following provisions :— Universities of Oxford and Cambridge.

- (a) Any college or hall for the time being attached to, or associated with, the University of Oxford, and all offices and employments in connection therewith, and persons residing therein, shall be within the jurisdiction of the general commissioners for that university :
- (b) The general commissioners for the University of Cambridge shall have jurisdiction in respect of all the university buildings, and the colleges, halls, and public hostels for the time being attached to, or associated with, that university, and of all offices and employments in connection therewith, and of the profits or gains of all persons residing therein :
- (c) Each of the said jurisdictions shall be deemed to be one parish for the purposes of tax.

92. The place known as Serjeants Inn in Chancery Lane in London shall, in matters connected with the assessment, charge, and collection of tax, be subject to the jurisdiction of the commissioners acting in the execution of this Act for the City of London. Serjeants Inn.

93.—(1) In England, at any meeting convened for the purpose— Transfer and union of parishes.

- (a) the Land Tax Commissioners for any county may, for the purposes of this Act, transfer the jurisdiction of any parish in such county from the division to which it belongs to any other division of the same county, or

to a new division of the same county, which they are hereby empowered to create;

- (b) the Land Tax Commissioners for any division may, for the purposes of this Act, unite any two or more parishes.

(2) Every such transfer or union of parishes shall be certified in writing, by the respective Land Tax Commissioners, to the Commissioners of Inland Revenue, and shall be subject to the approval of the Treasury.

(3) If the Treasury approve, their approval shall be certified to the general commissioners of the respective divisions by the Commissioners of Inland Revenue.

(4) Thereupon, from the time fixed by the Commissioners of Inland Revenue—

- (a) the general commissioners for the division so extended or created shall have jurisdiction, under this Act, within the parish so transferred; and

- (b) any parishes so united as aforesaid shall, for all the purposes of the tax, be considered as one parish.

(5) Where parishes have been united as aforesaid and the union proves to be inconvenient, the Treasury, on receipt of a resolution passed by the Land Tax Commissioners for the division, at a meeting convened for the purpose, may, if they think fit, dissolve the union as regards all or any of the parishes so united.

(6) This section shall not extend to authorise any alteration of the limits or jurisdiction of any of the cities, towns, or places for which separate and distinct quotas of land tax are provided by and enumerated in any Act relating to land tax.

Detached
areas.

94.—(1) The Commissioners of Inland Revenue may—

- (a) order that any detached area shall, for the purposes of this Act, be subject to the jurisdiction and authority of the commissioners executing this Act in and for a county division, prescribed by them, which is near or adjoining thereto, and those commissioners shall thereupon have the same jurisdiction and authority, in all matters within that detached area, as they exercise within the said county division; and

- (b) order that any detached area shall, for the purposes of this Act, be added to any adjoining or other division or divisions, or be formed into one or more new divisions.

(2) In this section the expression “detached area” means any detached parish, or any part thereof, in Great Britain, locally situate in a county other than that to which it belongs.

Grouping of
parishes.

95.—(1) The Land Tax Commissioners acting for any division may, with the assent of the Commissioners of Inland Revenue, group together, for the purposes of collection, parishes

in that division, and any parishes so grouped shall, for those purposes, but for those purposes only, be deemed to be one parish.

(2) Where parishes have been so grouped, the Land Tax Commissioners may, if the grouping proves inconvenient, with the like assent, dissolve the grouping, either as regards all or any of the parishes.

(3) This section shall not apply to Scotland.

96. Where any lands and heritages in Scotland are partly in the jurisdiction of one body of general commissioners and partly in the jurisdiction of another, or where it is desirable, for the convenience of assessment, to transfer any lands and heritages from the jurisdiction of one body of general commissioners to the jurisdiction of another such body, the Commissioners of Inland Revenue, at the request of the general commissioners concerned, shall, by order in writing, determine which body of general commissioners shall have the jurisdiction, and the whole lands and heritages aforesaid shall be within such jurisdiction accordingly.

Provisions
as to juris-
diction of
commis-
sioners in
Scotland.

97.—(1) If—

(a) a doubt arises as to the parish in which any lands are situate; or

(b) any lands are extra-parochial,

the Commissioners of Inland Revenue may, by order in writing, direct that such lands shall, for all the purposes of this Act, be annexed to, and be deemed to be within, such neighbouring parish and such division as they consider most convenient.

Power of
Commis-
sioners of
Inland
Revenue to
decide doubt-
ful questions
as to
parishes.

(2) Upon the making of any such order the tax in respect of such lands shall be assessed, charged, raised, collected, and levied by and under the authority of the general commissioners for the prescribed division, and by the surveyor, assessors, and collectors for the parish to which such lands have been so annexed, and all the provisions and regulations of this Act relating to assessments, charges, surcharges, and appeals shall apply accordingly.

(3) The Commissioners of Inland Revenue may at any time revoke any such order and substitute any other order in lieu thereof.

(4) If—

(a) a doubt arises as to the parish in which a person ought to be assessed and charged to tax; or

(b) a person has been or is liable to be assessed and charged to tax in two or more parishes,

the Commissioners of Inland Revenue may order that any such person shall be assessed and charged in such parish as appears to them to be proper, and he shall be assessed and charged accordingly.

PART VI.

ASSESSMENT.

Provisions as to Assessment.

General
 notices to
 deliver lists
 and state-
 ments.

98.—(1) The assessors appointed to execute this Act shall, within the time, and in the manner, directed by the precept of the general commissioners, cause general notices to be given, requiring all persons who, by this Act, are required to make out and deliver any list, declaration, or statement, to make out and deliver the same to the respective assessors as therein directed within such time as shall be limited by the precept, not being later than twenty-one days from the date of the precept.

(2) General notices shall be given by affixing a notice on, or near to, the door of the church or chapel and market house or cross (if any) of the parish for which the assessors act or, if the parish has no church or chapel or market house or cross, then on or near to the door of the church or chapel nearest to the parish.

(3) The general notices so affixed shall be deemed sufficient notice to all persons resident in the parish, and the affixing of the same, in manner aforesaid, shall be deemed good service thereof.

(4) The assessors shall cause the notices to be from time to time replaced, if necessary, during ten days before the time required for the delivery of the said lists, declarations, and statements.

(5) Any person wilfully tearing, defacing or obliterating any such notice so affixed shall forfeit a sum not exceeding twenty pounds.

Service by
 assessors of
 particular
 notices.

99.—(1) The assessors shall, within the time directed by the precept of the general commissioners, give a particular notice to every person chargeable within the limits wherein they act, requiring him, within such time as shall be limited by the precept, to prepare and deliver to the assessors all such lists, declarations, and statements as are required by this Act to be delivered.

(2) A particular notice may be given either personally, or by leaving a notice at the dwelling-house, place of residence or place of business of the person chargeable, or on the premises to be charged by the assessment.

Delivery of
 statements
 in pursuance
 of notices.

100.—(1) Every person chargeable under this Act, when required to do so by any general or particular notice given in pursuance of this Act, shall, within the period limited by such notice, prepare and deliver to the assessor, a true and correct statement in writing as required by this Act, signed by him, containing—

(a) the annual value of all lands and tenements in his occupation, whether situate in one, or more than one, parish;

(b) the amount of the profits or gains arising to him, from each and every source chargeable according to the respective schedules, estimated for the period and according to the provisions and rules of this Act.

(2) To the said statement shall be added a declaration that such values or amounts are estimated in respect of all the sources of income mentioned in this Act, describing the same, after deducting only such sums as are allowed.

(3) Every such statement shall be made exclusive of any interest of money or other annual payment arising out of the property of any other person charged in respect thereof.

(4) Every person upon whom a particular notice has been served by an assessor requiring him to deliver a statement of any profits, gains, or income in respect of which he is chargeable under Schedule D or Schedule E, shall deliver a statement in the form required by the notice, whether or not he is so chargeable :

Provided that the penalty inflicted upon any person proceeded against for not complying with this provision who proves that he was not chargeable to tax, shall not exceed five pounds for any one offence.

101.—(1) Every person acting in any character on behalf of any incapacitated person or person not resident in the United Kingdom who, by reason of such incapacity or non-residence in the United Kingdom, cannot be personally charged under this Act, shall, whenever required to do so by any general or particular notice, within the like period, and in any parish in which he may be chargeable on his own account, deliver such a statement as in the last preceding section is described of the profits or gains in respect of which the tax is to be charged on him on account of that other person, together with the prescribed declaration.

Persons
acting for
others.

(2) Where two or more such persons are liable to be charged for the same person—

(a) one statement only shall be required to be delivered which may be made by them jointly, or by any one or more of them; and

(b) notice in writing may be given by any such persons to the general commissioners for each division in which they are called upon for a statement stating in which parish or parishes they are respectively chargeable on their own account, and in which of those parishes they desire to be charged on behalf of the person for whom they act, and they shall, if any one of them be liable to be charged on his own account in that parish, be charged therein accordingly by one assessment.

102.—(1) If any person shall come into a parish in which he has not been charged to tax, the assessor, collector, or sur-

Delivery of
statements
by persons

coming to
reside in a
parish.

veyor may give him notice in writing to deliver, within fourteen days from the giving of the notice—

- (a) a declaration in writing, signed by him, specifying the parish and county in which he has been assessed; or
- (b) in default thereof, a statement in order that he may be assessed and charged in the parish into which he has come.

(2) A person who neglects or refuses to deliver, within the time limited, any such declaration or statement, or who makes a declaration or statement which is false or untrue in any particular, shall forfeit a sum not exceeding twenty pounds.

(3) If in any case a person who is, or who resides, in any parish has not been assessed therein, the commissioners acting for the parish may assess him, as though he had been resident there at the time of the publication of the general notices directed by this Act, unless he proves to their satisfaction that he has been duly assessed in some other parish.

Delivery of
lists by
persons in
receipt of
taxable
income
belonging
to others.

103.—(1) Every person who, in whatever capacity, is in receipt of any money or value, or of profits or gains arising from any of the sources mentioned in this Act, of or belonging to any other person who is chargeable in respect thereof, or who would be so chargeable if he were resident in the United Kingdom and not an incapacitated person, shall, whenever required to do so by any general or particular notice, prepare and deliver, within the period mentioned in such notice, a list in the prescribed form, signed by him, containing—

- (a) a true and correct statement of all such money, value, profits or gains;
- (b) the name and address of every person to whom the same shall belong;
- (c) a declaration whether every such person is of full age, or a married woman living with her husband, or a married woman whose husband is not accountable for the payment of any tax charged on her, or is resident in the United Kingdom or is an incapacitated person.

(2) If any person above described is acting jointly with any other person, he shall, in like manner, deliver a list of the names and addresses of all persons joined with him at the time of delivery of the list mentioned in the last preceding subsection.

(3) (a) A trustee who has authorised the receipt of profits arising from trust property by the person entitled thereto, or by the agent of such person, if that person or agent shall actually receive the same under that authority; or

(b) An agent or receiver of any person resident in the United Kingdom, other than an incapacitated person, shall not, if he returns a list, as required by this section, of the name, address and profits of that person, be required to do any other act for the purpose of the assessment of that person, unless the commissioners acting in the execution of this Act in

respect of the assessment to be made on that person, require the testimony of the trustee, agent, or receiver, as the case may be, in pursuance of the provisions of this Act.

104. Every person, when required to do so by a general or particular notice under this Act, shall, within the time limited thereby, prepare and deliver to the assessor a list, in writing, containing to the best of his belief—

Lists of
lodgers and
inmates.

- (a) the name of every lodger or inmate resident in his dwelling-house; and
- (b) the name and ordinary place of residence of any such lodger or inmate who has any ordinary place of residence elsewhere at which he can be assessed and who desires to be assessed at such ordinary place of residence.

105.—(1) Every employer, when required to do so by notice from an assessor, shall, within the time limited by the notice, prepare and deliver to the assessor a return containing—

Lists of
employees.

- (a) the names and places of residence of all persons employed by him; and
- (b) the payments made to those persons in respect of that employment, except persons who are not employed in any other employment and whose remuneration in the employment for the year does not exceed the sum for the time being fixed as the limit for total exemption from tax,

and the provisions of this Act with respect to the failure to deliver lists, declarations, and statements, in accordance with a general or particular notice, shall apply to any such return:

Provided that an employer shall not be liable to any penalty for omitting from any such return the name or place of residence of any person employed by him and not employed in any other employment, if it appears to the general commissioners, on inquiry before them, that such person is entitled to total exemption from tax.

(2) Where the employer is a body of persons, the secretary of the body, or other officer (by whatever name called) performing the duties of secretary, shall be deemed to be the employer for the purposes of this section, and any director of a company, or person engaged in the management of a company, shall be deemed to be a person employed.

(3) This section shall extend, in the case of weekly wage-earners to whom the provisions of this Act as to quarterly assessment apply, so as to enable returns to be required at such times and intervals as may be fixed by regulations made by the Commissioners of Inland Revenue.

(4) Where an employer is a body corporate (including a company), that body corporate shall be liable to a penalty for failure to deliver a return in pursuance of this section, as well

as the secretary or other officer performing the duties of secretary of the body corporate.

Officers
responsible
in cases of
bodies of
persons.

106.—(1) The chamberlain or other officer acting as treasurer, auditor or receiver for the time being of any body of persons chargeable to tax, shall be answerable for doing all such acts as are required to be done under this Act, for the purpose of the assessment of such body and for payment of the tax, and for the purpose of the assessment of the officers and persons in the employment of such body :

Provided that, in the case of a company, the person so answerable shall be the secretary of the company or other officer (by whatever name called) performing the duties of secretary.

(2) Every such officer as aforesaid may from time to time retain out of any money coming into his hands, on behalf of the body, so much thereof as is sufficient to pay the tax charged upon the body, and shall be indemnified for all such payments made in pursuance of this Act.

Penalties for
neglect to
deliver lists,
declarations
and state-
ments.

107.—(1) A person who neglects or refuses to deliver, within the time limited in any general or particular notice, or wilfully makes delay in delivering a true and correct list, declaration, or statement, which he is required under this Act to deliver, shall—

(a) if proceeded against before the general commissioners, forfeit a sum not exceeding twenty pounds and treble the tax which he ought to be charged under this Act, and such penalty shall be recovered in the same manner as any other penalty under this Act, and the increased tax shall be added to the assessment; or

(b) if proceeded against by action or information in any court, forfeit a sum of fifty pounds.

(2) The commissioners shall also proceed to assess or cause to be assessed every such person who makes default as aforesaid.

(3) If any person who is required to deliver a list, declaration, or statement on behalf of any other person, delivers an imperfect list, declaration, or statement, and declares himself unable, within the time limited to deliver a more perfect list, declaration, or statement, and states the reasons for his inability, he shall not if the said commissioners are satisfied with his explanation and grant further time for delivery, be liable to the penalty prescribed by this section, if he delivers, within the further time granted, as perfect a list, declaration, or statement as the nature of the case permits.

(4) Provided as follows :—

(a) If it appears to the commissioners, on enquiry before them, that a person, to or on whom the assessor has not delivered or served a particular notice, is entitled to exemption from tax, that person shall not be liable to any penalty for not delivering a statement :

- (b) A person chargeable in any department of office by commissioners specially appointed to act for that department, in respect of profits arising from an office, pension, or stipend, shall not be liable to any penalty for not delivering a statement thereof unless the assessor for that department has required a statement from him by a particular notice.

108.—(1) The assessor shall make out and deliver to the surveyor of the district a list containing—

Duties of assessors after delivery of notices.

- (a) the names of all persons to or on whom notices have been delivered or served in pursuance of this Act;
- (b) the names of all persons chargeable within the limits of the assessor, distinguishing those who have duly delivered statements, and those who have not, and those who have given notice to be assessed by the special commissioners;
- (c) the names of all persons who have been returned as lodgers or inmates within the aforesaid limits, or as chargeable within, but having a residence outside, the same;
- (d) the names of all persons employed by any employer within the aforesaid limits who have been returned to the assessor in accordance with the provisions of this Act.

(2) The assessor for every parish shall appear personally before the general commissioners, at a meeting appointed by them, and shall make oath, before them, that the general notices prescribed by this Act have been duly affixed and that, to the best of his knowledge, all notices required to be delivered or served have been duly delivered or served, and that the list delivered by him to the surveyor contains the name of every person, within his knowledge, to or on whom notice was required to be delivered or served.

(3) If any assessor neglects to appear before the said commissioners, refuses to take the oath, or omits or neglects to return to the surveyor the name of any person whose name ought to be included in any such list, he shall forfeit a sum not exceeding twenty pounds.

109. The surveyor may at any time cause a notice to be delivered or served—

Power of surveyor to serve notices in certain cases.

- (a) to or on any person to whom the assessor has neglected to give a notice which ought to have been given; and
- (b) to or on any person coming to reside in any parish after the expiration of the general notices prescribed by this Act.

Contents of assessments under Schedules A and B.

110.—(1) The assessments under Schedules A and B for any parish shall contain—

- (a) the full and just annual value of all lands, tenements, hereditaments and heritages estimated in each particular case as directed by this Act; and
- (b) the names of the occupiers and proprietors thereof.

(2) Such assessments, together with all statements which have been delivered to the assessors, both of annual value and of any deductions claimed to be made therefrom, shall be progressively numbered.

Instruction and assistance of assessors.

111. The general commissioners and every surveyor shall, according to their respective powers and authorities, instruct and assist, on application by him, any assessor who is unable to make his assessments in accordance with this Act, or who is obstructed therein.

Provision for making assessments where no returns are received.

112. If the assessor does not receive a statement from a person liable to be charged to tax, he shall to the best of his information and judgment—

- (a) make an assessment upon that person of the amount at which he ought to be charged under Schedules A, B, and E; and
- (b) estimate the amount at which that person ought to be charged under Schedule D, and make a return to the commissioners of the name and address of that person and of any other particulars which the commissioners may require.

Delivery and examination of assessments and statements

113.—(1) (a) On or before the day appointed by the general commissioners every assessor shall deliver to them—

- (i) his certificates of assessments under Schedules A, B, and E; and
- (ii) all statements and lists which have been received by him before the appointed day.

(b) Statements and lists received after the appointed day from persons to be charged shall be delivered to the commissioners.

(2) On the delivery to the general commissioners by the assessor of any certificates of assessments and of estimate, and their acceptance thereof, they shall forthwith deliver the same to the surveyor for examination.

Inspection of parish books.

114.—(1) The general commissioners, surveyors, and assessors, or any person authorised by them or any of them may, respectively, in any place within the limits for which they act, from time to time, and at all seasonable times, without payment of any fee, inspect, and take copies or extracts from any book kept by a parish officer or other person of or concerning poor rates, or any other public taxes, rates, or assessments, or concerning contributions under the management of the kirk sessions.

(2) A person having the custody of, or power over, any such book who fails to permit such inspection, or the making of copies or extracts, or to attend the general commissioners with any such books when required to do so, shall for every such offence incur a penalty of ten pounds.

115.—(1) In England the assessors shall, at the time of bringing in their assessments under Schedules A and B, if required to do so by the surveyor, or by the respective general commissioners, give notice to the overseers of the parish in which they act, to produce to the commissioners the rate book, or a true copy thereof, and a true copy of the last poor rate made in that parish.

Production of rate books to general commissioners.

(2) The overseers shall produce the rate book or copy, and the copy of the rate, to the commissioners, or deliver the same to the surveyor for their use.

(3) If the surveyor satisfies the said commissioners that the assessments, or any of them, have not been made in accordance with this Act, the commissioners may summon any assessor or overseer, and examine him on oath—

- (a) as to the basis on which the rates have been made on the respective properties;
- (b) as to what property, if any, has not been rated; and
- (c) as to the properties which should be assessed on profits, or on an average of profits under this Act.

(4) The surveyor shall compare the assessments made with the last poor rate, and ascertain whether the assessments have been made on all the properties situate in each parish and in accordance with this Act, and may rectify any assessment in any respect.

116.—(1) If—

- (a) a person chargeable does not, after due notice under this Act, deliver a statement of the annual value of property in his occupation, estimated according to the provisions and rules applicable to the case; or
- (b) the commissioners are not satisfied with any statement which has been delivered,

Power of assessors and surveyors to survey, &c., lands.

the assessor or surveyor, as the case may be, on obtaining a signed order of the general commissioners to that effect, and after two days' notice to the occupier, may, with the assistance of a person or persons of skill named in the order, at all seasonable times in the daytime, view and examine any lands or property chargeable, in order to make a survey thereof, or otherwise to ascertain the annual value at or by reference to which the same ought to be charged, and may enter upon any lands or grounds, whether enclosed or not, and measure and survey the same, if he cannot otherwise ascertain the annual value thereof.

(2) This section shall not apply within the administrative county of London.

Powers of
assessors for
public
departments.

117.—(1) (a) The assessors for any public department or office for which commissioners are specially appointed under this Act shall, on request, be furnished, free of charge, by any officer in any such department or office or by any agent by whom the same are payable, with true accounts of any salaries, fees, wages, perquisites, profits, pensions, or stipends chargeable under Schedule E.

(b) Every such assessor shall have access to all documents in his department or office which concern any such payments.

(c) Every such assessor may, if he is dissatisfied with any such account as aforesaid, or in any case in which it may be necessary, require, from any person to be charged, an account of any salary, fees, wages, perquisites, profits, pensions, or stipend, within the like period as is limited for the delivery of statements of profits or gains under this Act, and under the like penalty as is provided in the case of failure to deliver such statements.

(2) The assessors shall assess the persons who hold offices, or are entitled to pensions or stipends, in accordance with the annual amount thereof from the documents, accounts and papers in their respective departments, and shall deliver to the respective commissioners, within the time prescribed by them, signed certificates of their assessments, in the manner prescribed in respect of assessors for any parish. The said certificates of assessments shall be verified on oath, and made without concealment or favour upon the assessors and all other persons employed in their respective departments or offices, and upon persons in receipt of pensions and stipends.

(3) Every assessment shall set forth—

- (a) the full and just annual emoluments of every office and employment of profit, and the full annual amount of every pension or stipend;
- (b) the names of the persons entitled thereto; and
- (c) the tax payable in each case.

(4) An assessor who fails to comply with the provisions of this section shall be liable to a penalty not exceeding one hundred pounds and not less than twenty pounds.

Abstracts of
returns.

118.—(1) The clerks to the respective general commissioners shall, with all convenient speed, abstract the particulars contained in the lists and statements delivered to the commissioners, into books provided for the purpose, and according to the forms prescribed by the Commissioners of Inland Revenue.

(2) The abstracts shall contain the names of the persons delivering such lists and statements, and the several amounts of profits returned by them respectively, and shall be delivered to the commissioners.

(3) Every surveyor who has made the prescribed declaration shall be allowed free access to the books of abstract at all reasonable times and may take copies of or make extracts from the same.

119.—(1) The surveyor may examine all statements and assessments made for any parish for any year of assessment, whether the said assessments have been signed and allowed or not.

Power of surveyors to examine assessments and statements.

(2) Every person having the custody of any statement shall, on request of the surveyor, deliver it into his custody, taking his receipt for the same; and every person having the custody of any assessment shall, on the like request, produce the same to the surveyor, who may take charge of it until he has taken such copies or extracts as may be necessary.

120.—(1) The general commissioners shall take into consideration the assessments under Schedules A, B, and E, delivered by the assessors, after they have been examined by the surveyor, and if he has not objected to the assessments and the commissioners are satisfied that they have been made truly and without fraud, and so as to charge the persons, properties, and profits to which they relate with the full tax which ought to be charged, they shall sign and allow them.

Allowance of assessments under Schedules A, B, and E, by general commissioners.

(2) If the surveyor objects to, and applies for the revision of, any such assessment, and suggests, in writing, to the general commissioners any error, mistake, omission, or fraud in making the same, the commissioners shall, to the best of their judgment, rectify the assessment, so that the proper tax may be fully charged according to the intent and meaning of this Act.

121.—(1) Statements of profits or gains under Schedule D shall, unless an assessment thereon is required to be made by the special commissioners, be laid before the additional commissioners.

Assessments under Schedule D.

(2) Within a reasonable time after the surveyor has examined the statements, the additional commissioners shall appoint meetings for the consideration of all such statements as are then, or from time to time, delivered to them.

(3) If—

(a) the additional commissioners are satisfied that a statement has been bonâ fide made in accordance with this Act, and so as to enable them to assess the person with the full tax which ought to be charged; and

(b) no information is given to the additional commissioners as to the insufficiency of the statement, and the surveyor makes no objection thereto, which he is hereby authorised to make for sufficient cause,

the additional commissioners shall direct an assessment to be made in accordance with the statement :

Provided as follows :—

(i) If the surveyor then declares himself dissatisfied with the determination of the said additional commissioners, as not being in accordance with the true intent and meaning of this Act. he may require

them to state and sign a case, giving their determination thereon, for the opinion of the general commissioners for the division, which they shall sign and state accordingly :

- (ii) The case so stated and signed shall be delivered to the surveyor, who shall transmit it to the general commissioners. The general commissioners shall, with all convenient speed, return the case with their opinion subscribed thereon, and the assessment shall be altered or confirmed accordingly.

(4) If—

- (a) a person makes default in the delivery of a statement in respect of any tax under Schedule D with which he has not been otherwise charged ; or
 - (b) the additional commissioners are not satisfied with a statement which has been delivered, or have received any information as to its insufficiency ; or
 - (c) the surveyor makes an objection in writing to a statement as aforesaid, setting forth the cause thereof,
- the additional commissioners shall make an assessment on the person concerned in such sum as, according to the best of their judgment, ought to be charged on him.

(5) The additional commissioners may refer any statement to the general commissioners, without making any assessment thereon, by delivering to them a case in writing setting forth the matters in question, either of law or of fact, relating thereto, and the general commissioners shall proceed to enquire into the merits of such statement, in the like manner as they are authorised to do in the case of an appeal against an assessment, and thereupon an assessment shall be made in accordance with the determination of the general commissioners. .

(6) The surveyor may, at all seasonable times, examine any assessment made by the additional commissioners before it is delivered to the general commissioners, and, if he discovers any error requiring amendment, he shall certify the same to the commissioners by whom the assessment was made, who, on sufficient cause shown to them, shall make any amendment which they consider is required.

(7) If the surveyor makes an objection in writing to the additional commissioners, which he is hereby authorised to do upon sufficient cause, as to the amount of an assessment made by them, they shall certify his objection, together with their reasons for making the assessment, and any information they have obtained respecting it, to the general commissioners.

(8) The surveyor shall give notice of his objection and particulars thereof to the person assessed, in order that he may appear before the general commissioners in support of the assessment.

out and entered in books provided for the purpose, certificates of assessments, in the form prescribed by the Commissioners of Inland Revenue, distinguishing the parish for which each assessment is made, and containing—

- (a) the names, surnames, and addresses of the persons assessed, progressively distinguished by numbers or letters; and
- (b) the sums which ought to be paid by them respectively.

(2) The assessments shall be signed by the additional commissioners, and shall be delivered from time to time, together with the statements delivered by the persons assessed, and any particulars furnished by the respective assessors relating to the assessments, under cover sealed up, to the general commissioners, but no notice of any such assessment shall be delivered to any person assessed until fourteen days after the surveyor has had notice of the delivery of the assessments, so signed as aforesaid, to the general commissioners.

(3) The assessments under Schedule D, certified and delivered by the additional commissioners to the general commissioners shall be allowed and confirmed by the general commissioners after the time for hearing appeals against such assessments has expired.

123.—(1) A person chargeable under Schedule D, who does not claim the exemption granted in a case where the total income from all sources does not exceed one hundred and thirty pounds a year, may require that all proceedings in order to an assessment upon him under that schedule shall be taken before the special commissioners, instead of before the additional or the general commissioners, and in that case shall deliver a notice of his request to the assessor of the parish, together with the statement of his profits or gains, for transmission to the surveyor of the district. The notice and statement shall be delivered within the time limited by the general notice under this Act for delivery of lists and statements.

Right of persons chargeable under Schedule D to be assessed by the special commissioners.

(2) The surveyor shall, after examining the statement, make an assessment to the best of his judgment, and deliver a certificate thereof, together with the statement, to the special commissioners, who, after examination thereof, shall sign and allow such an assessment as appears to them just and proper, which shall be subject to appeal as hereinafter provided.

(3) The special commissioners shall notify the amount of the charge to the person charged, who shall pay the tax to the proper officer.

124. Assessments in respect of the annual value or profits or gains arising from a railway shall be made by the special commissioners, who shall notify their assessment to the secretary or other officer of the company upon which it is made, and the amount of the assessment shall be paid, collected, and levied in like manner as any other assessment made by the special commissioners.

Special commissioners to assess profits of railway companies

Additional Assessments.

Additional
assessments

125.—(1) If the surveyor discovers—

that any properties or profits chargeable to tax have been omitted from the first assessments; or
that a person chargeable has not delivered any statement, or has not delivered a full and proper statement, or has not been assessed to tax, or has been undercharged in the first assessments; or
that a person chargeable has been allowed, or has obtained from and in the first assessments, any allowance, deduction, exemption, abatement, or relief not authorised by this Act,

then and in every such case—

(i) where the tax is chargeable under Schedule A, B, or E :—

(a) If the first assessments have not been signed and allowed, the surveyor shall amend the assessment and assess the person liable to the full amount, and at the full rate of tax, at which he ought to be charged;

(b) If the first assessments have been signed and allowed, the surveyor shall certify the particulars to the general commissioners, who shall sign and allow an additional first assessment in accordance therewith :

Provided that any such additional first assessment shall be subject to appeal and other proceedings as in the case of a first assessment :

(ii) where the tax is chargeable under Schedule D, the additional commissioners shall make an assessment, on the person chargeable, in an additional first assessment, in such a sum as, according to their judgment, ought to be charged, and any such assessment shall be subject to objection by the surveyor, and to appeal.

(2) An assessment may be amended, or an additional first assessment may be made at any time not later than three years after the expiration of the year of assessment.

(3) Any assessments not made at the time when the first assessments are signed and allowed shall, as soon as they are made, be added to the first assessments, and to the respective duplicates thereof, by means of separate forms of assessment and duplicate.

Surcharges.

Certificates
and notices
of surcharges.

126.—(1) If the surveyor discovers that a person liable to tax has not been charged in respect thereof in any first or additional first assessment, he may, at any time within three years after the expiration of the year of assessment for which

that person ought to have been charged, surcharge, to the best of his judgment, the person liable, to the amount which ought to have been charged for that year.

(2) In every such case the surveyor shall certify the particulars of the omission, and of the surcharge, to the general commissioners, and shall give to any person so surcharged notice of the surcharge and particulars thereof.

(3) The general commissioners, upon the delivery of the certificate and upon oath being made, by the surveyor or some other credible witness, that service of the notice of surcharge has been duly made upon the person surcharged, shall sign and allow the certificate, as hereinafter prescribed, subject to appeal.

(4) Any such certificate of surcharge shall not be signed or allowed, nor shall any appeal against the surcharge be heard, by the general commissioners, before the expiration of ten days after service of the notice of surcharge.

(5) The certificate of the surveyor, together with the oath of service of the notice of surcharge, shall be sufficient proof of the contents thereof, unless, on the production of the notice to the general commissioners, the contrary is shown by the person surcharged, and no other proof than as aforesaid of the contents of any such notice shall be required before the certificate is signed and allowed, or on appeal therefrom, or in any matter relating thereto.

(6) The oath of service of notice of surcharge shall be to the effect that a notice was duly served, upon each person mentioned in the certificate, containing the particulars as set forth therein, on the day or days mentioned in the certificate.

127.—(1) A person to whom such a notice of surcharge has been given may, whether he has previously delivered a statement or not, within ten days from the service of the notice—

Power of person surcharged to make an amended return.

(a) deliver to the surveyor a true and perfect return, containing all the particulars required by this Act; or

(b) give notice in writing to the surveyor that he abides by the statement previously delivered by him.

(2) To such return or notice shall be annexed a declaration signed by the person to whom the notice of surcharge was given and further signed and attested by one or more credible witnesses, and the declaration shall state, as the case may require—

(a) the grounds and cause of the neglect to deliver a statement; or

(b) the grounds and cause of every omission made, or stated in the notice of surcharge to have been made, in any statement delivered by him; or

(c) the grounds and cause of every claim of exemption, abatement, relief, allowance, or deduction made in any such statement; and

(d) that the statement by which he abides, or the return to which the declaration is annexed, is a true and

perfect return of all particulars required by this Act, to the best of the judgment and belief of the declarant; and

(e) that any neglect, omission, or claim was not made with intent to defraud the revenue.

(3) If a person, in any such declaration as aforesaid, wilfully and fraudulently declares anything which is false, he shall be guilty of a misdemeanour, and shall be liable to imprisonment not exceeding six months, and to a fine not exceeding treble the amount of tax for which he has been surcharged, as the court shall order.

The indictment for any such misdemeanour shall be laid in the county in which the declaration was exhibited to the general commissioners.

(4) If the surveyor is satisfied with the statement or return and the declaration, he may certify his satisfaction therewith to the general commissioners, and the commissioners shall thereupon cause the person surcharged to be charged on the amount set forth in the statement or return, in single rate of tax.

Power of
surveyor to
object to
amended
return or
declaration.

128.—(1) The surveyor may object to any such statement, return, or declaration, and in that case—

(a) he shall serve notice of objection on the person surcharged; and

(b) he shall certify the statement or return and the declaration, together with the cause of his objection, to the general commissioners.

(2) The general commissioners shall thereupon cause a charge to be made, in accordance with the said certificate of objection, and no abatement shall be made therefrom, except upon an appeal by the person surcharged.

Allowance of
surcharges.

129.—(1) If, within ten days after the service of the notice of surcharge, the person surcharged delivers a return and declaration to which the surveyor objects, that delivery shall operate as a notice of appeal to the general commissioners against the surcharge.

(2) If the person surcharged does not, before the expiration of ten days after service of the notice of surcharge, deliver a return or declaration, the general commissioners may, if he or his agent appears upon the day appointed for hearing appeals against surcharges and delivers a return and declaration as is herein required, hear and determine the matter, although the person surcharged has not given notice of his intention to appeal.

(3) If, upon the said day, neither the person surcharged nor his agent appears, or in default of the delivery of a return or declaration as aforesaid, the general commissioners shall confirm the certificate of surcharge.

(4) If—

(a) the commissioners do not meet before the time limited for the hearing of appeals from the surcharges of the surveyor; or

(b) the surveyor has not had notice of a meeting of the commissioners,

the commissioners shall, at their next subsequent meeting, sign and allow the certificates, and afterwards hear and determine all appeals therefrom.

(5) No surcharge shall be allowed and signed unless the certificate thereof has been delivered to the general commissioners within three years after the expiration of the year of assessment in respect of which the surcharge is made.

(6) In default of a meeting of the commissioners, the delivery of a certificate of surcharge by the surveyor to their clerk shall be a sufficient delivery.

130.—(1) A certificate of surcharge, as aforesaid, shall be sufficient authority to the general commissioners for causing supplementary assessments to be made from time to time. Supplementary assessments.

(2) Supplementary assessments shall include—

(a) all surcharges according to the certificates of surcharge, amended in cases requiring amendment, according to the determination of the commissioners;

(b) all treble tax, or any part thereof, assessed over and above the rate or rates of tax prescribed; and

(c) all penalties imposed by the commissioners for offences under this Act.

Weekly Wage-earners.

131. The Commissioners of Inland Revenue may make regulations generally, with respect to the assessment, charge and collection of income tax, in the case of weekly wage-earners to whom the provisions of this Act with regard to quarterly assessment apply, and with respect to the procedure to be adopted for the purpose, and may, in particular, by those regulations in the case of those weekly wage-earners, provide for assessment and charge by the surveyor, and for collection by a collector appointed by them, and for the application of the provisions and rules applicable to Schedule E, in cases where those provisions and rules are not otherwise applicable, but the right of appeal to the general commissioners shall not be affected. Power of Commissioners of Inland Revenue to make regulations as to weekly wage-earners.

Provisions against Fraudulent Practices.

132.—(1) Where a person who ought to be charged with tax, as directed by this Act, is not duly assessed and charged by reason that he has— Penalty for fraudulent conversion of property or making fraudulent statements, &c.

(a) fraudulently changed his place of residence or fraudulently converted, or fraudulently released, assigned, or conveyed any of his property; or

- (b) made and delivered any statement or schedule which is false or fraudulent; or
- (c) fraudulently converted any of his property, which was chargeable, by altering any security relating thereto or by fraudulently rendering it temporarily unproductive, in order not to be charged for the same or any part thereof; or
- (d) been guilty of any falsehood, wilful neglect, fraud, covin, art or contrivance whatsoever,

such person shall, on proof thereof to the general commissioners for the division in which he has been charged, or, if he has not been charged, then for any division in which he is chargeable, be assessed and charged treble the amount of the charge which ought to have been made upon him :

Provided that, if any charge has been made, but that charge is less than the charge which ought to have been made, such person shall be assessed and charged, over and above the former charge, treble the amount of the difference between the charge which was made and the charge which ought to have been made, such amount to be added to the assessment.

(2) A person who knowingly and wilfully aids, abets, assists, incites or induces another person to make or deliver a false or fraudulent account, statement, or declaration, of or concerning any profits or gains chargeable, or the yearly rent or value of any lands, tenements, hereditaments, or heritages, or any matters affecting any such rent or value, shall for every such offence forfeit the sum of fifty pounds.

PART VII.

APPEALS.

Prohibition against altering assessments except on appeal.

133.—(1) (a) Save where expressly authorised by this Act, the general commissioners shall not alter any assessment before the time for hearing and determining appeals, and then only in cases of assessments appealed against, and in accordance with their determination.

(b) If the clerk to the commissioners or any other person makes, causes, or allows to be made, in any assessment, any unauthorised alteration, he shall incur a penalty of fifty pounds.

(2) An appeal, once determined by the commissioners, shall be final, and neither the determination of the commissioners, nor the assessment made thereon, shall be altered, except by order of the Court when a case has been required as provided by this Act.

(3) Where an objection has been made by the surveyor to an assessment upon any person, and that objection has been dealt with and determined on appeal, the surveyor shall not, thereafter, make any further charge for the same year, upon that person, in respect of the same matter, property, or profits included in the assessment to which the objection, so determined, was made.

134.—(1) As soon as the assessments under Schedules A and B for any parish have been signed and allowed, the general commissioners shall cause notice thereof, and of the day for hearing appeals therefrom, to be given in such manner as they deem expedient. Notices of assessments and time for hearing appeals.

(2) Any such notice may be given—

(a) by delivering a copy of the assessment to the assessor of the parish for inspection by the persons assessed, together with a notice of the day of appeal, to be affixed on or near to the church door or on any other public place in the parish; or

(b) by delivering to each person assessed a notification of the amount of his assessment and of the day of appeal.

(3) With respect to assessments under Schedule D, the general commissioners shall cause a general notice to be fixed up in their office, or left with their clerk, and also to be affixed on or near the door of the church or chapel of each parish or if there be no such church or chapel in any such parish, of the church or chapel of some adjoining parish, limiting a reasonable time for hearing appeals, and, except as otherwise provided in this Act, no appeal shall be heard after the time so limited.

135. Notice of appeal meetings to be held by the general commissioners shall also be given to the surveyor by the clerk to the commissioners. Notice of meetings to hear appeals.

136.—(1) A person aggrieved by any assessment upon him, made by the additional commissioners, or by the assessor for any parish, or by a surveyor, in any first or additional first assessment, or by any objection by the surveyor to an assessment made by the additional commissioners, shall be entitled to appeal to the general commissioners, on giving notice in writing to the surveyor, within twenty-one days after the date of the notice of such assessment or objection. Right of appeal.

(2) Any owner or other person in receipt of the rent of any lands, although not the occupier thereof, who is aggrieved by the amount of the annual value of the lands under Schedule A shall have the same right of appeal to the general commissioners as if the assessment were made upon himself.

(3) If it be shown to the satisfaction of the general commissioners that owing to absence, sickness or other reasonable cause, any person has been prevented from appealing in due time, or from attending at the hearing of an appeal on the day fixed for that purpose, they may postpone the hearing of his appeal for such reasonable time as they think necessary, or may admit the appeal to be made by any agent, clerk or servant on his behalf.

(4) (a) On the application of any person who has been assessed, and who has removed from the division in which the assessment was made, without having appealed in that division,

the Commissioners of Inland Revenue may, if they think fit, authorise the commissioners of the division to which that person has removed to hear and determine his appeal against the assessment, and those commissioners shall proceed accordingly.

(b) Any sum from which the appellant may not be relieved on such appeal; shall be recovered and levied as if the appeal had been heard and determined by the commissioners of the division in which the assessment was made.

Procedure
on appeals.

137.—(1) The general commissioners shall cause notice of the day for hearing appeals to be given to every appellant, and shall meet together for the hearing of appeals from time to time, with or without adjournment, until all appeals have been determined.

(2) The surveyor and the assessor may attend every appeal, and shall be entitled—

(a) to be present during all the time of the hearing, and at the determination of the appeal; and

(b) to produce any lawful evidence in support of the assessment or surcharge; and

(c) to give reasons in support of the assessment or surcharge.

(3) (a) Upon any appeal, the general commissioners may permit any barrister or solicitor to plead before them on behalf of the appellant or officers, either *vivâ voce* or in writing, or may hear any accountant.

(b) If the general commissioners refuse to permit a barrister or solicitor to plead before them, or to hear any accountant, the appellant may, in lieu of proceeding with his appeal before them, appeal to the special commissioners, who shall hear the barrister, solicitor, or accountant.

(c) In this subsection "accountant" means a person who has been admitted a member of an incorporated society of accountants.

(4) If, on an appeal, it appears to the majority of the commissioners present at the hearing, by examination of the appellant on oath or affirmation, or by other lawful evidence, that the appellant is overcharged by any assessment or surcharge, the commissioners shall abate or reduce the assessment or surcharge accordingly, but otherwise every such assessment or surcharge shall stand good.

(5) If, on any appeal, it appears to the commissioners that the person assessed or surcharged ought to be charged in an amount exceeding the amount contained in the assessment or surcharge they shall charge him with the excess.

(6) (a) Appeals against surcharges shall be heard and determined in like manner as appeals against first assessments.

(b) If a surcharge is allowed on appeal by the general commissioners, in whole or in part, the assessment shall be made upon the amount of the surcharge allowed in treble the rate of tax prescribed.

Provided that, if the commissioners are of opinion—

- (i) that the assessment might have been amended by the surveyor by means of the original statement of the appellant;
- (ii) that the alleged default, neglect, or omission, or the claim of exemption, abatement, relief, allowance, or deduction was not wilfully made with intent to defraud the revenue;
- (iii) that the appellant was prevented from making an amended return in due time by absence, sickness, or other sufficient cause;
- (iv) that there was reasonable cause of doubt or controversy, on the part of the appellant, on the subject-matter of appeal;

the commissioners may remit the treble rate of tax, in whole or in part, and may charge at the single rate of tax only.

138.—(1) If on appeal against an assessment under Schedule A or Schedule B any dispute arises as to the annual value of any lands, tenements, hereditaments, or heritages, the general commissioners may, if they consider it necessary, and shall, if required by the appellant, direct the appellant to cause a valuation to be made by a person of skill named by them, and may require the same to be verified on the oath of such person, and the annual value shall be determined in accordance with that valuation.

Power to cause land to be valued on appeal.

(2) If the appellant does not proceed, with effect, to cause such valuation to be made, the commissioners shall determine the annual value according to the best of their judgment.

(3) The costs and charges of any such valuation shall abide the final determination of the commissioners, and, if the value so found exceeds the value alleged by the appellant, the commissioners may order him to pay the costs and charges of the valuation, but if they are of opinion that such costs and charges have not been incurred through any default of the appellant, they shall issue an order for the payment of the said costs and charges by the Commissioners of Inland Revenue.

(4) This section shall not apply within the administrative county of London.

139.—(1) If the general commissioners have received notice of appeal against an assessment made by the additional commissioners, or see cause to allow the objection of the surveyor to any such assessment, they shall issue a precept to the appellant ordering him to deliver to them, within the time limited by the precept, a schedule containing such particulars, for their information, as they may demand under the authority of this Act respecting—

Power of general commissioners on appeal to issue precepts.

- (a) the property of the appellant; or
- (b) the trade, profession, employment or vocation carried on or exercised by him; or

(c) the amount of his profits or gains, distinguishing the particular amounts derived from each separate source; or

(d) any deductions made in arriving at his profits or gains, which particulars the said general commissioners are hereby empowered and required to demand at their discretion whenever the same shall appear to them necessary, for the purposes mentioned in this Act.

(2) The general commissioners may issue further precepts whenever they consider it necessary for the purposes aforesaid, until complete particulars have been furnished to their satisfaction.

(3) A person to whom a precept is issued shall deliver the schedule required, within the time limited, and in default thereof, shall forfeit a sum not exceeding twenty pounds and treble the tax at which he ought to be charged.

(4) Any surveyor may, at all reasonable times, inspect and take copies of or extracts from any schedule.

Power to
amend state-
ments or
schedules.

140.—(1) A person who has delivered a statement or schedule and discovers any omission or wrong statement therein, may deliver an additional statement or schedule rectifying the same, and shall not thereafter be liable to any proceeding by reason of his omission or wrong statement.

(2) A person who has not delivered a statement or schedule, within the time limited, may deliver it at any time before proceedings for recovery of a penalty, incurred in respect of such non-delivery, have been commenced, and thereafter no such proceedings shall be taken.

(3) (a) If proceedings for recovery of any such penalty have been commenced before the general commissioners, they may, on proof to their satisfaction that no fraud or evasion was intended, stay the proceedings, either on payment of the costs then incurred, or without any such payment.

(b) If proceedings have been commenced in any court, the general commissioners may certify that in their judgment no fraud or evasion was intended, and the court may, on summary application, stay the proceedings, on such terms as to the court may seem fit.

(4) If a person has delivered an imperfect statement or schedule, and satisfies the general commissioners that there is a sufficient reason why a perfect statement or schedule cannot be delivered within due time, the commissioners shall extend the time for delivery as from time to time they think fit. During any such extension of time, a person who has delivered as perfect a statement or schedule as from the nature of the case he was able to deliver, shall not be liable to any penalty for not having delivered a statement or schedule within the time limited.

Objection by
surveyor to
schedules.

141.—(1) The surveyor may, within a reasonable time to be allowed by the commissioners to whom an appeal is made after examination by him of any schedule, object to such schedule

or any part thereof, and in that case shall state, in writing, the cause of his objection, according to the best of his knowledge or information.

(2) In every such case, he shall give notice in writing of his objection, to the person to be charged in order that he may, if he thinks fit, appeal against the same. The notice shall be under cover and sealed, and addressed to the person to be charged.

(3) No assessment shall be confirmed or altered until any appeal against such objection has been heard and determined.

142. If—

(a) the commissioners to whom an appeal is made see cause to disallow an objection of the surveyor to a schedule; or

(b) on the hearing of an appeal, the commissioners are satisfied with the assessment made by the additional commissioners, or if, after the delivery of a schedule, they are satisfied therewith, and have received no information as to its insufficiency,

they shall direct the assessment to be confirmed or to be altered in accordance with any such schedule, as the case may require.

Power on
appeal to
confirm or
amend as-
sessment.

143.—(1) Whenever the general commissioners are dissatisfied with an assessment delivered to them by the additional commissioners or with a schedule, or if they require further information relating thereto, they may, at any time and from time to time, by precept, put any questions in writing concerning the assessment or schedule, or any matter which is contained or ought to be contained therein, or concerning any deductions made in arriving at the profits or gains, and the particulars thereof, and may require true and particular answers in writing, signed by the person to be charged, to be given within seven days after the service of the precept.

Power of
putting
questions
as to assess-
ments or
schedules.

(2) (a) The person to be charged shall, within the time limited, either answer any such questions in writing signed by him, or shall tender himself to be examined orally before the commissioners, and may object to, and refuse to answer, any question, but the substance of any answer or answers given by him orally shall be taken down in writing in his presence, and be read over to him, and after he has had liberty to amend any such answer or answers he may be required to verify the same on oath to be administered to him by any one of the commissioners, and every such oath shall be subscribed by the person by whom it is made.

(b) Where any clerk, agent or servant of the person to be charged tenders himself, on behalf of such person, to be examined orally before the commissioners, the same provisions shall apply to his examination as in the case of the person to be charged who tenders himself to be examined orally.

144.—(1) The general commissioners may summon any person whom they think able to give evidence respecting an

Power of
general
commis.

sioners to
summon
and examine
witnesses.

assessment made or to be made on another person, to appear before them to be examined, and may examine such person on oath (except the clerk, agent, servant or other person confidentially employed in the affairs of a person to be charged who shall respectively be examined in the same manner, and subject to the same restrictions as in the case of a person to be charged who tenders himself to be examined orally).

(2) The oath shall be that the evidence to be given, touching the matter in question by the person sworn, shall be the truth, the whole truth, and nothing but the truth, and the said oath shall be subscribed by the person by whom it is made.

(3) A person who after being duly summoned—

- (a) neglects or refuses to appear before the commissioners at the time and place appointed for that purpose; or
- (b) appears, but refuses to be sworn or to subscribe the oath; or
- (c) refuses to answer any lawful question touching the matters under consideration,

shall forfeit a sum not exceeding twenty pounds :

Provided that the penalty imposed in respect of any offence under paragraph (b) or (c) hereof shall not apply to any clerk, agent, servant or other person as aforesaid.

Powers of
commis-
sioners in
certain
cases to
determine
liability and
make an as-
sessment.

145. If—

- (a) a person has neglected or refused to deliver a schedule in accordance with a precept of the commissioners; or
- (b) any clerk, agent, or servant of, or any person confidentially employed by, a person to be charged, having been summoned, has neglected or refused to appear before the commissioners to be examined; or
- (c) the person himself, or his clerk, agent, or servant or other person as aforesaid, has declined to answer any question put to him by the commissioners; or
- (d) an objection has been made to a schedule, and the objection has not been appealed against; or
- (e) the commissioners decide to allow any objection made by the surveyor;

the commissioners shall ascertain and settle, according to the best of their judgment, the sum in which the person chargeable ought to be charged, and shall make an assessment and charge accordingly.

Charge of
treble tax
where
assessment
increased.

146.—(1) If the general commissioners—

- (a) have made a charge to tax under Schedule D in respect of a sum in excess of the amount contained in either the statement or the schedule of a person to be charged; or
- (b) discover, from the information of the surveyor, or otherwise, that a charge to tax in respect of a sum

in excess of either such amount ought to be made, and an assessment is made, at any time within the year of assessment or within three years after the expiration thereof,

they may, unless the person to be charged proves to their satisfaction that the omission by him did not proceed from any fraud, covin, art or contrivance or any gross or wilful neglect, charge that person, in respect of such excess, in a sum not exceeding treble the amount of the tax on the amount of the excess.

(2) If the person to be charged has neglected or refused to deliver a statement or schedule, the said commissioners may charge him in a sum not exceeding treble the amount of the tax with which, in their judgment, he ought to be charged. Such sum shall be added to the assessment and applied in the same manner as other increased charges are applied.

147.—(1) Where proceedings in order to an assessment under Schedule D are taken before the special commissioners, the person assessed, or the surveyor, may appeal against the assessment signed and allowed by those commissioners, in like manner, and under the like provisions, as in the case of appeals against assessments made by the additional commissioners.

Appeals
against
special as-
sessments.

(2) Any such appeal shall be determined by the special commissioners, and if either the person assessed, or the surveyor, thereupon expresses dissatisfaction with their determination as being erroneous in any particular, the special commissioners shall, if required to do so, state and sign a special case, setting out the questions which arose on the appeal, and their determination thereon, and transmit it to the Commissioners of Inland Revenue for their opinion. The Commissioners of Inland Revenue shall subscribe their opinion on the case transmitted to them, and their decision shall be final and conclusive, subject to any relevant provisions of this Act relating to the statement of a case for the opinion of the High Court, and the assessment made shall be altered or confirmed accordingly.

148.—(1) An appeal against—

- (a) an assessment under Schedule D, or an objection by a surveyor to such an assessment, or a surcharge under that Schedule;
- (b) an assessment in respect of any concern described in Rules 1 and 2 of No. III. of Schedule A,

Other
appeals to
special com-
missioners.

may be made to the special commissioners, instead of to the general commissioners, on due notice in writing being given to the surveyor, within the time limited for notices of appeal to the general commissioners in similar cases.

(2) Every such appeal shall be heard and determined by the special commissioners, and their determination shall be final and conclusive, subject to the provisions of this Act relating to the statement of a case for the opinion of the High Court :

(3) Provided that no claimant for the exemption granted by this Act, in a case where the total income does not exceed one hundred and thirty pounds a year, shall be allowed to appeal to the special commissioners, but every such claim shall be heard and determined by the general commissioners.

Statement of
case for
opinion of
High Court.

149.—(1) (a) Immediately after the determination by the general commissioners, or by the special commissioners, of an appeal under this Act, the appellant or the surveyor, if dissatisfied with the determination, as being erroneous in point of law, may declare his dissatisfaction to the commissioners who heard the appeal.

(b) Having declared his dissatisfaction, he may, within twenty-one days after the determination, by notice in writing addressed to their clerk, require the commissioners to state and sign a case for the opinion of the High Court thereon.

(c) The party requiring the case shall pay to the clerk to the commissioners a fee of twenty shillings for and in respect of the same, before he is entitled to have the case stated.

(d) The case shall set forth the facts and the determination of the commissioners, and the party requiring it shall transmit the case, when stated and signed, to the High Court, within seven days after receiving the same.

(e) At or before the time when he transmits the case to the High Court, the party requiring it shall send notice in writing of the fact that the case has been stated on his application, together with a copy of the case, to the other party.

(2) (a) The High Court shall hear and determine any question or questions of law arising on the case, and shall reverse, affirm, or amend the determination in respect of which the case has been stated, or shall remit the matter to the commissioners with the opinion of the Court thereon, or may make such other order in relation to the matter, and may make such order as to costs as to the Court may seem fit.

(b) The High Court may cause the case to be sent back for amendment, and thereupon the case shall be amended accordingly, and judgment shall be delivered after it has been amended.

(c) Subject to rules of Court, the authority and jurisdiction of the High Court may be exercised by a judge of the High Court sitting in chambers, and either in vacation or in term time.

(3) An appeal shall lie from the decision of the High Court or of any judge thereof to the Court of Appeal and thence to the House of Lords, and in Scotland, from the decision of the Court of Session, as the Court of Exchequer in Scotland, to the House of Lords.

(4) Notwithstanding that a case has been required to be stated or is pending before the High Court, tax shall be paid in accordance with the assessment of the commissioners who have been required to state the case :

Provided that, if the amount of the assessment is altered by the order or judgment of the High Court, then—

- (a) if too much tax has been paid, the amount overpaid shall be refunded with such interest, if any, as the High Court may allow; or
- (b) if too little tax has been paid, the amount unpaid shall be deemed to be arrears of tax (except so far as any penalty is incurred on account of arrears), and shall be paid and recovered accordingly.

150. As soon as the general commissioners have signed and allowed any assessments, and the time limited for hearing appeals therefrom has elapsed, the clerk shall number the pages in each book of assessment and duly cast up and total the sums in each page. Books of assessment.

151.—(1) A person who, either on his own account, or on behalf of another person, has been assessed to tax, and is by any error or mistake again assessed for the same year for the same cause and on the same account, may apply to the general commissioners, acting for the division comprising the parish in which the erroneous assessment was made, for relief, and the said commissioners on proof to their satisfaction of the double assessment shall cause the said assessment, or so much thereof as constitutes a double assessment, to be vacated. Provision against double assessment.

(2) If it appears, to the satisfaction of the Commissioners of Inland Revenue, that a person has been assessed more than once for the same cause and for the same year, they shall direct the whole, or such part of any such assessment as appears to be an overcharge, to be vacated, and thereupon the same shall be vacated accordingly.

(3) If it is proved, to the satisfaction of the Commissioners of Inland Revenue, that any such double assessment as aforesaid has been made, and that payment has been made on both assessments, they shall order the amount of the overpayment to be repaid to the applicant.

152.—(1) The general commissioners shall, yearly, cause to be made out by their clerk, in the prescribed form, and to be transmitted to the Commissioners of Inland Revenue, two duplicates of the charge by all the assessments made in the year. Charge duplicates.

(2) The duplicates shall be made for every parish for which a separate assessment may be made.

(3) Every duplicate shall contain—

- (a) the names and surnames of the respective assessors and collectors for each parish; and
- (b) the full amount of the sums given in charge to each collector throughout the whole year, without any discharge, diminution, or defalcation.

(4) The duplicates shall be made out and transmitted as soon as possible after the expiration of the year, and not later

than one month after the expiration of the time limited for hearing appeals against any assessment contained therein.

(5) A clerk who—

(a) neglects or refuses to make out and transmit the duplicates within the time and in the manner directed by this section; or

(b) wilfully makes a false entry in or omits any sum from a duplicate,

shall incur a penalty of one hundred pounds, and on conviction shall be dismissed from his office.

PART VIII.

COLLECTION.

Delivery of
duplicates of
assessments.

153.—(1) As soon as any assessments have been signed and allowed by the general commissioners, and the time for hearing appeals against the same has expired, the clerk to the commissioners shall duly prepare, on the prescribed forms, two duplicates thereof, and the commissioners shall forthwith sign and seal them.

(2) The assessments shall be kept by the clerk for the use of the commissioners, and the commissioners shall deliver one of the two duplicates to the surveyor for the district, and the other to the collector for the parish for which the assessments were made, together with a warrant, in the prescribed form, for collecting and levying the tax charged.

(3) Where a collector has been required to give security, the duplicates and warrants shall not be delivered to him until he has given that security.

Certificates
of special
assessments.

154.—(1) An extract from any assessment made by the special commissioners, certified under the hand of their clerk, in such form as the Commissioners of Inland Revenue may prescribe, shall be sufficient authority to the proper officer to whom that extract is transmitted to receive, bring to account, and give discharges for the tax included in the extract and paid to him.

(2) If payment is not made to the proper officer, the special commissioners shall make a duplicate of the assessment and deliver it, together with their warrant for levying the amount of tax due, to the collector for the parish in which the person charged resides, who shall levy the same in accordance with the warrant.

Collection of
tax in public
departments.

155.—(1) Where in any public department, or in any office for which commissioners are specially appointed, the appointment of collectors is authorised, the respective commissioners shall cause duplicates of assessment and warrants for the collection of tax in the prescribed form to be made and delivered to the collectors, who shall be authorised to demand and levy the tax in the same manner as in the case of collectors for any parish.

(2) Where the tax on any salaries, fees, wages, perquisites, or profits of any public office, or any annuities, pensions, or stipends, is deducted, the respective commissioners shall cause similar duplicates to be delivered to the proper officers in the departments or offices concerned, and those officers shall keep true accounts of and be answerable for all tax so deducted, and such tax shall be accounted for and paid to the Commissioners of Inland Revenue.

156.—(1) Where a person, charged under Schedule D, has declared his intention to pay the tax under a number or letter to the proper officer within the time limited for payment, and the commissioners are satisfied with his declaration, they shall deliver to him a certificate specifying the amount of tax to be paid. Collection of assessments under number or letter.

(2) The certificate shall be numbered or lettered in correspondence with the entry in the book of assessments to which it relates, and shall not name or describe the person charged.

(3) The general commissioners shall deliver to the proper officer duplicates of the assessments made by them, containing the sums charged on persons to whom certificates, as aforesaid, have been delivered, without naming any such persons, together with warrants for the receipt of the tax when it becomes payable.

(4) The tax payable on such assessments shall be paid to the proper officer, before the time limited for payment, and the production of the certificate shall be sufficient authority to the said officer to receive the amount therein specified.

(5) On payment of any such amount the said officer shall give a certificate of payment, identified by the number or letter marked on the certificate, but not naming or describing the person on whose behalf payment is made.

(6) The certificate given on any such payment of tax shall be delivered by the person charged to the general commissioners or their clerk, at their office, before the time limited for payment, and a receipt shall be given for the same. The receipt shall be a sufficient discharge for the money certified to have been paid.

(7) Whenever the tax in respect of any such assessment becomes due and in arrear, the general commissioners shall cause that assessment to be added to the duplicates in the hands of one of the respective collectors to whom has been intrusted the collection of tax charged on persons by name, and the tax on that assessment shall be recovered and levied in the same manner, and under the like provisions and powers, as the tax charged on persons by name.

157.—(1) Income tax contained in an assessment for any year shall, except as otherwise provided in this section, be payable on or before the first day of January in that year, but tax included in an assessment for any year, which is signed and allowed on or after the first day of January, shall be deemed to be due and payable on the day next after the day on which the assessment is signed and allowed. Tax, when due.

(2)—(a) Tax for any year shall, in cases to which this subsection applies, instead of being payable on or before the first day of January in that year, or on such other date as is specified in subsection (1) of this section, be payable in two equal instalments, the first on or before the first day of January in that year, or on such other day as aforesaid, and the second on or before the following first day of July;

But where the assessment is not signed and allowed until after the said following first day of July, this subsection shall not have effect, and the tax shall be due and payable as provided in subsection (1) of this section;

(b) This subsection applies in cases of tax charged under No. I. or No. II. of Schedule A and tax charged on any individual or firm under Schedule B in respect of lands occupied for husbandry only, and tax charged on any individual or firm under Schedule D, or the rules thereof, in respect of the profits or gains of any trade or of any profession or vocation, and tax charged on any individual in respect of any office or employment, whether under Schedule D or Schedule E, except individuals whose tax is deducted at definite intervals of less than half a year, and weekly wage-earners whose tax is, under this Act, assessed and charged quarterly.

(c) The provisions of this Act as to the recovery of tax shall apply to each instalment of the tax, in the same manner as they apply to the whole amount of the tax.

(3) Railway companies in England and Ireland shall pay tax under Schedule D by four quarterly payments, that is to say, on or before the twentieth days of June, September, December, and March respectively, in each year.

(4) The tax payable by weekly wage-earners, who under the provisions of this Act are to be assessed and charged quarterly, shall be payable as prescribed by any regulations made by the Commissioners of Inland Revenue.

Issue of
demand
notes and
receipts.

158.—(1) Every collector shall, when the tax become due and payable, make demand of the respective sums contained in the duplicates, and given to him in charge to collect, from the persons charged therewith, or at the places of their last abode, or on the premises in respect of which the tax is charged, as the case may require.

(2) A collector of tax under Schedules A and B shall, in the demand note delivered before payment thereof, distinctly describe the property to which the assessment relates, and specify the amount of the assessment and the rate at which the tax is charged thereon.

(3) On payment of the tax the collector shall, without charge, give a receipt under his hand, on the prescribed form, and if he has failed to give the particulars required by subsection (2) of this section in the demand note, he shall give them in the receipt.

159. Any person, on production to the proper officer of his notice or certificate of assessment, may pay to him in advance any sum therein charged upon him under Schedule D, and such officer, on request made at the time of payment, may make an allowance from the amount payable, calculated at the rate of two pounds ten shillings per cent. per annum on that amount for the period commencing on the day when the payment was made and ending on the day limited for payment, and such officer shall give a certificate of payment, specifying the amount discharged and the amount of the allowance, by reference to the name, or the number or letter, appearing on the notice or certificate of assessment respectively.

Payment of
tax may be
made in
advance
subject to
discount.

160. If the Commissioners of Inland Revenue make arrangements for the collection of tax by means of stamps in any case, they may prepare and issue any stamps required for the purpose, and the provisions (including penal provisions) of the Stamp Duties Management Act, 1891, as amended by any subsequent Act, and section sixty-five of the Post Office Act, 1908, shall apply to any such stamps.

Collection
by means
of special
stamps.

54 & 55 Vict.
c. 38.
8 Edw. 7.
c. 18.

161.—(1) If a person chargeable to tax is an infant, or dies—

Liability of
parents,
guardians,
and personal
representa-
tives.

- (a) the parent, guardian or tutor of the infant shall be liable for the tax in default of payment by the infant; and
- (b) the executor or administrator of the person deceased shall be liable for the tax charged on such deceased person,

and on neglect or refusal of payment any such person so liable as aforesaid may be proceeded against in like manner as any other defaulter.

(2) A parent, guardian or tutor who makes such payment shall be allowed all sums so paid in his accounts, and an executor or administrator may deduct all such payments out of the assets and effects of the person deceased.

(3) If the owner of any lands, tenements, hereditaments, or heritages, occupied by him at the time an assessment for any year under Schedule A was made, dies before payment of the tax, the heirs, executors, administrators, or assigns, or other persons who become entitled on his death, to the rents and profits thereof, shall be liable to pay all arrears of tax due at the time of the death, or, if no arrears are due, the tax payable for the period up to the time of the death, together with, in either case, the tax payable for the remainder of that year, according to their respective interests, without any new assessment.

162.—(1) If a person neglects or refuses to pay the sum charged, upon demand made by the collector in accordance with the assessments and warrants delivered to him, the collector shall, for non-payment thereof, distrain upon the lands, tene-

Distrain by
collector.

ments and premises in respect of which the tax is charged, or distrain the person charged by his goods and chattels, and all such other goods and chattels as the collector is hereby authorised to distrain, without any further authority for that purpose than the warrant delivered to him on his appointment.

(2) For the purpose of levying any such distress, a collector may, after obtaining a warrant for that purpose, under the hands and seals of the general commissioners, break open, in the daytime, any house or premises, calling to his assistance any constable or other peace officer. Every such constable or officer shall, when so required, aid and assist the collector in the execution of the warrant and in levying the distress in the house or premises.

(3) A levy or warrant to break open shall be executed by, or under the direction of, and in the presence of, the collector.

(4) A distress levied by the collector shall be kept for five days, at the costs and charges of the person neglecting or refusing to pay.

(5) If the person aforesaid does not pay the sum due, together with the costs and charges, within the said five days, the distress shall be appraised by two or more inhabitants of the parish in which the distress is taken, or by other sufficient persons, and shall be sold by public auction by the collector or his deputy for payment of the sum due and all costs and charges. The costs and charges of taking, keeping, and selling the distress shall be retained by the collector or his deputy, and any overplus coming by the distress, after the deduction of the costs and charges and of the sum due, shall be restored to the owner of the goods distrained.

(6) If a collector advances and pays over to the proper officer any sum of money on account of tax charged on some other person, whether at the request of that person or not, he may, in default of repayment to him of that sum at any time within six months after the payment, levy the tax in like manner as if that sum of money had not been advanced and paid.

Priority of
claim for
tax over
other
creditors.

163.—(1) No goods or chattels whatever, belonging to any person at the time any tax becomes in arrear, shall be liable to be taken by virtue of any execution or other process, warrant, or authority whatever, or by virtue of any assignment, on any account or pretence whatever, except at the suit of the landlord for rent, unless the person at whose suit the execution or seizure is made, or to whom the assignment was made, pays or causes to be paid to the collector, before the sale or removal of the goods or chattels, all arrears of tax which are due at the time of seizure, or which are payable for the year in which the seizure is made :

Provided that where tax is claimed for more than one year, the person at whose instance the seizure has been made, may, on paying to the collector the tax which is due for one whole

year, proceed in his seizure in like manner as if no tax had been claimed.

(2) In case of neglect or refusal to pay the tax so claimed or the tax for one whole year, as the case may be, the collector shall distrain the goods and chattels, notwithstanding the seizure or assignment, and shall proceed to the sale thereof, as prescribed by this Act, for the purpose of obtaining payment of the whole of the tax charged and claimed, and the reasonable costs and charges attending such distress and sale, and every collector so doing shall be indemnified by virtue of this Act.

164. If lands charged under Schedule A are unoccupied, and no distress can be found thereon at the time the tax is payable, the collector for the time being of the parish in which the lands are situate may at any future time when there is any distress to be found on the lands, enter, seize, and sell, under the same powers as if a distraint had been made on the lands at the time the tax became due and as if the occupier had been in occupation at that time.

Distraint on lands previously unoccupied becoming occupied.

165.—(1) If a person neglects or refuses to pay tax charged upon him by virtue of this Act within ten clear days after demand as aforesaid, and no sufficient distress can be found whereby the same may be levied, the general commissioners may, by warrant under their hands and seals, commit him to prison, there to be kept without bail until payment be made of that sum or security given to their satisfaction for payment thereof, together with such further sum, as the commissioners shall adjudge to be reasonable, for the costs and expenses of apprehending and conveying him to prison; and every such person shall be detained and kept in prison according to the tenor and effect of the warrant.

Commitment of defaulter to prison.

(2) By direction of the Treasury or of the Commissioners of Inland Revenue, the general commissioners shall issue their warrant to the governor of the prison in which any defaulter is detained under their warrant, directing the liberation of the defaulter, and, on receipt thereof, the governor shall forthwith release and discharge him out of custody, if he is under detention for no other cause than as set forth in the warrant of commitment.

166. In Scotland, the following provisions shall have effect :—

Recovery in Scotland.

(1) Upon certificate made to them by the collector for the division, district, or county, that any tax is due and not paid, the general commissioners, or sheriff or sheriff substitute for the county, shall issue a warrant for the said collector recovering the said tax by pouncing the goods and effects of any person entered in the certificate as being a defaulter, and any person who has made default in paying any sum which may be levied on him in respect of tax may be entered in

the certificate as a defaulter, notwithstanding that he was not named in the assessment to tax :

- (2) The warrant shall be executed by the sheriff's officers of the county :
- (3) The goods and effects so poinded shall be detained and kept on the ground, or at the house where the same were poinded, or in such other place of which the owner shall have notice, near to the said ground or house, as the officer so poinding the same shall think proper, for the space of five days, during which time the said goods and effects shall remain in the custody of the said officer, and liable to the payment of the whole tax in arrear and to the costs to be paid to the officer who poinded the same as hereinafter directed, unless the owner from whom the same were poinded shall redeem the same, within the said space of five days, by payment to the officer of the said tax in arrear and costs, to be settled in the same manner as if the said goods and effects had been sold as hereinafter directed :
- (4) The goods and effects so poinded shall, after the expiration of the said five days, be valued and appraised by any two persons to be appointed by the officer (which two persons shall be obliged to value the same, under the penalty of forty shillings sterling for each neglect or refusal), and shall be sold and disposed of, at a sum not less than the value, by the officer who does poind the same :
- (5) The value shall be applied, in the first place to the satisfaction and payment of the tax owing by the person whose goods are so poinded, and, in the second place, to the payment for the trouble of the officer so poinding, at the rate of two shillings per pound of the tax for which the goods shall be so poinded unless the owner from whom the same were poinded shall redeem the same by payment of the appraised value, within the space of five days after the valuation, to the officer who poinded the same :
- (6) In case any surplus remains of the price or value, after payment of the said tax, and after payment of what is allowed to be retained by the officer in manner herein directed, such surplus shall be returned to the owner from whom the goods were poinded :
- (7) In case no purchaser appears at the said sale, then the said goods and effects, so poinded, shall be consigned and lodged in the hands of the sheriff of the county, or his substitute, and if not redeemed by the owner within the space of five days after the consignment in the hands of the said sheriff or sheriff substitute, the same shall be roupé, sold, and disposed of, by order of the sheriff, in such manner, and at such time

and place, as he shall appoint, he always being liable to the payment of the tax to the said collector, and to payment to the officer who shall have poinded the same, for his trouble and expense, as before stated, and to the fees due to the officer, and being, in the third place, entitled to one shilling per pound of the value of the goods so disposed of, for his own pains and trouble, after preference and allowance of the said tax, and of what is appointed to be paid to the officer for his trouble :

- (8) There shall also be allowed, to the officer so poinding, the expense of preserving the said goods and effects, and of maintaining the cattle, if there should happen to be any among the goods and effects so poinded, from the time of poinding the same, during the period allowed to the owner to redeem them, and also the expense of the sale; and in like manner the expense shall be allowed to the sheriff or sheriff substitute, for preserving and maintaining the goods or cattle poinded, during the period that the owner is allowed to redeem, after consignment in his hands, and until the sale thereof, and also the expense of the sale; and where no goods or effects, sufficient for payment of the said tax, can be found to be so poinded, and the person liable neglects or refuses to pay the same, in every such case the commissioners, or the sheriff or sheriff substitute, is hereby authorised, by warrant, to commit such person to prison, there to be kept, without bail, until payment shall be made or security for payment be given :
- (9) Every auctioneer, or seller by commission, selling by auction, in Scotland, any goods or effects whatsoever by any mode of sale at auction, shall, at least three days before he begins any sale by way of auction, deliver or cause to be delivered to the collector within whose district such sale is intended to be, a notice in writing, signed by such auctioneer or seller by auction, specifying therein the particular day when such sale is to begin, and the name and surname of the person whose goods and effects are to be sold, with his place of residence :
- (10) If any such auctioneer or seller by auction shall sell any such goods and effects by way of auction, without delivering the notice hereinbefore required to be delivered, every such auctioneer, or person selling by auction, offending therein shall, for such offence, incur a penalty of fifty pounds.

167.—(1) No moveable goods and effects belonging to any person in Scotland, at the time any tax became in arrear or was payable, shall be liable to be taken by virtue of any poinding,

Priority of
claim for tax
in Scotland
over other
claims.

sequestration for rent, or diligence whatever, or by any assignation, unless the person proceeding to take the said goods and effects pays the tax so in arrear or payable :

Provided that where the tax is claimed for more than one year the person proceeding to take the said goods and effects may on paying the tax for one whole year proceed as he might have done if no tax had been so claimed.

(2) If the said person neglects or refuses to pay the tax so in arrear or payable, or the tax for one whole year, as the case may be, the tax claimed shall, notwithstanding any proceeding at his instance for the purpose of taking the said moveable goods and effects, be recoverable by poinding and selling the said moveable goods and effects under warrant obtained in conformity with the provisions contained in the last preceding section.

Recovery where defaulter has removed or does not reside in the parish where assessed.

168.—(1) Whenever any person has removed to or resides or happens to be in any parish other than the parish in which a charge to tax has been made upon him, and the said tax or any part thereof is in arrear and unpaid, the general commissioners, or the special commissioners acting as general commissioners, for the division comprising the last-mentioned parish, shall sign and transmit, through the Commissioners of Inland Revenue, a certificate of the amount of the tax in arrear and unpaid to the general commissioners, or the special commissioners acting as general commissioners, for the division comprising the first-mentioned parish, whether that parish is or is not in the same part of the United Kingdom, and the said last-mentioned commissioners shall cause the said amount of tax to be raised and levied by and under their warrant, together with the costs and charges attending the same :

Provided that where the first-mentioned parish is within the jurisdiction of the commissioners by whom the charge was made, those commissioners may, by certificate, authorise and direct the collector for that parish to raise and levy upon the person the tax charged and unpaid.

(2) Where no sufficient distress can be found within the division comprising the parish to which any such defaulter has removed or in which he resides or happens to be, the commissioners for that division shall, by warrant under their hands and seals, commit the defaulter to prison in the same manner and under the same powers as if the tax had been charged in that parish.

(3) In this section the expression “ parish ” shall, in Scotland, mean county or burgh, and with respect to the tax contained in any certificate as aforesaid the same shall, in Scotland, be recovered under the provisions of this Act for the recovery of tax in Scotland.

Recovery of tax by proceedings in Court.

169.—(1) Any tax charged under the provisions of this Act may be sued for and recovered, with full costs of suit, from the person charged therewith in the High Court as a debt due to the Crown, or by any other means whereby any debt of record

or otherwise due to the Crown can, or may at any time, be sued for and recovered, as well as by the summary means specially provided by this Act for levying the tax.

(2) Any tax assessed and charged quarterly under the provisions of this Act in respect of weekly wage-earners shall, without prejudice to any other method of recovery under this Act, be also recoverable summarily as a civil debt.

170.—(1) If the tax charged on tithes or teinds is not paid within the time limited, the collector and officer respectively may distrain upon the tithes or teinds or upon any other goods or chattels of the owner of the tithes or teinds wherever found, and may seize, take and sell so much thereof as is sufficient for levying the tax. Every such collector and officer shall have the like powers, for that purpose, as are exercisable in relation to tax in other cases under this Act. Recovery of tax charged on tithes, &c.

(2) (a) Where tax is charged on any composition for, or any rent or payment in lieu of, tithes or teinds, the occupier of the lands and premises charged with the composition, rent, or payments, shall be answerable for the tax so charged, and may deduct the same out of the next payment on account thereof.

(b) Where tax is charged on the profits of manors or royalties, markets or fairs, or on tolls, fisheries or any other annual or casual profits not distrainable, the owner or occupier or receiver of the profits thereof shall be answerable for the tax so charged, and may retain and deduct the same out of any such profits.

(c) In every such case the collector may distrain upon the persons respectively answerable, and may exercise all the powers in that behalf conferred by this Act.

171. Where, under the provisions of this Act, on an application made for the purpose either by a husband or a wife income tax has been charged on the profits or income of the wife as if she were not married, the power to distrain, in the case of non-payment of any income tax payable by the wife, shall extend to the goods and chattels of the husband, as well as to the goods and chattels of the wife : Distrain for tax due from married woman separately assessed.

Provided that no distrain shall be so made on the goods and chattels of the husband unless a written demand for payment shall first have been made on the husband, or left for him at his usual place of residence, and he shall have failed to pay the amount of tax payable by his wife within seven days of such demand.

172.—(1) The Commissioners of Inland Revenue may— Accounting and payments by collectors.

(a) appoint from time to time a day on or before which any collector shall pay over, or account for, the tax and moneys given him in charge to collect, and may postpone the date so appointed ;

(b) require any collector to remit the tax and moneys, either weekly or oftener, in anticipation of the day so fixed ;

- (c) prescribe regulations to be observed by all collectors as regards remittances and the mode of making the same.
- (2) On the day so appointed the collector shall—
 - (a) pay over to the proper officer, or as otherwise required by the Commissioners of Inland Revenue, all moneys received by him as collector which are then in his hands; and
 - (b) deliver to the surveyor schedules of arrears in the prescribed form, signed by him and verified on oath before a general commissioner, setting forth the full name of every person in every parish for which he is collector, from whom he has not received payment of the tax or moneys given him in charge to collect, and the respective sums then in arrear or uncollected from each such person.
- (3) Every collector shall, then or whenever required by the surveyor—
 - (a) produce to the surveyor his duplicates of assessments, showing the respective sums collected and received by him duly written off therein; and
 - (b) answer any lawful question put to him by the surveyor, concerning the tax or moneys given him in charge to collect.

Examination
of collectors
by commis-
sioners.

173. The general commissioners in England may, whenever they think it expedient, and shall, whenever required by the surveyor, call before them any collector whose accounts for any year are not finally closed, and examine him on oath as to the state of his accounts and collection, and shall make such order for the payment of any sum found due by him and appoint such a time for the payment thereof to the proper officer as they consider necessary.

Reports by
surveyors
of failures to
raise tax.

174.—(1) Every surveyor in England, whenever he sees occasion, may report to the general commissioners—

- (a) concerning any matter relating to the conduct of any collector within their division; and
- (b) in every case where there has been a failure—
 - (i) in assessing or charging the tax in any parish, or
 - (ii) in raising or paying the sums charged on any person chargeable in any parish, or
 - (iii) on the part of the clerk to the commissioners in making out any duplicates of assessments, or in doing any other act required by this Act to be done by him.

(2) Every such report shall set forth—

- (a) the particulars of the complaint of the surveyor against the collector or other person complained of; and

- (b) a recommendation by the surveyor as to the action to be taken thereon.

(3) On receipt of any such report the commissioners shall summon a meeting within a reasonable time, and the surveyor shall have notice of, and attend, the meeting, and assist in the consideration of the measures to be taken in the execution of this Act.

175.—(1) Every collector shall make out and deliver to the general commissioners, under his hand, on the prescribed form, a schedule of deficiencies, to be verified on oath, containing—

- (a) the full name and address of every person within his collection from whom he has been unable to collect or receive the tax; and
- (b) the particulars of the sum or sums charged upon, and remaining unpaid by every defaulter, and the particular reason for returning such sum or sums as in default; and
- (c) the particulars of all sums which have been discharged from any assessments for causes specially allowed by this Act.
- (2) The commissioners, after examining the collector on oath shall make out—
- (i) schedules of discharge containing any such sums discharged as aforesaid;
- (ii) schedules of defaulters containing—
- (a) the sum due from each defaulter, and the particulars thereof; and
- (b) the sums not collected by reason of any neglect of the collector, and for which he may be held liable, and for which the parish ought to be re-assessed.

(3) The commissioners shall cause the respective particulars to be entered by their clerk in the respective schedules, on the prescribed forms, and shall sign and seal the schedules.

(4) The commissioners shall transmit all such schedules to the Commissioners of Inland Revenue, and the schedules shall be deposited at the head office of those Commissioners.

(5) A collector shall not insert in any schedule of deficiencies the name of any person as a defaulter to be returned into the High Court, unless he has made oath (which oath shall be endorsed and certified on the schedule) to the following effect, namely, that to the best of his knowledge and belief—

- (a) the sum for which the person is returned in default, is due and wholly unpaid, to the collector or to any other person on his behalf; and
- (b) there are not to be found any goods or chattels of any person liable to the payment of the tax in arrear, or any part thereof, whereby the same, or any part thereof, might be levied.

Schedules of
arrears.

176.—(1) (a) A schedule of arrears may, on the expiration of forty days from the time of its delivery to the surveyor, be certified by the Commissioners of Inland Revenue to the High Court :

Provided that during the said period of forty days—

- (i) notice shall be given by the collector to each defaulter, named in the schedule, that his name has been included therein; and
- (ii) any such defaulter may pay his arrear to the collector, and any arrear so paid shall be discharged from the schedule.

(b) The collector may use any method, allowed by this Act, for the recovery of any arrear included in any such schedule, before the same is certified or forwarded to the High Court.

(2) A schedule of arrears delivered on oath by a collector and certified to the High Court, or a schedule of defaulters made, or purporting to be made, in pursuance of this Act and certified to the High Court by the Commissioners of Inland Revenue, shall be sufficient evidence of a debt due to the Crown, and sufficient authority to a judge of the High Court to cause process to be issued, against any defaulter named in any such schedule, to levy the sum in arrear and unpaid by him.

(3) The production of a schedule of arrears or a schedule of defaulters made, or purporting to be made, in pursuance of this Act, and purporting to contain the name of a defaulter, shall be sufficient evidence that the sum mentioned in the schedule was duly assessed and charged upon the defaulter, and that the same is in arrear and unpaid, and is due and owing to the Crown.

Duties of
collector
on clearing
accounts.

177. A collector shall, on clearing his accounts for the tax, deliver to the Commissioners of Inland Revenue, or to the general commissioners by whom he was appointed, all duplicates of assessments to which those accounts relate, and all books of receipts and counterfoils furnished for his use.

Revocation
of collector's
appointment
and appoint-
ment of
successor.

178.—(1) The general commissioners or the Commissioners of Inland Revenue, respectively, may revoke the appointment of a collector appointed by them whenever, through his wilful neglect, there occurs delay or failure in demanding, receiving, recovering, or paying over the tax or moneys, and in that case, may appoint another collector in his place, with full power to collect any arrears then due.

(2) The said general commissioners or the Commissioners of Inland Revenue, whenever necessary, may revoke such last-mentioned appointment, and appoint a collector in like manner, from time to time and as often as any such collector shall be guilty of such neglect, provided security be taken, if required, as in the case of an original appointment, and provided the like security be taken on every such new appointment as has been required to be taken on the appointment of the collector.

(3) The collector in default shall, when required by the said respective commissioners, deliver up to them or in their presence to the collector appointed in his place, or to the surveyor, all duplicates of assessments which he was charged to collect, and all books, receipts, counterfoils, and vouchers for payment, and shall pay to the proper officer all sums then in his hands, at such time as the said respective commissioners shall appoint.

179.—(1) If a collector fails to pay any tax or moneys received by him as collector, and detains in his hands, and does not pay or account for the same in manner directed by this Act, the general commissioners, in their respective divisions, may imprison him and seize and secure the estate, as well freehold as copyhold, and all other estate, both real and personal, belonging to him or which has descended or come into the possession of his heirs, executors, administrators, or assigns, wheresoever the same can be discovered and found.

Imprisonment and seizure of estate of defaulting collector.

(2) The said commissioners shall appoint a time for a meeting of the commissioners for the division, and cause public notice to be given, of the place where it is to be held, ten days at least before that meeting.

(3) The said commissioners present at the meeting, or the major part of them, if the accounts of the collector are not duly delivered, or the moneys detained by him are not paid or satisfied, according to the directions of this Act, shall sell and dispose of all such estates so seized and secured, or any part of them, to satisfy the sum that shall not be so accounted for or shall be so detained in the hands of the collector, his heirs, executors, or administrators respectively, together with the reasonable costs and charges of recovering, raising, and paying the same, which costs and charges shall be ascertained and settled by the commissioners, and the said sum shall be paid over to the proper officer, and the overplus (if any) after satisfying such costs and charges, shall be restored to the collector or the person entitled thereto.

(4) The commissioners acting for the division in which the estate and effects of such collector are seized and secured, as aforesaid, shall make conveyance of all such freehold and copyhold estates respectively, and in like manner assign the leasehold and other personal estate of the collector, and all his right, title, and interest therein at the time of the seizure or at the time of the death of any collector so dying in default, as aforesaid, to the respective purchasers thereof, by deed executed by any two or more of the said commissioners.

(5) Any person to whom any such sale of copyhold lands is made shall, before he enters or takes any profit of the said lands or tenements, agree and compound with the lord of the manor of whom the same are held, for such fines or incomes as have been most usual and accustomed to be yielded or paid therefor; and, upon every such agreement or composition, the said lord for the time being, at the next court to be held for the said manor, shall not only grant to the said vendee, upon request, the same copyhold or customary lands or tenements

by copy of court roll of the same manor for such estate or interest as shall be so sold, and reserving the ancient rents, customs, and services, but also, in the same court, admit him tenant of the same copyhold or customary lands as other copyholders of the same manor have been wont to be admitted, and receive his fealty, suit, or service, according to the custom of the court of such manor.

Proceedings
against col-
lector or his
sureties.

180.—(1) On the trial of any action against the sureties of a collector on a bond entered into, in pursuance of this Act, or on the execution of a writ of inquiry of damages in any such action, the production of an account, in the handwriting of the collector or signed by him, of any sum of money collected or received by him for or on account of the tax or moneys, shall be sufficient proof of the receipt by the collector of every sum of money therein mentioned, on account of the tax given to him in charge for collection; and

(2) A schedule delivered upon oath by such collector in pursuance of this Act, and containing, or purporting to contain, the names of persons who have made default in payment of the tax and the sums remaining in arrear, shall, in any such action and upon all other occasions, be sufficient evidence to charge the collector and his sureties, respectively, with all other sums of money comprised in the duplicate or duplicates given to him in charge to collect, and not included in that schedule or previously accounted for and paid over to the proper officer; and all such sums not so included in the schedule, or previously accounted for and paid over, shall be deemed to have been collected and received by the collector and to remain in his hands unpaid and in arrear.

(3) (a) If the general commissioners, in any such action, without any wilful neglect or default on their part, fail to recover judgment against the defendant, and costs are awarded to the defendant, or if any action is brought against the general commissioners in relation to any such bond and they are ordered to pay costs to the plaintiff, the commissioners shall not be personally liable for the costs, but the costs shall be defrayed by an assessment upon the inhabitants of the parish in relation to which the bond which was the subject of the action was given.

(b) The commissioners shall make, sign, and allow any such assessment as soon as conveniently can be done after the costs have been ascertained, and shall cause the assessment to be made, collected, levied and recovered in the same manner as assessments of tax under this Act, and shall cause the costs to be paid to the person entitled thereto.

Liability of
parish for
defaulting
collector.

181.—(1) A parish shall not be answerable for the acts, neglects, or defaults of a collector appointed by the Commissioners of Inland Revenue, or who gives security to the Crown, and shall not be liable to be re-assessed for any arrears or deficiency of tax arising from any such acts, neglects, or defaults.

(2) Save as aforesaid, a parish in England shall be answerable—

- (a) for the amount of the tax charged in the parish;
- (b) for the due demand of the tax; and
- (c) for the collector or his executors or administrators duly paying over to the proper officer the sums received by him in respect of the tax.

(3) (a) Arrears of tax arising from the acts, neglects, or defaults of a collector for which a parish is answerable, shall be re-assessed upon the parish as soon as can conveniently be done after the discovery of the default, and shall be charged on the amount of the assessment made, for the same tax, in the year commencing on the sixth day of April preceding the time of making the re-assessment.

(b) The re-assessment shall be made by duly apportioning the amount of the arrears among the several persons charged in that year to the same tax to which such arrears relate, according to the charge on each person, as nearly as the case will admit, and by the like rules, methods, and directions by which the original assessment of the same tax was made.

182.—(1) If there is a failure—

- (a) in assessing or charging the tax in any parish; or
- (b) in making out the duplicates of assessments for any parish; or
- (c) in raising or paying the tax charged upon any person in any parish;

Proceedings
when tax not
accounted
for.

the Commissioners of Inland Revenue may, at any time after the failure has occurred, set insuper all sums so appearing in arrear, and may make a return of the failure to the High Court, by a certificate thereof delivered to the King's Remembrancer.

(2) Every such return shall specify—

- (a) the parish, division, and county where the failure has occurred;
- (b) the cause of the failure, so far as known to the said Commissioners;
- (c) the names of any two or more of the general commissioners for the division in which the failure has occurred; and
- (d) the names of the assessors and collectors, and the several persons belonging to the parish charged with the tax, who have made failure in payment thereof in case an assessment has been made.

(3) All such commissioners, assessors, collectors and persons, respectively, shall be liable to process for any such failure, according to the circumstances of the case.

(4) A parish which is returned insuper for any sums contained in the duplicate of assessments and not accounted for to the proper officer, shall be liable to be re-assessed in respect of the

sums returned insuper, except where any such parish is, by special enactment, relieved from liability to re-assessment.

(5) The King's Remembrancer shall cause every certificate of failure, as aforesaid, to be enrolled in his office, and the enrolment shall be a record in his office and effectual to authorise the issue of process against the county, division, parish and person respectively.

(6) On the application of the Commissioners of Inland Revenue, any such process shall, from time to time, as occasion shall arise, be forthwith issued out of the High Court against such of the commissioners, officers, or persons as have made such failure.

Recovery of
costs and
tax re-
assessed.

183. The provisions of this Act with regard to the recovery of tax, either by warrant of the general commissioners directed to the collectors, or by process from the High Court, shall apply to the recovery and levying of any sum assessed or re-assessed by the general commissioners in respect of tax or costs under the authority of this Act.

Penalties on
collectors.

184.—(1) Every collector who—

- (a) neglects, omits, or refuses, upon receiving any tax or moneys, to give a receipt for the same on the prescribed form, or to fill up and keep remaining in the prescribed receipt book the counterfoil of the receipt; or
- (b) gives a receipt for any tax or moneys otherwise than upon the form prescribed and provided by the Commissioners of Inland Revenue,

shall for every such offence incur a penalty of ten pounds.

(2) Every collector who neglects or refuses to deliver any schedule of arrears required by this Act to be delivered shall for every such offence incur a penalty of twenty pounds.

(3) Every collector who—

- (a) neglects or refuses to produce to the surveyor, whenever required, his duplicates of assessment together with an account in writing showing the sums collected and received by him; or
- (b) refuses to take the prescribed oath to any schedule of arrears delivered by him, or to answer any lawful question demanded of him by the surveyor, touching the tax or moneys; or
- (c) declares in any answer made by him any matter or thing which shall be false; or
- (d) advances or lends to any person any part of the tax or moneys by him collected and received; or
- (e) applies any part of the tax or moneys to his own use or purpose; or
- (f) deposits or delivers over any part of the tax or moneys to any person so that the full sums, or any part thereof, to be raised under this Act, according to

the tenour and effect thereof, shall be withheld and not paid over to the Commissioners of Inland Revenue or to the proper officer, or to their or his credit, at the times on which the same ought to be paid; or

- (g) neglects or refuses, upon clearing his account for any tax or moneys, to deliver to the general commissioners by whom he was appointed, or to the Commissioners of Inland Revenue, the duplicates of the assessments for any year to which that account relates, together with all the books of receipts and counterfoils furnished for his use in the collection of the tax; or
- (h) neglects or refuses, when summoned by notice or called before them, to attend the general commissioners of the division, and then answer any lawful questions demanded of him by them touching the execution of his office as collector; or
- (i) neglects or refuses to produce to the general commissioners of the division all and any duplicates of assessments, accounts, books, and counterfoils of receipts, and vouchers for payments of the tax or moneys given, delivered, or entrusted to him as collector; or
- (j) neglects or refuses, on the revocation of his appointment, to attend, if summoned for the purpose, and deliver up to the general commissioners or to the surveyor, or on demand of and by the collector appointed in his stead, to deliver up to such collector all and any certificates of assessments, accounts, books, and counterfoils of receipts and vouchers for payments of the tax or moneys given, delivered, or entrusted to him and in his possession as collector at the time of the revocation of his appointment,

shall for every such offence incur a penalty of fifty pounds, with all costs and charges, which penalty, with all costs and charges, shall be added to the assessments to which it particularly relates, and shall be levied in like manner as the tax.

(4) Every collector who neglects or refuses to pay over when and at the date ordered by the general commissioners any sum of or on account of the tax or moneys collected and received and not accounted for by him shall, for every such offence, incur a penalty of fifty pounds, with all costs and charges, and a further penalty at the rate of five pounds per centum per annum for the whole sum by him detained, which penalties, with all costs and charges, shall be added to the assessments to which they particularly relate, and shall be levied in like manner as the tax.

(5) Every collector who—

- (a) collects any of the tax or moneys by any book or duplicate other than the duplicate signed and allowed by the general commissioners; or
- (b) receives any such tax or moneys from any person not charged therewith in the duplicate; or
- (c) collects from any person more money than is actually charged on him in the duplicate; or
- (d) does not pay over the whole tax and moneys by him collected; or
- (e) fraudulently alters any such duplicate after the same has been signed and allowed by the said commissioners; or
- (f) neglects or refuses to deliver on oath any schedule of deficiencies as required by this Act,

shall for every such offence incur a penalty of one hundred pounds.

Penalty for unlawful receipt from collector.

185.—(1) A person not duly appointed for the purpose or authorised by the Commissioners of Inland Revenue in that behalf who knowingly or wilfully takes or receives from a collector any sum of money arising from the tax or moneys which has been collected or received by the collector shall forfeit double the amount of the sum so taken or received.

(2) Any such forfeiture shall be recovered in the High Court.

PART IX.

SPECIAL PROVISIONS APPLICABLE TO IRELAND.

Special provisions applicable to Ireland.

186. The general provisions of this Act shall, in their application to Ireland, have effect subject to, and so far only as they are applicable consistently with, the special provisions contained in this Part of this Act.

Poor rate valuations to be taken as annual values for purposes of Schedules A and B.

187.—(1) The annual value of all tenements and rateable hereditaments with reference to which tax is to be charged under Schedules A and B shall be ascertained according to the respective surveys and valuations from time to time in force for the purposes of poor rates :

Provided that the annual value of lands for the purposes of Schedule B shall be taken to be—

- (a) the judicial rent fixed under the Land Law (Ireland) Acts or any of them; or
- (b) the annual interest payable to the Irish Land Commission in lieu of rent under the Land Purchase (Ireland) Acts or any of them; or
- (c) the purchase annuity payable under the Land Purchase (Ireland) Acts or any of them,

in any case in which it is shown that the judicial rent, the annual interest in lieu of rent, or the purchase annuity, as the

case may be, is less than the annual value according to the survey or valuation aforesaid.

(2) The said tax under Schedule A shall be charged upon the landlord or immediate lessor of a tenement or rateable hereditament, but may, if it appears to the special commissioners to be necessary or proper, be charged upon the person rated to poor rates in respect of any such property.

(3) Tax under Schedule B shall be charged upon the occupier of a tenement or rateable hereditament.

(4) In the event of an appeal by a person who considers himself aggrieved by any such assessment, if it is proved to the satisfaction of the special commissioners by whom the appeal is heard, or the recorder or county court judge by whom the appeal is re-heard, as the case may be, that the annual value on which the assessment is based exceeds the annual rent at which the property in respect of which the assessment is made is worth to be let from year to year, relief shall be given by reducing the assessment and charging the tax on the amount on which it would have been charged if that rent had been adopted as the basis of the assessment instead of such annual value.

(5) If such annual rent at which the property is worth to be let from year to year exceeds the actual rent payable yearly by the tenant or occupier, the landlord or immediate lessor shall be assessed and charged, under Schedule A, on the amount of such actual rent only, and the tenant or occupier shall be assessed and charged under Schedule A on the difference, subject to any claim for exemption, abatement, or relief to which any of the aforesaid persons may respectively be entitled.

(6) Where a person who receives rent in respect of any hereditament which is exempt from being rated to poor rates, is liable to be rated in respect of that rent to the extent of one-half the poundage of any poor rate, the tax under Schedule A shall be assessed and charged upon him upon the full amount of that rent.

188. Assessments under Schedules A and B—

- (a) shall be made by the surveyors or other officers acting in that behalf under the direction of the Commissioners of Inland Revenue;
- (b) shall be made for and comprise the respective premises which are situate in an administrative county, county borough, county district, or such other district as the said Commissioners shall direct; and
- (c) shall be signed by the special commissioners.

Provisions
as to assess-
ments under
Schedules A
and B.

189.—(1) Assessments under Schedules D and E shall be made by such surveyors or other officers as the Commissioners of Inland Revenue shall appoint in that behalf.

Provisions
as to assess-
ments under
Schedules D
and E.

(2) The special commissioners shall—

- (a) sign and allow the assessments;
- (b) appoint the times and places for hearing appeals against the assessments; and

- (c) cause due notice of every such assessment and the amount thereof, and of the time and place for hearing any appeal against the same to be given by an officer of inland revenue to each person assessed.

Powers of special commissioners, surveyors, collectors, and other officers.

190.—(1) The following persons, that is to say—

- (a) the special commissioners acting in relation to the signing or allowing of any assessment, to the hearing and determining of any appeal, and to the making and signing of any duplicate and any warrant for collecting and levying the tax and sums of money charged; and
- (b) all surveyors and other officers acting in relation to the making of any assessment, or to the assessing or charging of any person therein or thereby; and
- (c) all persons named or appointed by the special commissioners to be respectively collectors of the tax and sums of money in relation to the collecting, levying, distraining for, or otherwise recovering of the same;

shall respectively have, use, and exercise all such and the like powers and authorities as any general commissioners, special commissioners, or additional commissioners, and as any surveyors, assessors, collectors, or other officers respectively have, or may use or exercise, in England in relation to the making or allowing of any assessment under this Act, or to the assessing or charging of any person, or to the hearing or determining of any appeal, or the collecting, levying, distraining for or otherwise recovering of the tax, so far as such powers and authorities, or any of them, are applicable, or may be adapted, to the performance of similar acts, matters, and things in Ireland.

(2) In addition to the aforesaid powers, any power which in England may be exercised by the general commissioners may, in Ireland, be exercised by the special commissioners.

(3) Any power which in England would, in recovery of tax, be exercised by a collector for a parish may, in Ireland, be exercised by any collector within the area for which he is appointed.

Commissioners of Inland Revenue to be furnished with copies of poor rates.

191.—(1) For the purpose of assessing tax chargeable under Schedules A and B, the secretary, or person acting as such, to the county council of an administrative county and the town clerk, clerk, or person acting as such, to a county borough or an urban district council shall, when required by the Commissioners of Inland Revenue, transmit to them, at the head office of the said Commissioners in Dublin, true copies of the last poor rates made by the county council, county borough council, or urban district council for their respective rating areas or any part thereof.

(2) The Commissioners of Inland Revenue shall pay to the said persons respectively the expenses of making all such copies,

not exceeding the rate of two shillings and sixpence for every one hundred ratings.

(3) If any such person as aforesaid neglects to transmit such copies, after being required to do so by the Commissioners of Inland Revenue, he shall, for every such neglect, forfeit the sum of fifty pounds.

192.—(1) Every person shall, at the request of any surveyor, or other officer acting in the execution of this Act, produce to him any survey or valuation on which the rates for any administrative county, county borough, urban district, or part thereof are assessed or made, or any rate or assessment made under any Act relating to poor rates, which is in his custody or possession, and permit the surveyor or other officer to inspect the same and to take copies thereof, or extracts therefrom, without any payment.

Production of poor-law valuations to surveyors on request.

(2) Any such person who, on request as aforesaid, refuses to produce any survey, valuation, rate, or assessment which is in his custody or possession, or to permit the inspection thereof, or the taking of such copies thereof or extracts therefrom as the surveyor or other officer may think fit, shall, for every such refusal, forfeit the sum of fifty pounds.

193.—(1) If in any case it appears to the Commissioners of Inland Revenue that any valuation for the purposes of poor rates which is for the time being in force is not correct (having reference to the principles according to which the same ought by law to have been made) with respect to all or any of the tenements or rateable hereditaments included therein, they may direct the commissioner of valuation to make or cause to be made, for the purposes of income tax, a re-valuation of those tenements or rateable hereditaments in accordance with the principles prescribed by law, and the commissioner of valuation shall, with all convenient speed, make the re-valuation or cause it to be made accordingly, and shall sign and transmit the same to the said Commissioners.

Power of Commissioners of Inland Revenue to direct re-valuation.

(2) Tax chargeable under Schedules A and B shall, after any such re-valuation, be assessed and charged in accordance therewith.

(3) A person assessed in accordance with any such re-valuation may, if aggrieved thereby, appeal against the assessment on the ground that the re-valuation is incorrect, and the special commissioners by whom any such appeal is heard, or the recorder, or county court judge by whom any such appeal is re-heard, may alter the re-valuation and the assessment, and make such an order with reference thereto, as they or he may think fit.

194. In assessing tax chargeable under Schedule A on the landlord or immediate lessor—

Allowance for poor rates payable by landlord in assessing tax under Schedule A.

(a) If the amount or annual value, on which the assessment is made, is not less than the annual rent reserved or payable to him for the premises in respect of which

the assessment is made, an allowance or abatement shall be made in respect of the amount of poor rates paid or borne by him for the same premises in the preceding year; and

- (b) If the amount or annual value on which the assessment is made is less than the said rent, an allowance or abatement shall be made of the sum by which the amount of the poor rate, added to the sum on which the assessment is made, exceeds that rent.

Appeals to be heard by special commissioners.

195. All appeals against assessments shall be heard and determined by the special commissioners, and their determination on any such appeal shall be final and conclusive, unless the person assessed requires that his appeal shall be re-heard as hereinafter provided, or unless, under the provisions of this Act, a case is required to be stated for the opinion of the High Court, and, in default of appeal by a person to whom notice of assessment, and of the time and place for hearing appeals, has been given, the assessment made on him shall be final and conclusive.

Appeal from special commissioners to recorder or county court judge.

196.—(1) Any person who is aggrieved by the determination of the special commissioners in any appeal against an assessment made upon him may, on giving notice in writing to the surveyor, within ten days after such determination, require that his appeal shall be re-heard by the recorder or county court judge, as the case may be, having jurisdiction in the place where the assessment was made: and the special commissioners shall transmit to the said recorder or county court judge, as the case may be, any statement or schedule in their possession which was delivered to them for the purposes of the appeal.

(2) The said recorder or county court judge shall, with all convenient speed, re-hear and determine the appeal, and shall have and exercise the same powers and authorities in relation to the assessment appealed against, the determination, and all matters consequent thereon, as the special commissioners might have and exercise, and his determination thereon shall be final and conclusive.

(3) The recorder or county court judge shall make a declaration in the form of the declaration required to be made by a special commissioner as set out in Part I. of the Fourth Schedule to this Act.

Delivery of duplicates and warrants to collectors.

197.—(1) After the expiration of the respective times for the hearing of appeals, the special commissioners shall cause duplicates of all assessments to be delivered, together with warrants under the hands and seals of two special commissioners, to the officers or other persons named by them, in the said warrants, to be collectors.

(2) The warrants shall appoint the officers or other persons named therein to be collectors of the tax and sums of money assessed and charged in the duplicates, and shall require and empower them to demand, collect, recover and levy the same.

198. Collectors of tax shall receive such reasonable remuneration for their services in the execution of this Act as the Treasury may prescribe. Remuneration of collectors.

199.—(1) Tax under Schedules A and B may be collected, recovered and levied by the collector by distress from the person charged, or from the occupier of the property charged, or upon the premises in respect of which the assessment is made, and all goods and chattels, to whomsoever the same may belong, found upon any such premises may be distrained and sold for the recovery of any such tax; or such tax, or any arrears thereof, may be collected, recovered and levied in the same manner as other tax charged in Ireland under this Act may be collected, recovered and levied. Collection and recovery of tax under Schedules A and B.

(2) Provided that tax charged under Schedule A in respect of any tenement or hereditament may be collected, recovered and levied by the collector from the landlord or immediate lessor of the premises charged, whether he be named in the assessment or not.

(3) Where an assessment under Schedule A has been made on the tenant or occupier of premises charged, the landlord or immediate lessor shall only be liable to proceedings under subsection (2) of this section, in default of payment by the tenant or occupier, and for so much only of the tax charged as is chargeable in respect of the rent payable yearly to him for the premises charged.

200. No administrative county, county borough, county district, or place in Ireland shall be answerable for the amount of the tax charged therein, or for any neglect or default of the collector in demanding or collecting the same, and no re-assessment shall be made for any arrears or loss occasioned by any such neglect or default. Losses arising from default of collector not to be re-assessed.

201. Where a person liable to tax under Schedule A is authorised under this Act to retain tax from any annual payment made by him from which he is by law entitled to deduct any sum on account of poor rates, the tax to be retained shall be calculated by reference to the net sum payable by him after the allowance for poor rates. Where payments subject to deduction for poor rates, tax to be deducted from net amount.

202. Claims of exemption, abatement, or relief, and all claims for the repayment of tax under this Act, shall be made in such manner and form as the Commissioners of Inland Revenue may prescribe, and shall be made to, and finally determined by, the special commissioners, subject, as regards claims for exemptions, to the like appeal by way of re-hearing as in the case of assessments. All claims for exemption to be made to special commissioners.

203. In computing the income of any person for the purposes of this Act, the computation, so far as concerns any rent derived from tenements or hereditaments chargeable under Schedule A, shall be made after allowing for the amount of any poor rates chargeable on that rent by way of deduction or otherwise. Poor rates payable by landlord to be deducted from rent in computing income.

Right of
landlord to
claim repay-
ment of tax
paid in
respect of
rent lost.

204.—(1) If any landlord or immediate lessor of any tenement or hereditament charged to tax under Schedule A has paid the same and proves, to the satisfaction of the special commissioners, that the rent, or any part thereof, due or payable to him in respect of that tenement or hereditament, for the period for which that tax was charged, has been wholly and irrecoverably lost by reason of—

- (a) the bankruptcy, insolvency, or absconding of the tenant or occupier by whom such rent was payable; or
- (b) the fraudulent assignment or removal of his goods by the said tenant or occupier; or
- (c) the tenement or hereditament being left waste and unoccupied,

he shall be entitled to be repaid such proportion of the said tax as he shall have paid in respect of the rent so lost; and the said commissioners shall issue an order for repayment, in like manner as in other cases of repayment.

(2) Any such claim for repayment shall be made within six months after the expiration of the year of assessment.

Saving with
respect to
actions of
ejectment.

205. An action of ejectment for non-payment of rent shall not be defeated on the ground that the person liable to pay the rent is entitled under this Act to a deduction which would reduce the amount due by him below a year's rent.

Power of
justice to
administer
oath.

206. A justice of the peace may administer any oath required or permitted by this Act to be taken before a commissioner or justice by any officer or person in any matter touching the execution of this Act.

PART X.

MISCELLANEOUS.

Rules with
respect to
delivery of
statements.

207. Any person who, on his own behalf or on behalf of another person or body of persons, delivers a statement of the amount of the annual value or profits on which any tax is chargeable, shall, so far as the same are respectively applicable, observe the rules and directions contained in the Fifth Schedule to this Act.

Provisions
of one
Schedule to
be applicable
to tax under
other
Schedules.

208. The provisions in this Act contained which are applied to the tax under any particular Schedule shall, if also applicable to the tax under any other Schedule and not repugnant to the provisions for ascertaining, charging or levying the tax under such other Schedule, be applied in ascertaining, charging and levying tax under that Schedule, as if the application of those provisions thereto had been expressly and particularly directed.

Deductions
not to be
allowed in
computing
profits or
gains.

209.—(1) In arriving at the amount of profits or gains for the purpose of income tax—

- (a) no other deductions shall be made than such as are expressly enumerated in this Act;

(b) no deduction shall be made on account of any annual interest, annuity or other annual payment to be paid out of such profits or gains in regard that a proportionate part of the tax is allowed to be deducted on making any such payment.

(2) In arriving at the amount of profits or gains from any property described in this Act, or from any office or employment of profit, no deduction shall be made on account of diminution of capital employed, or of loss sustained, in any trade or in any profession, employment or vocation.

210. In order to ensure the collection in due time of tax which may be granted for any year commencing on the sixth day of April, all such provisions contained in this Act, or in any other Act relating to tax (including super-tax), as were in force on the preceding day, shall have full force and effect with respect to tax which may be so granted, in the same manner as if the said tax had been actually granted by Act of Parliament and the said provisions has been applied thereto by the Act.

Provisions of Acts in force as to tax for any year to apply to tax for succeeding year.

211.—(1) Where in any year of assessment any half-yearly or quarterly payments have been made on account of any interest, dividends or other annual profits or gains, previously to the passing of the Act imposing the tax for that year, and tax has not been charged thereon or deducted therefrom, or has not been charged thereon or deducted therefrom at the rate ultimately imposed for the said year, the amount not so charged or deducted shall be charged under Schedule D in respect of those payments, as profits or gains not charged by virtue of any other Schedule, under Case VI. of Schedule D, and the agents entrusted with the payment of the interest, dividends or other annual profits or gains shall furnish to the Commissioners of Inland Revenue a list containing the names and addresses of the persons to whom payments have been made and the amount of those payments, upon a requisition made by those Commissioners in that behalf.

Provisions as to charge and deduction of tax in any year not charged or deducted before the passing of annual Act.

(2) Any person liable to pay any rent, interest or annuity, or to make any other annual payment, shall be authorised to make any deduction on account of tax for any year of assessment which he has failed to make previously to the passing of the Act imposing the tax for that year, or to make up any deficiency in any such deduction which has been so made, on the occasion of the next payment of the rent, interest or annuity, or making of the other annual payment after the passing of the Act so imposing the tax, in addition to any other deduction which he may be by law authorised to make, and shall also be entitled, if there is no future payment from which the deduction may be made, to recover the sum which might have been deducted as if it were a debt due from the person as against whom the deduction could originally have been made if the Act imposing tax for the year had been in force.

Prohibition
on produc-
tion of cer-
tain assess-
ments.
15 & 16 Vict.
c. 81.
25 & 26 Vict.
c. 103.

212. No provision contained in the County Rates Act, 1852, or in the Union Assessment Committee Act, 1862, shall authorise any assessment committee under those Acts to require any assessor, collector or other person employed in the assessment or collection of tax to make or transmit, or to permit any other person to make, copies of or extracts from any assessment, rate or rate book or any document relating to the assessment or collection of tax upon profits of trade in respect of quarries, mines, ironworks, gasworks or other concerns in the nature of trade or manufacture chargeable under Schedule A, nor shall any such person be required to attend before any such committee to produce any such assessment, rate, rate book or document, or to be examined concerning the same.

No exemp-
tion from tax
under letters
patent or
statutes.

213. No letters patent granted or to be granted by the Crown to any person, city, borough, or town corporate of any liberty, privilege, or exemption from subsidies, tolls, taxes, assessments or aids, and no statute which grants any salary, annuity or pension to any person free of any taxes, deductions or assessments, shall be construed or taken to exempt any person, city, borough or town corporate, or any of the inhabitants of the same, from tax, and all non obstantes in any such letters patent or statute made or to be made to the contrary effect shall be void.

Execution
of warrants
and precepts.

214.—(1) Warrants and precepts of the general commissioners shall be executed by the respective persons to whom they are directed in any part of the same county within any division of which those commissioners have jurisdiction.

(2) Constables and other peace officers shall aid in the execution of this Act, and obey and execute such precepts and warrants as are directed to them in that behalf by the respective commissioners under the authority of this Act.

Provisions
as to forms.

215.—(1) The forms in the Sixth Schedule to this Act, or forms to the like effect, shall be sufficient in law and may be varied, or other forms prescribed, by the Commissioners of Inland Revenue as circumstances require.

(2) Every assessment, duplicate, charge, bond, warrant, notice of assessment or of demand, or other document required to be used in assessing, charging, collecting and levying tax shall be in accordance with the forms prescribed from time to time in that behalf by the Commissioners of Inland Revenue, and a document in the form prescribed and supplied or approved by them shall be valid and effectual.

(3) The said Commissioners shall provide books of printed forms of receipts, with counterfoils, for the use of collectors, and may from time to time prescribe regulations for the inspection, filling up, and use thereof, and every collector shall act in accordance with any such regulations.

Want of
form or
errors not to

216.—(1) An assessment, charge, warrant or other proceeding which purports to be made in pursuance of this Act

shall not be quashed, or deemed to be void or voidable, for want of form, or be affected by reason of a mistake, defect, or omission therein, if the same is in substance and effect in conformity with or according to the intent and meaning of this Act, and if the person or property charged or intended to be charged or affected thereby is designated therein according to common intent and understanding.

(2) An assessment or a charge made upon an assessment shall not be impeached or affected—

(a) by reason of a mistake therein as to—

- (i) the name or surname of a person liable; or
- (ii) the description of any profits or property; or
- (iii) the amount of the tax charged;

(b) by reason of any variance between the notice and the certificate of charge or assessment:

Provided that in cases of charge the notice of charge shall be duly served on the person intended to be charged, and the notice and certificate shall respectively contain, in substance and effect, the particulars on which the charge is made; and every such charge shall be heard and determined on its merits by the general commissioners.

217. No receipt, certificate of payment, affidavit, appraisal or valuation given or made in pursuance and for the purposes of this Act, and, in England, no bond or other security given under this Act by a collector or other person in respect of the collection, accounting for, or remitting of tax, shall be liable to any stamp duty.

Receipts and bonds exempt from stamp duty.

218. Assessments, duplicates of assessments, minute books, and other public books and papers relating to tax in the custody or possession of any clerk, assessor, or collector, or of the legal representatives of any person who has died or shall die during the holding of any such office, or after his removal from the same, or of his agent or attorney, or of any other person, shall be the property of the general commissioners acting in their respective divisions for the time being, and shall be placed with them and remain in their custody and possession, or the custody and possession of their respective clerks for the time being, or of such other person as the respective commissioners for the time being may from time to time at their meetings direct.

Assessments, &c., to be property of general commissioners.

219.—(1) A person who has in his custody or possession any books or papers relating to tax shall, within one month next after notice in writing from the Commissioners of Inland Revenue requiring him to do so, deliver them to the person named in the notice, and, if he fails to do so, shall, for every such offence, incur a penalty of fifty pounds.

Delivery of books or papers relating to tax.

(2) The receipt of the person named in the notice shall be a sufficient discharge to the person delivering the books or papers.

Delivery and
service of
notices and
forms.

220.—(1) Notices required to be affixed, delivered or served may be issued to the respective assessors by the surveyors of the districts in which the notices are required, for the purpose of being so affixed, delivered or served.

(2) The issue to the assessors of any such notices by a surveyor shall be as effectual as delivery to them by the general commissioners concerned.

(3) Any directions which have been allowed by the respective commissioners with reference to the time and manner of fixing, delivering or otherwise serving the notices, and the persons on whom they are to be served, shall, when given by the surveyor to a collector or assessor, be observed by him.

(4) A notice or form which is to be served on a person may be either delivered to him or left at his usual or last known place of abode.

(5) A notice to a person to be given by a surveyor may be served by registered post.

(6) A notice to be given by the Commissioners of Inland Revenue may, by their order, be signed by one of their secretaries or assistant secretaries, and if purporting to be so signed by their order shall be valid and effectual.

(7) Notices to be given or delivered to, or served on, the general commissioners or the additional commissioners shall be valid and effectual if given or delivered to or served on their clerk.

(8) Provided that—

(a) any notice or other document to be given, served, sent or delivered, under this Act or any Act relating to income tax, may be served by post in such cases as the Commissioners of Inland Revenue direct by regulations to be made by them for the purpose; and

(b) any notice or other document to be given, served, sent or delivered to or on an employed person may be served by post at his place of employment.

Proceed-
ings for
recovery of
fines and
penalties.

221.—(1) No proceedings shall be commenced against any person for the recovery of any fine, penalty or forfeiture under this Act except by order of the Commissioners of Inland Revenue and in the name of an officer, or in England in the name of the Attorney-General for England, in Scotland in the name of the Lord Advocate, and in Ireland in the name of the Attorney-General for Ireland.

(2) Any fine or penalty under this Act may, except as otherwise provided, be sued for and recovered, with full costs of suit, in the High Court, and any such penalty shall be sued for by information.

(3) Proceedings in the High Court for the recovery of any fine or penalty, and proceedings in England, before the general commissioners, and in Scotland either before the general commissioners or before the sheriff for the recovery of any penalty

which is not recoverable in the High Court, may be commenced within three years next after the fine or penalty was incurred.

(4) Where a pecuniary penalty not exceeding twenty pounds, or a penalty exceeding twenty pounds which is directed to be added to the assessment, is recoverable in the High Court, that penalty may, in lieu of being so recovered, be recovered in England before the general commissioners, and in Scotland either before the general commissioners or before the sheriff for the county where the offence was committed, by proceedings to be commenced within twelve months next after the penalty was incurred.

(5) The proceedings before any general commissioners or any sheriff shall be by way of information in writing, made to them, and upon a summons to the person accused to appear before them at such time and place as they shall fix, and they shall examine into the matter of fact, and hear and determine the same in a summary way, and they shall give judgment for the penalty, or such part thereof as they shall think proper to mitigate the same to, and shall assess the penalty on the person accused by way of supplementary assessment, and the penalty shall be levied in like manner as tax.

The adjudication on such proceedings shall be final and conclusive, and the proceedings and decree of the said commissioners or sheriff shall not be removable, by any process whatever, into any court of law.

222.—(1) The Commissioners of Inland Revenue may, in their discretion, mitigate any fine or penalty, or stay or compound any proceedings for recovery thereof, and may also, after judgment, further mitigate or entirely remit the fine or penalty, and may order any person imprisoned for any offence to be discharged before the term of his imprisonment has expired. The Treasury may mitigate or remit any such fine or penalty, either before or after judgment.

Mitigation
and applica-
tion of
fines and
penalties.

(2) Moneys arising from fines, penalties and forfeitures, and all costs, charges and expenses payable in respect thereof or in relation thereto respectively, shall be accounted for and paid to the Commissioners of Inland Revenue or as they direct.

223. Where an increased rate of tax is imposed as a penalty, or as part of or in addition to a penalty, the penalty and increased rate of tax may be added to the assessment, and collected and levied in like manner as any tax included in such assessment may be collected and levied.

Power to add
penalties
to assess-
ment.

224. The provisions of this Act shall not affect any criminal proceedings for any felony or misdemeanour.

Saving for
criminal
proceedings.

225.—(1) If any person, by himself or by any person in his employ, obstructs, molests, or hinders—

Fine for
obstruction
of officers in
execution of
duties.

(a) an officer or any person employed in relation to any duty of income tax in the execution of his duty, or

of any of the powers or authorities by law given to the officer or person; or

- (b) any person acting in the aid of an officer or any person so employed;

he shall, for every such offence, incur a fine of one hundred pounds.

(2) Without prejudice to any other mode of recovery, the fine imposed under this section may be proceeded for and recovered in the same manner, and, in the case of summary proceedings, with the like power of appeal, as any fine or penalty under any Act relating to the excise.

Penalty for vexatious surcharges, &c., by surveyor.

226. A surveyor who—

- (a) wilfully makes a false and vexatious surcharge of tax; or
- (b) wilfully delivers, or causes to be delivered, to the general commissioners a false and vexatious certificate of surcharge, or a false and vexatious certificate of objection to any supplementary return in a case of surcharge; or
- (c) knowingly or wilfully, through favour, undercharges or omits to charge any person; or
- (d) is guilty of any fraudulent, corrupt, or illegal practices in the execution of his office,

shall, for any such offence, incur a penalty of one hundred pounds, and on conviction shall be discharged from his office.

Penalty for false statements made to obtain allowances.

227. If any person, for the purpose of obtaining any allowance, reduction, rebate, or repayment in respect of tax, either for himself or for any other person, or in any return made with reference to tax, knowingly makes any false statement or false representation, he shall be liable, on summary conviction, to imprisonment for a term not exceeding six months with hard labour.

Persons giving false evidence guilty of perjury.

228. If in Scotland or Ireland any person, upon any examination on oath, or in any affidavit or deposition authorised by this Act, wilfully and corruptly gives false evidence, or wilfully and corruptly swears any matter or thing which is false or untrue, he shall on conviction be subject and liable to such punishment as persons convicted of perjury are subject and liable to.

Limitation of penalties on officers employed in execution of Act.

229.—(1) A commissioner, sheriff, sheriff depute or sheriff substitute, clerk, surveyor, assessor, or collector who acts, or is employed, in the execution of this Act, shall not be liable to any penalty in respect of such execution other than is by this Act provided.

(2) Where any civil or criminal proceeding, against any officer or person employed in relation to any duty of income tax, on account of the seizure or detention of any goods, is brought to trial, and a verdict or judgment is given thereupon

against the defendant, if the court or judge certifies that there was probable cause for the seizure, the plaintiff shall not be entitled to any damages, besides the goods seized, or the value thereof, nor to any costs, and the defendant shall not be liable to any punishment.

230.—(1) Anything required under this Act to be done by the Treasury may be signified under the hand of a secretary or assistant secretary to the Treasury. Execution of powers under Act.

(2) Anything required under this Act to be done by the general commissioners, the additional commissioners, the special commissioners, or any other commissioners may, save as otherwise expressly provided by this Act, be done by any two or more commissioners.

(3) Any general commissioner may administer an oath required or permitted to be taken before the general commissioners under this Act by any officer or person in any matter touching the execution of this Act.

231. No collector, officer or person employed under the authority of the Commissioners of Inland Revenue in relation to income tax shall be compelled to serve as a mayor or sheriff, or in any corporate or parochial or other public office or employment, or on any jury or inquest whatsoever, or in the militia. Exemptions of officers.

232.—(1) Every person acting as a commissioner in the execution of this Act shall, on request, be entitled to a certificate thereof, under the hands of the Commissioners of Inland Revenue. Exemption of commissioners from serving in parochial offices and on juries.

(2) The holder of a certificate shall, while the same is in force, be discharged from all parish and ward offices in the parish or ward, and from serving on juries in the county wherein he dwells.

(3) A certificate shall continue in force so long only as the person to whom it is granted continues to act as such commissioner, and may be revoked by the Treasury if it appears to them that the holder has neglected to perform his duty as such commissioner.

(4) A certificate shall be enrolled by the clerk of the peace of the county or city in which the holder dwells, on payment of a fee of one shilling, and the clerk of the peace shall cause every certificate which is revoked to be taken off the roll, on notice thereof being given to him by the Commissioners of Inland Revenue.

233. In any proceedings under or arising out of this Act before any court or person empowered to take evidence, *prima facie* proof of the fact that any person was a commissioner or officer may be given by proving that, at the time when any matter in controversy in any such proceedings arose, that person was reputed to be or had acted as a commissioner or officer. Proof that a person is a commissioner or officer.

Power of two commissioners in same county to allow assessments.

234. In the event of a sufficient number of general commissioners not attending to sign and allow, in due time, the assessments and duplicates of the tax for any parish, any two general commissioners acting within the same county shall sign and allow any such assessments or duplicates.

Jurisdiction of High Court.

235. All matters within the jurisdiction of the High Court of Justice under this Act shall be assigned in England and Ireland to the King's Bench Division of the High Court, and in Scotland to the Court of Session sitting as a Court of Exchequer.

Regulations to be laid before Parliament.

236. All such regulations of the Commissioners of Inland Revenue as relate to—

- (a) the assessment, charge, collection and recovery of super-tax;
- (b) exemption, abatement or relief in respect of quarterly assessments on weekly wage-earners;
- (c) the assessment and collection of tax in the case of quarterly assessments on weekly wage-earners; or
- (d) service by post;

shall be laid before each House of Parliament as soon as may be after they are made, and, if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days, or in the case of a regulation relating to super tax within the next subsequent forty days, on which that House has sat next after any such regulation is laid before it, praying that the regulation may be annulled, His Majesty in Council may annul the regulation, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

Interpretation.

237. In this Act, unless the context otherwise requires :—

“Annuity fund” means, where an annuity fund is not kept separately from the life assurance fund of an assurance company, such part of the life assurance fund as represents the liability of the company under its annuity contracts, as stated in its periodical returns to the Board of Trade, under the Assurance Companies Act, 1909;

“Assurance company” means any persons or bodies of persons to which the Assurance Companies Act, 1909, applies;

“Assessor” includes a surveyor acting as assessor when empowered so to act;

“Body of persons” means any body politic, corporate, or collegiate, and any company, fraternity, fellowship and society of persons, whether corporate or not corporate;

“City division” means a division consisting of any city, borough, town, or other place, under the separate jurisdiction of any body of general commissioners;

- “County division” means a division other than a city division and consisting of any county, riding or shire, or of any hundred, rape, lathe, wapentake, or other division of a county, riding, or shire, under the separate jurisdiction of any body of general commissioners;
- “Foreign life assurance fund” means any fund representing the amount of the liability of an assurance company in respect of its life assurance business with policyholders and annuitants residing out of the United Kingdom whose proposals were made to, or whose annuity contracts were granted by, the company at or through a branch or agency outside the United Kingdom, and, where such a fund is not kept separately from the life assurance fund of the company, means such part of the life assurance fund as represents the liability of the company under such policies and annuity contracts; such liability being estimated in the same manner as it is estimated for the purposes of the periodical returns of the company to the Board of Trade, under the Assurance Companies Act, 1909;
- “Gazette” means, as the context requires, “London Gazette,” “Edinburgh Gazette,” or “Dublin Gazette”;
- “Incapacitated person” means any infant, married woman, lunatic, idiot, or insane person;
- “Land Tax Commissioners” means the commissioners appointed, under authority of Parliament, for executing the Acts relating to land tax;
- “Life assurance business” includes the business of granting annuities;
- “Parish” means any city, town, ward, township, tithing, parish, place or precinct, or part thereof, for which a separate assessment of income tax has been, or can be, made, or for which an assessor or collector has been, or can be, appointed;
- “Surveyor” means a surveyor of taxes and includes an inspector of taxes;
- “Trade” includes every trade, manufacture, adventure or concern in the nature of trade;
- “Weekly wage-earner” means a person who receives wages which are calculated by reference to the hour, day, week or any period less than a month, at whatever intervals the wages may be paid, or who receives wages, however calculated, which are paid daily, weekly, or at any less intervals than a month;
- “Year of assessment” means, with reference to any tax, the year for which such tax was granted by any Act granting duties of income tax.

238. The Acts mentioned in the Seventh Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule : Repeal of Acts and savings.

Provided that—

- (a) Any notice, form, order, rule, regulation or direction prescribed, made, issued or given under any enactment repealed by this Act shall continue in force as if it had been prescribed, made, issued or given under this Act, and may be repealed, revoked, varied or amended accordingly :
- (b) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or to the corresponding enactment of this Act :
- (c) Any commissioner, officer or person appointed to act or employed under or by virtue of any enactment repealed by this Act in relation to duties of income tax shall continue and be deemed to have been appointed or employed under or by virtue of this Act :
- (d) Where any provision repealed by this Act so far as it relates to income tax, and reproduced in this Act in relation to income tax, authorises or requires any appointment to be made or action to be taken, or imposes any penalty both in relation to income tax and in relation to any other tax or duty as respects which the provision in question is not repealed, then nothing in this Act shall authorise or require separate appointments or separate action or the imposition of penalties, both under the provision so repealed and under the corresponding provision of this Act, but the two provisions shall have effect as though they continued to be contained in one enactment relating both to income tax and to such other tax or duty as aforesaid :
- (e) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

52 & 53 Vict.
c. 63.

Short title
and com-
mencement.

239.—(1) This Act may be cited as the Income Tax Act, 1918.

(2) This Act shall come into operation on the sixth day of April nineteen hundred and nineteen :

Provided that the provisions of this Act shall not apply to any duties of income tax granted by Parliament prior to the commencement of this Act, or to any enactment, matter or thing touching any such duties, and in respect of any such duties the Acts applicable thereto which are repealed by this Act shall have the same effect as if this Act had not been passed.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

SCHEDULE A.

Tax under Schedule A shall be charged in respect of the property Schedule A.
in all lands, tenements, hereditaments, and heritages in the United
Kingdom, for every twenty shillings of the annual value thereof.

RULES APPLICABLE TO SCHEDULE A.

Nothing in these rules shall affect the valuation of lands, tenements or hereditaments within the administrative county of London with respect to which the valuation list under the Valuation (Metropolis) Act, 1869, is by that Act made conclusive for the purposes of Income Tax, and the following rules that is to say, the general rule of No. 1, Rules 1 and 3 of No. II., Rules 1 to 14 of No. IV., Rules 6 and 7 of No. VII., and Rules 5, 6 and 7 of No. IX. (which Rules are distinguished by an asterisk) and any other rule which relates to the ascertainment of the value of such lands, tenements or hereditaments shall not apply within the administrative county of London, except in the case of hereditaments which are not included in any such valuation list or which are chargeable according to profits and not according to gross value, and except as respects the mode of charging the occupiers of land subject to a tithe rentcharge in respect of such tithe rentcharge.

*No. I.—General Rule for estimating the annual value of Lands,
Tenements, Hereditaments or Heritages.*

No. I.

*In the case of all lands, tenements, hereditaments or heritages capable of actual occupation, of whatever nature, and for whatever purpose occupied or enjoyed, and of whatever value (except the properties mentioned in No. II. and No. III. of this Schedule), the annual value shall be understood to be :—

- (1) The amount of the rent by the year at which they are let, if they are let at rackrent and the amount of that rent has been fixed by agreement commencing within the period of seven years preceding the fifth day of April next before the time of making the assessment; or
- (2) If they are not let at a rackrent so fixed, then the rackrent at which they are worth to be let by the year.

*No. II.—Rules for estimating the annual value of certain
Lands, Tenements, Hereditaments or Heritages which are not to
be charged according to the preceding General Rule,
and for determining the person chargeable.*

No. II.

*1. In the case of tithes, if taken in kind, the annual value shall be understood to be the average amount for one year of the profits of the three preceding years.

Schedule A.
No. II.

2. In the case of dues and money payments in right of the church or by endowment, or in lieu of tithes (not being tithes arising from lands), and all teinds arising in Scotland, the annual value shall be understood to be the average amount for one year of the profits of the three preceding years.

6 & 7 Will. 4.
c. 71.

*3. In the case of tithes arising from lands, if compounded for, and all rents and other money payments in lieu of tithes arising from lands (except rentcharges confirmed under the Tithe Act, 1836), the annual value shall be understood to be the amount of the profits from such composition, rent or payment for the year preceding.

4. In each of the cases mentioned in rules 1, 2 and 3 tax shall be assessed and charged on the person entitled to the tithes or payments, or his lessee or tenant, agent or factor, except when the tax is charged in accordance with rule 6 of No. VII. of this Schedule.

5. In the case of manors and other royalties, including all dues and other services or other casual profits (not being rents or other annual payments reserved or charged), the annual value shall be understood to be the average amount for one year of the profits of the seven preceding years. Tax shall be assessed and charged on the lord of the manor or royalty, or the person renting the same.

6. In the case of fines received in consideration of any demise of lands or tenements (not being parcel of a manor or royalty demisable by the custom thereof), the annual value shall be understood to be the amount of the profits received within the preceding year.

Tax shall be assessed and charged on the receiver of the fines : Provided that if the person chargeable satisfies the general commissioners for the division that any part of the fines has been applied as productive capital, on which a profit has arisen or will arise which is otherwise chargeable for the year for which the assessment is made, the commissioners may discharge the amount so applied from the profits liable to assessment and charge under this rule.

7. In the case of all other profits not before enumerated (other than profits liable to deduction in pursuance of rules 1 and 4 of No. VIII. of this Schedule) arising from lands, tenements, hereditaments or heritages not being in the actual possession or occupation of the person to be charged, the annual value shall be understood to be the average amount for one year of the profits of the number of years which, on the statement of the person to be charged, appears to the commissioners to be fair and equitable. Tax shall be assessed and charged on the receivers of such profits or on the persons entitled thereto.

8. If, in estimating the value of any property enumerated in the above rules, it appears that the statement required cannot be made out because the possession or interest of the person to be charged commenced within the period upon the basis of which the profits are to be computed, the profits of one year shall be estimated in proportion to the profits received within the time which has elapsed since the commencement of that possession or interest.

No. III.

No. III.—Rules for estimating the annual value of certain other Lands, Tenements, Hereditaments, or Heritages which are not to be charged according to the preceding General Rule.

1. In the case of quarries of stone, slate, limestone, or chalk, the annual value shall be understood to be the profits of the preceding year.

2. In the case of mines of coal, tin, lead, copper, mundie, iron, and other mines, the annual value shall be understood to be the average amount for one year of the profits of the five preceding years : Schedule A.
No. III.

Provided that—

- (a) If any such mine has, from some unavoidable cause, so decreased and is so decreasing in annual value that an average of five years will not give a fair estimate thereof, the general commissioners of the division in which the mine is situate may, on proof thereof, compute the annual value on the actual amount of profits in the last preceding year subject to such abatement on account of diminution of duty within the current year as is in this Act provided in other cases; and
- (b) If any such mine has, from some unavoidable cause, wholly failed, the commissioners may, on due proof thereof, discharge the assessment.

3. In the case of ironworks, gasworks, salt springs or works, alum mines or works, waterworks, streams of water, canals, inland navigations, docks, drains or levels, fishings, rights of markets and fairs, tolls, railways and other ways, bridges, ferries, and other concerns of the like nature having profits from or arising out of any lands, tenements, hereditaments or heritages, the annual value shall be understood to be the profits of the preceding year.

4. Tax under the above rules shall be assessed and charged on the person or body of persons carrying on the concern, or on the agents or other officers who have the direction or management of the concern or receive the profits thereof.

5. Tax shall be assessed and charged on the value of the produce of the concern, before any distribution to any person entitled to any share thereof, or to the owner of the soil or property, or to any creditor or other person whatever who has a claim on the profits, and every such person shall allow, out of the produce or value, a proportionate deduction of the tax charged.

6. The said assessment and charge shall be exclusive of any lands used or occupied in connection with the concern which have been separately assessed and charged under this Act.

7.—(1) The computation in respect of any such mine carried on by a company of adventurers shall be made and stated jointly in one sum, but any adventurer may be assessed and charged separately if he makes a declaration of his proportion or share in the concern for that purpose.

(2) An adventurer so separately assessed and charged may set off against his profits from one or more of such concerns the amount of his loss sustained in any other such concern as certified by the commissioners for the division where the loss was sustained.

(3) In any such case one assessment and charge only shall be made on the balance of profit and loss, and shall be made in the parish where the adventurer is chargeable to the greatest amount.

8. The properties described in rules 1, 2 and 3 shall be assessed and charged in the manner herein mentioned according to the rules applicable to Schedule D so far as the same are consistent with the rules of this Number.

9. If in estimating the value of any property enumerated in rules 1, 2 and 3 it appears that the statement required cannot be

Schedule A.
No. III.

made out because the possession or interest of the person to be assessed and charged commenced within the period upon the basis of which the profits are to be computed, the profits of one year shall be estimated in proportion to the profits received within the time which has elapsed since the commencement of that possession or interest.

No. IV.

No. IV.—Rules for estimating Annual Value.

***1. Where—**

- (a) a landlord is subject to an agreement to pay or satisfy out of the rent reserved on any lands or tenements, any public local rates, taxes, or assessments, which by law are charged upon the occupier, or any composition for tithes; or
- (b) any person entitled to a rent or other annual payment in lieu of tithes (other than a tithe rentcharge confirmed under the Tithe Act, 1836), or to any composition for tithes, pays or satisfies out of the amount thereof any such public local rates, taxes or assessments charged upon the same;

the annual value shall be estimated exclusive of any such public local charges, or composition for tithes, bonâ fide paid by the landlord or other person aforesaid, respectively, in and for the year preceding the year of assessment.

***2.** Where the owner is also occupier of the lands or tenements, and has paid any such public local charges or composition for tithes in respect thereof, the annual value shall be estimated in like manner.

***3.** If the assessor is satisfied with the amount contained in any account or statement of the annual value of properties to be assessed under this Schedule delivered under this Act, he shall make an assessment on that amount, and if he is not satisfied, or if no such account or statement has been delivered, he shall estimate to the best of his judgment the annual value of the property and make an assessment thereon.

***4.** Where the annual value is to be ascertained according to the general rule of No. I. of this Schedule, and that value cannot be otherwise ascertained, and the last poor rate in the parish was made throughout on the annual value as the same would be estimated under the said general rule or on a proportionate part thereof, the assessor may make his assessment by reference to the annual value for the purposes of the poor rate, but in all cases on the full amount of the annual value instead of on a proportionate part thereof.

***5.** Where any dwelling-house or tenement, together with the offices, gardens, and lands occupied therewith, or any lands separately occupied, is of an annual value under ten pounds, the assessor may estimate the annual value to the best of his judgment and make an assessment thereon without requiring a statement of the annual value to be delivered, unless the surveyor objects to his estimate and requires a notice for that purpose to be served.

***6.** An assessor who, not having required such statement, neglects to estimate the true annual value of any such property and to assess the same according to this Act, shall forfeit a sum not exceeding ten pounds.

***7.** If any tenant at rackrent produces to the assessor the lease or agreement in writing under which he immediately holds any premises chargeable under the general rule of No. I. of this Schedule, and it appears therefrom that the premises have been let within the seven preceding years, and that no consideration in money other than the rent reserved is contained in the lease or agreement, the assessor may make his assessment according to that rent.

Schedule A
No. IV.

***8.** The tenant shall produce his lease or agreement to the assessor on request by him.

***9.** Any such assessment shall not be binding if it appears to the commissioners—

- (a) that the lease or agreement does not express the full consideration in money or value for the demise or the rent *bonâ fide* paid for the same; or
- (b) that the rent reserved is less than the rackrent on account of repairs or improvements effected, or to be effected, by the tenant or his assigns; or
- (c) that the lease or agreement was in any other respect made with intent to conceal the annual value of the premises, or to diminish the estimate to be made thereon, or has been assigned to the tenant or any former tenant for any consideration in money or value paid or agreed to be paid.

***10.** In making any such assessment regard shall be had to—

- (a) any increase of the amount of the rent reserved by reason of any agreement by the landlord to discharge the tenant's rates, taxes, assessments, or duties hereinbefore mentioned;
- (b) any decrease in the amount of the rent by reason of any agreement by the tenant to discharge those of the landlord;
- (c) any decrease in the amount of the rent by reason of any expenses incurred or to be incurred by the tenant or any assigns, whether mentioned or not in the lease or agreement; and
- (d) any deductions to be made on account of any public rate or assessment hereinbefore described.

***11.** In the case of a demise for years of land made in consideration of a rent reserved and of improvements to be made at the cost of the tenant, if it is proved to the satisfaction of the general commissioners that the rent reserved was, in view of the improved value expected to be realised at the cost of the tenant, based upon an estimate of the mean annual value of the land throughout the term, and that the rent, so computed, is fixed and payable at the same amount in each year so that in consequence thereof the rent payable exceeds the annual value at the commencement of the term, the annual value for each year of assessment during the term of the demise shall be taken to be the amount of the rent reserved without variation, subject to the deductions allowed by this Act.

***12.** A tenant being—

- (a) a tenant at rackrent under a parol demise from year to year within the period defined in the general rule of No. I. of this Schedule; and
- (b) a tenant who has neither the custody, nor the power to call for the production, of the lease or agreement under

Schedule A.
No. IV.

which he holds premises demised within the said period and who proves to the commissioners his inability to produce the same,

shall deliver to the assessor an account in writing, signed by him, stating the amount of the annual rent reserved on any such demise, and thereupon the same rules shall apply as in the case of a tenant who produces to the assessor his lease or agreement.

***13.** Lands held for a longer period than seven years, by a tenant at will or under a demise from year to year, shall be estimated and assessed at their annual value, unless the tenant proves to the satisfaction of the general commissioners that they are held under a demise which was commenced by an agreement made, and a rent fixed, within the period of seven years, on the determination of the former demise of those lands, by due notice within that period.

***14.** A person who wilfully—

- (a) delivers any such account as aforesaid, which is false; or
- (b) refuses, neglects, or omits to produce any lease or agreement with intent to conceal the annual value of the premises therein comprised, or to diminish the estimate to be made thereon,

shall forfeit the sum of twenty pounds, and may be charged in treble the tax chargeable, to be computed on the annual value of the premises and included in the assessment.

15. In Scotland—

- (a) Every tenant of lands, tenements, or heritages shall, within ten days after service by the assessor of a notice requiring him to do so, produce to the assessor the tack, lease, or other agreement or articles in writing under which he holds :
- (b) If any such documents of title are not within the custody, possession, or power of the tenant, or if there are no such documents, the tenant shall deliver to the assessor within the time limited as aforesaid, a written note stating the actual rent annually reserved, and any other valuable consideration given to the landlord for the tenancy :
- (c) A tenant who wilfully neglects to comply with any such notice shall be liable to a penalty of treble the tax chargeable on such lands, tenements, or heritages :
- (d) On the production of any such documents of title, the assessor may make his assessment according to the rent therein reserved, or if they are not produced, upon the rent reserved as disclosed in the written note, if he is satisfied that there was no other valuable consideration :
- (e) If no written note is delivered, or if the assessor is not satisfied therewith, the assessor shall make an assessment in accordance with the provisions of this Act :
- (f) If a farm, occupied by any such tenant, is distant more than ten miles from the dwelling-house of the assessor, the tenant may leave his lease or written note with the nearest justice of the peace, or with the minister of the parish in which the farm is situate, and the justice or minister, as the case may be, shall show the lease or note of the rent to the assessor when required.

*No. V.—Rules in respect of Deductions and Allowances.*Schedule A.
No. V.

1. The following deductions and allowances shall be made under this Schedule :—

- (a) The amount of the tenths and first fruits, duties, and fees on presentations paid by any ecclesiastical person within the year preceding the year of assessment :
- (b) The amount paid for procurations and synodals by ecclesiastical persons on an average of seven years preceding the year of assessment :
- (c) The amount expended during the year preceding the year of assessment on repairs of any collegiate church or chapel, or chancel of a church, or of any college or hall in any university of the United Kingdom, by any ecclesiastical or collegiate body, rector, vicar, or other person bound to repair the same :
- (d) The amount paid for public local rates, taxes, and assessments charged in respect of a rentcharge under the Tithe Act, 1836, for the year of assessment, except where the owner of the rentcharge has been charged therefor under rule 7 of No. VII. of this Schedule :
- (e) The amount of any unredeemed land tax charged on lands, tenements, hereditaments, and heritages, under the Land Tax Act, 1797 : 38 Geo. 3. c. 5.
- (f) The amount charged on lands, tenements, hereditaments, and heritages, by a public rate or assessment in respect of draining, fencing, or embanking :
- (g) The amount expended by the landlord or owner of lands on an average of the twenty-one preceding years, in the making or repairing of sea walls or other embankments necessary for the preservation or protection of the lands against the encroachment or overflowing of the sea or any tidal river, although the sums expended may not have been charged on the lands by a public rate or assessment :

Provided that this rule shall not apply within the administrative county of London so far as respects the deductions allowed by the Valuation (Metropolis) Act, 1869.

32 & 33 Vict.
c. 67.

2. The foregoing allowances shall (unless the payments to which they relate, or any part thereof, be made by a tenant) be made from the assessment on the property concerned, save as is hereinafter provided.

3. The allowances granted under paragraphs (a), (b) and (c) of rule 1 may be granted to the body or person therein described in one sum, either by deduction from the assessment, if any, on such body or person, or by repayment, but any allowance made under rule 1 on account of charges payable in respect of tithe rentcharge shall be granted by repayment only.

4.—(1) Where it is shown to the satisfaction of the Commissioners of Inland Revenue that the landlord of lands in Scotland is by law—

- (a) charged with any public rates, taxes, or assessments which in England are by law a charge on the occupiers of lands ; or
- (b) charged with any public rates or taxes or other public burdens, the like whereof are not chargeable on lands in England

Schedule A
No. V.

the said Commissioners shall cause such relief to be given in respect of tax as is just and reasonable having regard to the additional burden on the landlord;

(2) Relief under this rule may be given in accordance with such regulations as the said Commissioners may prescribe, either by abatement from the assessment, or by repayment of tax.

5. The person entitled to any of the foregoing allowances which have not been made by way of deduction or abatement from the assessment and which may be made by repayment, may claim the allowance at any time within three years after the expiration of the year of assessment, before the general commissioners of the division in which the property charged with the payments is situate.

6. The general commissioners on proof that the claimant is entitled to the allowance shall certify the particulars and amount thereof to the special commissioners, who shall issue an order for repayment.

7.—(1) Where tax is charged upon annual value estimated otherwise than by relation to profits, the following provisions shall have effect:—

(a) In the case of an assessment on lands inclusive of the farmhouse and other buildings (if any), the amount of the assessment shall, for the purposes of collection, be reduced by a sum equal to one-eighth part thereof; and

(b) In the case of an assessment upon any house or building (except a farmhouse or building included with lands in assessment), the amount of the assessment shall, for the purposes of collection, be reduced—

(i) Where the owner is occupier or chargeable as landlord, or where a tenant is occupier and the landlord undertook to bear the cost of repairs, by a sum equal to one-sixth part of that amount; and

(ii) Where a tenant is occupier and undertook to bear the cost of repairs, by such a sum, not exceeding one-sixth part of that amount, as may be necessary to reduce it to the amount of rent payable by him.

(2) Where the amount of the assessment in the case of lands (inclusive of the farmhouse and other buildings) is more than one-eighth, and in the case of any house or building (except a farmhouse or building included with lands in assessment) is more than one-sixth below the rent, after deducting from such rent any outgoing which should by law be deducted in making the assessment, this rule shall not apply.

8.—(1) If the owner of any land or houses to which this rule applies shows that the cost to him of maintenance, repairs, insurance, and management, according to the average of the preceding five years, has exceeded, in the case of land, one-eighth part of the annual value of the land as adopted under this Schedule, and, in the case of houses, one-sixth part of that value, he shall be entitled in addition to any reduction of the assessment for the purposes of collection, on making a claim for the purpose, to repayment of the amount of the tax on the excess.

(2) For the purposes of this rule, the term "maintenance" shall include the replacement of farmhouses, farm buildings, cottages,

fences, and other works where the replacement is necessary to maintain the existing rent. Schedule A.
No. V.

(3) This rule shall apply to any land (inclusive of farmhouses and other buildings, if any) the assessment on which is reduced for the purpose of collection, and to any house the annual value of which, as adopted under this Schedule, does not exceed twelve pounds, and the assessment on which is so reduced.

(4) In comparing, for the purpose of this rule, the cost of maintenance, repairs, insurance, and management of any land or houses with the annual value of the land or houses, the total cost of the maintenance, repairs, insurance and management on any land managed as one estate, or of any houses on any such land, shall be compared with the total annual value of the land or houses, as the case may be.

(5) All the provisions of this Act which relate to claims for exemption, abatement, or relief, or the proof to be given with respect to those claims, shall apply to claims for repayment under this rule and the proof to be given with respect to those claims :

Provided that if the owner of any land or house makes and delivers to the surveyor of any district in which the land or house is wholly or partly situate a declaration as to the cost to him of maintenance, repairs, insurance, and management, and the surveyor is satisfied as to the correctness of the declaration, the amount of the allowance to which the owner is entitled under this rule shall be certified by the surveyor, and repayment shall thereupon be made in accordance with his certificate.

(6) In computing the five-year average for the purposes of this rule, the year shall be taken to be the year ending on the thirty-first day of March, or such other date as may be adopted by the owner of the land or houses with the consent of the surveyor of the district, and the five preceding years shall be taken to be those preceding the commencement of the year for which the tax in respect of which a claim for repayment is made is charged.

9.—(1) Where land has been demised at a reserved rent, without fine or other sum paid or contracted for in lieu of a reserved rent, and loss has been sustained on the growing crops or stock on the lands, or the lands or any part of them have been rendered incapable of cultivation for any year, by reason of flood or tempest, the general commissioners for the division in which the lands are situate, on proof to them that the owner has, in consideration of any such loss, allowed or agreed to allow, to the tenant an abatement of the whole or any part of the rent reserved or payable for any year of the term, may in like proportion make an abatement in the assessment under this Schedule for the year for which the abatement of rent has been made, and discharge therefrom the corresponding proportion of tax.

(2) Where any such loss is sustained on lands in the occupation of the owner, the commissioners may, on proof of the loss, make the like abatement and discharge of tax under this Schedule as might have been made if the land had been demised to a tenant, and the owner had made such abatement of rent proportionate to the loss sustained as the general commissioners consider would or ought to have been made in respect of such loss.

10. A person who—

- (a) makes any false claim for an abatement under rule 9; or
- (b) is guilty of any fraud or contrivance in making any such claim, or obtaining any such abatement; or

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No. V.

- (c) fraudulently or untruly declares the amount or value of such loss, or the amount or value of any abatement made or agreed to be made in the rent of lands occupied by him on account of such loss, with the intention of fraudulently obtaining any such abatement,

shall forfeit the sum of fifty pounds and treble the amount of tax charged on him in respect of the lands.

11. A person who—

- (a) aids, abets, or assists a person charged with tax in making any such false or fraudulent claim; or
(b) fraudulently or untruly declares the amount or value of any abatement made, or agreed to be made, in the rent of any lands, or the amount or value of any loss, with intent fraudulently to obtain for himself, his tenant, or for the owner or tenant of any lands any such abatement as aforesaid,

shall forfeit the sum of one hundred pounds.

No. VI.

No. VI.—Rules in respect of further Allowances.

1. The following further allowances shall be made under this Schedule :—

- (a) The amount of the tax charged on any college or hall in any university of the United Kingdom, in respect of the public buildings and offices belonging to the college or hall, so far as not occupied by any individual member thereof or by any person paying rent for the same :
(b) The amount expended on repairs of the public buildings and offices of any such college or hall, and of the gardens, walks, and grounds for recreation, repaired and maintained by the funds of the college or hall :
(c) The amount of the tax charged on any hospital, public school, or almshouse, in respect of the public buildings, offices, and premises belonging thereto, and so far as not occupied by any individual officer or the master thereof whose total annual income, however arising, estimated in accordance with this Act, amounts to one hundred and fifty pounds or more, or by a person paying rent for the same :
(d) The amount expended on repairs of any such hospital, public school, or almshouse, and of the offices belonging thereto, and of the gardens, walks, and grounds used for the sustenance or recreation of the hospitallers, scholars and almsmen respectively, which are repaired and maintained by the funds of the hospital, public school or almshouse :
(e) The amount of the tax charged on any building being the property of any literary or scientific institution, and used solely for the purposes of that institution, in which no payment is made or demanded for any instruction there afforded by lectures or otherwise, and so far as not occupied by an officer of the institution or by any person paying rent for the same.

2. The allowances under the foregoing rule shall be granted by the general commissioners for the division.

*No. VII.—Rules as to Persons chargeable.***Schedule A.
No. VII.**

1. Save as in this Act provided in any particular case, tax under this Schedule shall be charged on and paid by the occupier for the time being.

2. Every person having the use of any lands or tenements shall be deemed to be the occupier thereof.

3. The tax on each assessment shall be levied on the occupier for the time being, without any new assessment, notwithstanding any change of occupation :

Provided that—

(a) An occupier who quits occupation shall be liable for the tax payable in respect of the period up to the date of his quitting occupation, so far as such tax falls to be ultimately borne by him :

(b) Nothing in this Act shall extend to authorise the levying upon an occupier for the time being of any tax under this Schedule which ought to have been levied upon and ultimately borne by any former occupier of the lands, tenements or hereditaments, and nothing herein contained shall affect any remedy under this Act for the levying of any such tax or any portion thereof, from such former occupier.

4. Tax under this Schedule shall be charged on all lands, tenements and hereditaments, whether occupied at the time of assessment or not, but if any house is or becomes unoccupied for the year or for part of the year of assessment, the tax shall not be levied thereon during the period while it is so unoccupied, and the general commissioners, on proof of the period during which the house was unoccupied, shall upon appeal discharge the tax in respect of that period.

5. If, after the making of an assessment, the lands are divided into two or more distinct occupations, the general commissioners, on the application of the persons respectively interested, shall determine what proportion of the tax shall be paid or borne by each occupier, and the amount apportioned shall be collected and levied in like manner as if it had been an original assessment.

*6. In respect of any compositions, rents, or other payments in lieu of tithes the commissioners may, if they think fit—

(a) charge the occupiers of the lands from which the tithes arise;
or

(b) charge the respective persons liable to make any such payments; and

(c) direct notices to be delivered to any such persons respectively for the purpose of obtaining returns of any such payments, and the like provisions and penalties shall apply as in the case of statements to be delivered of the annual value of lands.

*7.—(1) Where lands, tenements, or hereditaments are subject to a rentcharge under the Tithe Act, 1836, or to any other rentcharge in lieu of tithe, and the owner of such rentcharge makes a return thereof for the purpose of an assessment being made upon him, the commissioners may, if they think fit, charge him under this Schedule in respect of the rentcharge, deducting therefrom the public local rates, taxes, and assessments charged thereon in the preceding year.

Schedule A.
No. VII.

(2) Where any such charge is made upon the owner of the rent-charge, the amount of the rentcharge shall be allowed as a deduction from the annual value in assessing the lands, tenements, and hereditaments upon which it is charged.

8. The assessment and charge shall be made upon the landlord in respect of—

- (a) any dwelling-house in the occupation of a tenant which, with the buildings or offices belonging thereto, and the land occupied therewith, is of less annual value than ten pounds; and
- (b) any lands and tenements which are let for a period less than one year; and
- (c) any house or building let in different apartments or tenements, and occupied by two or more persons severally. Any such house or building shall be assessed and charged as one entire house or tenement :

Provided that in each of the above cases in default of payment by the landlord, the tax may be levied upon the occupier or occupiers respectively.

9.—(1) The landlord or immediate lessor of any lands, houses, or buildings may, if the general commissioners think fit, be assessed and charged as if he were the occupier thereof, for any year of assessment in which a request in writing to that effect is received from him and for subsequent years until he shall by notice in writing cancel such request.

(2) Any such request or notice shall be delivered personally or be sent by post to the clerk to the general commissioners on or before the thirty-first day of July in the year for which it is first to take effect.

(3) The tax so charged upon the landlord or immediate lessor may be recovered from him in the same manner as any other income tax is recoverable, but this provision shall not prejudice the right to recover the same, if necessary, by distraint upon the premises or property in respect of which the charge was made, in the same way as if the charge had been made upon the occupier for the time being.

10. Tax to be charged in respect of any house or tenement occupied by the accredited Minister of any foreign State shall be charged on and paid by the landlord or person immediately entitled to the rent of the house or tenement.

11. Tax to be charged in respect of any house, tenement, or apartment belonging to the Crown, in the occupation of any officer of the Crown, by right of his office or otherwise, except apartments in Royal palaces, shall be charged on and paid by the occupier on the annual value thereof.

12. Where a house is divided into distinct properties, and occupied by distinct owners or their respective tenants, such properties shall be separately assessed and charged on the respective occupiers thereof.

13.—(1) Any mortgagee or creditor in any heritable bond or wadset, in possession of the lands, tenements, hereditaments, or heritages mortgaged or secured, if in actual occupation of the same, shall be assessed and charged as an occupier, and if not in actual occupation, shall be liable to the like deduction as any landlord.

(2) In any settlement of accounts between such mortgagee or other creditor and the mortgagor or debtor, tax payable on interest due in respect of the mortgage or debt shall be allowed as money received on account of interest.

Schedule A.
No. VII.

No. VIII.—Rules as to the right of persons by whom tax is paid to recoupment in certain cases.

No. VIII.

1. A tenant occupier of any lands, tenements, hereditaments or heritages who pays the tax shall be entitled to deduct and retain in respect of the rent payable to the landlord for the time being (all sums allowed by the commissioners being first deducted), an amount representing the rate or rates of tax in force during the period through which the said rent was accruing due for every twenty shillings thereof, the said deduction to be made out of the first payment thereafter made on account of rent, and any receiver on behalf of the Crown or other person receiving the rent shall allow the deduction on receipt of the residue of the rent :

Provided that in Scotland the said deduction from any rent due for the period ending on the fifteenth day of May shall be made at the rate of the tax in force at the commencement of that period :

Provided also that a tenant or occupier shall not be entitled to deduct out of the rent any greater sum than the amount of tax charged in respect of such property as aforesaid, and actually paid by him.

2. A tenant who pays the tax shall be acquitted and discharged of so much money as is represented by the deduction, as if that sum had been actually paid as rent.

3. An occupier of lands charged on the amount of any composition, rent, or payment for tithes arising therefrom who pays the tax shall on payment thereof be entitled to make the like deduction from any such composition, rent, or payment.

4.—(1) Where any lands, tenements, hereditaments, or heritages are subject to the payment of any annual sum, whether payable half-yearly or at any shorter or more distant period, a landlord, owner or proprietor who has been charged to tax under this Schedule or from whom tax is deductible under this rule or rule 1 or rule 3, shall be entitled on making such payment to deduct and retain thereout so much of the said tax as represents the rate or rates of income tax in force during the period through which the said payment was accruing due, for every twenty shillings thereof (the just proportion of any sums allowed by the commissioners being first deducted), and every receiver on behalf of the Crown, and every person to whom such payment is made shall, on receipt of the residue thereof, and without any charge for so doing, allow the deduction :

Provided that in Scotland the said deduction from any such payment due for the period ending on the fifteenth day of May shall be made at the rate of the tax in force at the commencement of that period :

Provided also that no such person as aforesaid who is also a tenant or the occupier of the lands, tenements, hereditaments, or heritages, shall be entitled to deduct out of any rent any greater sum than the amount of tax charged in respect of any such property and actually paid by him.

(2) In this rule " annual sum " means any yearly interest, annuity, rent, rentcharge (whether under the Tithe Act, 1836, or otherwise),

Schedule A.
No. VIII.

fee farm rent, rent service, quit rent, feu duty, teind duty, stipend to a licensed curate, or other annual payment reserved or charged upon any lands, tenements, hereditaments, or heritages.

5. The landlord, owner or proprietor shall be acquitted and discharged of so much money as is represented by the deduction as if that sum had been actually paid.

10 & 11 Vict.
c. 32.

6. Where under any Act passed before the twenty-eighth day of June, eighteen hundred and fifty-three, and in Ireland, under the Landed Property Improvement (Ireland) Act, 1847, or any Acts amending the same, an advance of public money to promote the improvement of lands has been made by way of loan, and the repayment thereof has been secured by a rentcharge upon the lands to be paid for a term of years, by which the principal sum advanced will eventually be repaid with interest, the person paying any such rentcharge may deduct and retain thereout so much of the tax under this Schedule charged in respect of the lands, as represents the tax on one-third, and no more, of the amount payable at the rate or rates of tax in force during the period through which the payment was accruing due; and the collectors and receivers of such rentcharges shall allow such deduction upon receipt of the residue of such rentcharge then due.

7. A tenant occupier for the time being of any lands, tenements or hereditaments, who has been required to pay, and has paid, any sums charged in respect thereof under this Schedule which, under the provisions of this Act, ought to have been or ought to be paid by a former tenant or occupier, may deduct and retain out of any subsequent payment of rent to his landlord, the sum, or any part thereof, which ought to have been or ought to be so paid.

8. Where under rule 8 of No. VII. tax has been charged upon a landlord in respect of any premises mentioned in paragraph (a) or (b) of that rule, and in default of payment by the landlord the tax has been levied upon the occupier, the tax may be deducted and shall be allowed out of the next payment on account of rent.

9. Where under rule 8 of No. VII. tax has been charged upon a landlord in respect of any premises mentioned in paragraph (c) of that rule, and in default of payment by the landlord the tax has been levied upon the occupier or occupiers, the tax may be deducted and shall be allowed out of the next or any subsequent payment on account of rent.

10. If for the purpose of avoiding distraint upon any premises or property under paragraph (3) of rule 9 of No. VII. the occupier pays the tax, the amount thereof may be deducted and shall be allowed out of the next or any subsequent payment on account of rent.

11. As between the owner and a mortgagee of his property or any person having a charge thereon or entitled to any ground rent, rentcharge, annuity, or other annual sum payable thereout, the owner's right of deduction under these rules in respect of tax shall not be affected by any relief afforded under rule 7 of No. V.

No IX.

No. IX.—Rules as to Place of Charge.

1. All properties shall be assessed and charged in the parish where they are situate, and not elsewhere, except as otherwise provided in the following rules

2. Profits arising from canals, inland navigations, streams of water, drains or levels, railways or other roads or ways of a public nature and belonging to or vested in any company of proprietors or trustees, corporate or not corporate, may be included in one statement and assessed and charged in the parish in which the general accounts of the concern are usually made up.

**Schedule A.
No. IX.**

3. Profits of a manor or royalty which extends into different parishes may be included in one statement and assessed and charged in the parish where the court of the manor or royalty is usually held.

4. Profits of all fines received by the same person may be included in one statement and assessed and charge in the parish where that person resides or, in the case of a body of persons, where that body has its head office.

*5. In the case of all lands the occupier, whether owner or tenant, or tenant under different owners, and whether the lands are situate in the same or in different parishes or divisions, shall return a statement in each parish in which any part of the lands is situate, and give a separate estimate of the lands in his occupation belonging to different owners, and if any such occupier wilfully omits to deliver any such statement in any parish, although he may not reside therein, he shall be charged for the lands omitted at treble the rate of tax in addition to any penalty for which he is liable.

*6. Lands held under the same demise, or occupied by the same person as owner, if they are wholly within the same division though situate in different parishes, may, if the commissioners are satisfied that the proportion in each parish, in respect of quantity, rent, or value, cannot be ascertained, be assessed and charged in either parish.

*7. In any such case if any lands extend into different divisions the assessment and charge shall be made in the division where the occupier resides.

8. Where a dwelling-house or any premises occupied therewith is situate in two or more parishes, the assessment and charge thereon shall be made in such one of those parishes only as the surveyor deems most expedient, and the surveyor shall notify to the commissioners acting for each of the said parishes the parish selected by him.

9. Where a mine is situate, or where its produce is manufactured, in a parish other than that in which the produce is sold, the profits of the mine shall be assessed and charged in the parish and division in which the mine is situate, or in which the produce is manufactured.

SCHEDULE B.

Schedule B.

Tax under Schedule B shall be charged in respect of the occupation of all lands, tenements, hereditaments, and heritages in the United Kingdom for every twenty shillings of the assessable value thereof estimated in accordance with the rules of this Schedule.

In this Act the expression "assessable value" means in relation to tax under this Schedule an amount equal to twice the annual value of the lands, tenements, hereditaments, or heritages, or, in any case in which it is proved to the satisfaction of the commissioners concerned that any person occupying any lands and assessed to tax in respect thereof is not occupying those lands for the purpose of husbandry only, or mainly for those purposes, and the Board of

Schedule B. Agriculture and Fisheries on a reference to the Board by the Commissioners of Inland Revenue do not verify that the use of the lands by the occupier thereof for a purpose other than the purpose of husbandry is unreasonable, an amount equal to the annual value.

The expression "Board of Agriculture and Fisheries" means in the application of this Act to Scotland, the Board of Agriculture for Scotland, and in the application of this Act to Ireland, means the Department of Agriculture and Technical Instruction for Ireland.

RULES APPLICABLE TO SCHEDULE B.

Nothing in these rules shall affect the valuation of lands, tenements or hereditaments within the administrative county of London with respect to which the valuation list under the Valuation (Metropolis) Act, 1869, is by that Act made conclusive, for the purposes of income tax, and rule 2 and any other rule which relates to the ascertainment of the value of such lands, tenements and hereditaments shall not apply within the administrative county of London, except in the case of hereditaments which are not included in such valuation list, or hereditaments of which it is necessary to make a separate valuation by reason of their not being separately valued in any such valuation list.

Rules.

1. Tax under this Schedule shall be charged in addition to the tax to be charged under Schedule A on all the properties in this Act directed to be charged to the said tax according to the general rule of No. I. of Schedule A :

Provided that there shall not be charged under this Schedule—

- (a) any dwelling-house or the domestic offices thereunto belonging, unless occupied, by virtue of one and the same demise, together with a farm of lands, or with a farm of tithes, for the purpose of farming the same; or
- (b) any warehouse or other building occupied for the purpose of carrying on a trade or profession.

2. The rules of No. IV. of Schedule A shall apply with respect to estimating the annual value of land under this Schedule, subject to the following modifications :—

- (a) Where any tenant of lands or tenements is subject to an agreement to pay or satisfy any rates, taxes, or assessments which are by law chargeable on or payable by the landlord, the amount thereof *bonâ fide* paid by the tenant in and for the year preceding the year of assessment, shall, in making the estimate, if the lands have been let within the seven preceding years be added to the rent reserved; if the lands or tenements were not let within the said period the estimate shall be made according to the general rule of No. I. of Schedule A, with the like addition of the amount of any such payment :
- (b) In the case mentioned in rule 11 of the said No. IV., the annual value shall be taken to be the rackrent at which the land could have been let by the year at the commencement of the demise as ascertained in accordance with this Act.

3. Rules 9, 10, and 11 of No. V. of Schedule A, relating to relief in the case of losses caused by flood or tempest, shall apply in the case of this Schedule as in the case of Schedule A, and as respects land the proprietor of which is shown to the satisfaction of the general commissioners to be an infant, idiot, or lunatic, or to be otherwise incapable of consenting to an abatement of the rent, an abatement and discharge of tax under this Schedule may be allowed by the general commissioners on proof to them of the loss in respect of the abatement of rent which in their opinion ought to have been made.

Schedule B.
Rules.

4. Rules 1, 2, 3, 4, and 5 of No. VII. of Schedule A, relating to the person chargeable, shall apply in the case of this Schedule as they apply in the case of Schedule A.

5.—(1) Any person occupying lands for the purposes of husbandry only may elect to be assessed and charged under Schedule D, and in accordance with the provisions and rules applicable thereto, instead of under this Schedule.

(2) The election of any such person shall be signified by notice in writing delivered personally or sent by post in a registered letter to the surveyor for the district within two months after the commencement of the year of assessment; and from and after the receipt of the notice the charge upon him for that year shall be under Schedule D, and the profits or gains arising to him from the occupation of the lands shall for all purposes be deemed to be profits or gains of a trade chargeable under that Schedule.

6. If a person who occupies, either as owner or otherwise, any lands for the purposes of husbandry only, shows at the end of any year of assessment to the satisfaction of the general commissioners that the profits or gains arising from that occupation during that year fell short of the assessable value of the lands under this Schedule, the income arising from that occupation shall be taken at the actual amount of those profits or gains, and if the whole of the tax has been paid, the amount overpaid shall be certified and repaid in like manner as tax is repaid under rule 6 of No. V. of Schedule A.

7. Any person occupying woodlands, who proves to the satisfaction of the general commissioners or of the special commissioners that those woodlands are managed by him on a commercial basis and with a view to the realisation of profits, may elect to be assessed and charged to tax in respect of those woodlands under Schedule D instead of under this Schedule in the same manner as a person occupying lands for the purposes of husbandry only, and rule 5 shall apply accordingly, subject as follows :—

- (a) Any such election shall extend to all woodlands so managed on the same estate, but woodlands which are or have been planted or replanted since the nineteenth day of July nineteen hundred and sixteen shall be treated for this purpose as being woodlands on a separate estate, if the person occupying those woodlands gives notice to the general or special commissioners within a year after the time when they are so planted or replanted; and
- (b) The election shall have effect, not only as respects the year of assessment, but also as respects all future years of assessment, so long as the woodlands are occupied by the person making the election :

Schedule B.
Rules.

- (c) Any application to prove the aforesaid facts in any year in respect of the same woodlands must be made either to the general commissioners or to the special commissioners, and not to both.

8. The profits arising from lands occupied as nurseries or gardens for the sale of the produce (other than lands used for the growth of hops) shall be estimated according to the provisions and rules applicable to Schedule D, but shall be assessed and charged under this Schedule as profits arising from the occupation of lands.

Schedule C.

SCHEDULE C.

Tax under Schedule C shall be charged in respect of all profits arising from interest, annuities, dividends, and shares of annuities payable out of any public revenue, for every twenty shillings of the annual amount thereof.

RULES APPLICABLE TO SCHEDULE C.

General Rules.

1. Tax under this Schedule—

- (a) shall extend to all profits arising from interest, public annuities, dividends and shares of annuities payable in the United Kingdom out of any public revenue in the United Kingdom or elsewhere, in any year of assessment; and
- (b) shall be charged by the commissioners designated for that purpose by this Act; and
- (c) shall be paid by the persons and bodies of persons respectively intrusted with payment, on behalf of the persons entitled thereto.

2. No tax shall be chargeable in respect of—

- (a) The stock, dividends or interest transferred to accounts in the books of the Bank of England in the name of the Treasury or the National Debt Commissioners in pursuance of any Act of Parliament, but the Bank of England shall transmit to the special commissioners an account of the total amount thereof :
- (b) The stock, dividends or interest belonging to the Crown in whatever name they may stand in the books of the Bank of England :
- (c) The stock, dividends or interest of any accredited minister of any foreign State resident in the United Kingdom : Provided that if the same stand in the name of a trustee, the property therein of any such minister shall be proved by the trustee to the special commissioners :
- (d) The interest or dividends on any securities of a foreign State or a British possession which are payable in the United Kingdom, where it is proved to the satisfaction of the Commissioners of Inland Revenue that the person owning the securities and entitled to the interest or dividends is not resident in the United Kingdom; but, save as provided by this Act, no allowance shall be given or repayment be made in respect of the tax on the interest or

dividends on the securities of any foreign State or any British possession which are payable in the United Kingdom :

**Schedule C.
Rules.**

Provided that where the securities of a foreign State or British possession are held under any trust, and the person who is the beneficiary in possession under the trust is the sole beneficiary in possession and can, by means either of the revocation of the trust or of the exercise of any powers under the trust, call upon the trustees at any time to transfer the securities to him absolutely free from any trust, that person shall, for the purposes of this provision, be deemed to be the person owning the securities.

The aforesaid relief may be given by the Commissioners of Inland Revenue either by way of allowance or repayment on a claim being made to them for the purpose.

3. Any bank carrying on a bonâ fide banking business in the United Kingdom shall be relieved, by repayment or otherwise, from tax under this Schedule in respect of the interest on any securities which the bank proves to the satisfaction of the special commissioners to represent subscriptions by the bank to any Government loan issued for the purposes of the present war either before or after the passing of this Act, and the bank shall include the amount of any such interest in the computation of its profits or gains for the purpose of assessment under Case I. of Schedule D.

Rules as to interest, &c., payable out of public revenue to or through the Bank of England or the Bank of Ireland, or by the National Debt Commissioners.

1. The Bank of England and the Bank of Ireland as respects any interest, annuities, dividends and shares of annuities and the profits attached thereto payable to them out of the public revenue of the United Kingdom, or payable out of any public revenue and intrusted to them for payment and distribution, and the National Debt Commissioners as respects interest, annuities and dividends payable by them or of which they have the distribution, shall, when any payment becomes due, deliver to the commissioners appointed to assess and charge the tax thereon true accounts in books provided for the purpose, of—

- (a) the amounts of the interest, annuities, dividends, or shares of annuities and profits attached thereto payable to the Bank ;
- (b) all interest, annuities, dividends and shares of annuities intrusted to the Bank or to the National Debt Commissioners for payment to the persons entitled thereto ; and
- (c) the amount of tax chargeable thereon at the rate in force at the time of payment without any other deduction than is allowed by this Act.

2. The aforesaid accounts shall distinguish the separate account of each person.

3. The appropriate commissioners shall assess the tax chargeable on the accounts delivered to the best of their judgment and belief, and deliver the assessment books, signed by them, to the special commissioners.

Schedule C.
Rules

4. The special commissioners shall cause to be made out two certificates showing the total amount of tax, the total amounts of the interest, annuities, dividends, and shares of annuities and profits attached thereto charged with tax, and the description of the persons or bodies of persons to whom the same are payable, or who have the distribution or are intrusted with the payment thereof.

5. One certificate shall be transmitted to the respective commissioners whose duty it is to make the assessments and the other to the Commissioners of Inland Revenue.

6. The Bank of England and the Bank of Ireland shall set apart the tax in respect of the amounts payable to them, and the said Banks and the National Debt Commissioners respectively shall, before any payment is made by them, retain the amount of the tax for the purposes of this Act.

7. The retaining of the amount shall be deemed a payment of the tax by the persons entitled to the interest, annuities, dividends, or shares of annuities, and shall be allowed by them on receipt of the residue thereof, and the Bank of England, the Bank of Ireland, and the National Debt Commissioners respectively shall be acquitted and discharged of a sum equal to the amount retained as though that sum had been actually paid.

8. Money so set apart or retained and the amount of any tax charged on the trading profits of either Bank, shall be paid into the general account of the Commissioners of Inland Revenue at the Bank of England or the Bank of Ireland, and every such payment shall be accompanied with a certificate, under the hands of two or more of the commissioners who made the assessment, of the amount of the assessment under which the payment is made.

9. Except as otherwise provided in any other enactments in force at the commencement of this Act, no assessment, charge or deduction of tax under these rules shall be made where any half-yearly payment in respect of interest, annuities, dividends, or shares of annuities does not exceed fifty shillings, but such interest, annuities, dividends or shares of annuities shall be assessed and charged under Case III. of Schedule D.

10. No deduction of tax under these rules shall be made from any dividends in respect of which such certificate as is mentioned in section twenty-eight of the Charitable Trusts (Amendment) Act, 1855. has been given to the Bank of England.

* 18 & 19 Vict.
c. 124.

Rules as to interest, &c., with the payment of which persons other than the Bank of England, the Bank of Ireland and the National Debt Commissioners are intrusted.

1. Every person (other than the National Debt Commissioners or the Bank of England or the Bank of Ireland) who is intrusted with the payment of any dividends which are payable to any persons in the United Kingdom out of any public revenue other than that of the United Kingdom shall, within one month after being so required by notice published in the Gazette, deliver to the Commissioners of Inland Revenue an account in writing, giving his name and residence, and a description of the dividends intrusted to him for payment, and shall also, on demand by the inspector authorised for that purpose by the Commissioners of Inland Revenue, deliver to him, for the use of

the special commissioners, true and perfect accounts of the amount of all such dividends. Schedule C.
Rules.

2. The special commissioners shall have all necessary powers in relation to the examining, auditing, checking and clearing the books and accounts of dividends delivered under the authority of this Act, and shall assess and charge the dividends at the rate of tax in force at the time of payment, but reduced by the amount of the exemptions (if any) allowed by them, and shall give notice of the amount so assessed and charged to the person intrusted with payment.

3. The person intrusted with payment shall out of the moneys in his hands pay the tax on the dividends on behalf of the persons entitled thereto, and shall be acquitted in respect of all such payments, and the provisions of this Act shall apply as in the case of dividends payable as aforesaid out of the public revenue of the United Kingdom.

4. The person intrusted with payment shall pay the tax into the general account of the Commissioners of Inland Revenue at the Bank of England or the Bank of Ireland, and in default of payment it shall be recovered from him in the same manner as other income tax assessed and charged upon him may be recovered.

5. A person intrusted with payment who does all such things as are necessary to enable the tax to be assessed and paid shall receive as remuneration an allowance, to be calculated by reference to the amount of the dividends paid from which tax has been deducted, and to be fixed by the Treasury at a rate not being less than thirteen shillings and sixpence for every thousand pounds of that amount.

6. A person intrusted with payment who neglects or refuses to deliver any such account as required by these rules shall forfeit the sum of one hundred pounds over and above the tax chargeable on any such dividends.

7. The following persons, that is to say :—

- (a) Any person having the ordinary custody of any book, or making any list ordinarily kept in the United Kingdom, wherein the right or title of the person to whom the payment is to be made is shown by the registration or entry of his name;
- (b) Any banker or person acting as a banker, who sells or otherwise realises coupons for any dividends (save such as are payable in the United Kingdom only), and pays over the proceeds to any person or carries the same to his account;
- (c) Any person who by means of coupons received from any other person or otherwise on his behalf, obtains payment of any dividends elsewhere than in the United Kingdom;
- (d) Any dealer in coupons who purchases coupons for any dividends (save such as are payable in the United Kingdom only) otherwise than from a banker or person acting as a banker, or another dealer in coupons,

shall be included as being persons intrusted with the payment of dividends within the meaning of these rules.

8. Nothing in these rules shall impose on any banker or other person acting as a banker the obligation to disclose any particulars relating to the affairs of any person on whose behalf he may be acting.

9. In these rules the expression "dividends" includes interest, annuities, dividends, and shares of annuities, and the expressions

Schedule C.
Rules.

“coupons” and “coupons for any dividends,” include warrants for or bills of exchange purporting to be drawn or made in payment of any dividends.

Rules as to interest, &c., payable out of public revenue by any public department.

1. Interest, annuities, dividends and shares of annuities payable out of any public revenue by any public office or department of the Crown shall be charged under this Schedule by the commissioners for offices in the said public office or department.

2. The said commissioners shall exercise the like powers and duties as are possessed by the commissioners empowered to charge interest, annuities, dividends, and shares of annuities payable out of the public revenue in other cases, and shall appoint assessors and collectors from the officers in their office or department entrusted with the payment thereof.

3. The said assessors and collectors shall, when any such payments are made as aforesaid, compute the tax thereon and certify the same to the proper officer for payment, who shall retain the tax and pay the same into the general account of the Commissioners of Inland Revenue at the Bank of England or the Bank of Ireland.

Schedule D.

SCHEDULE D.

1. Tax under this Schedule shall be charged in respect of—

(a) The annual profits or gains arising or accruing—

(i) to any person residing in the United Kingdom from any kind of property whatever, whether situate in the United Kingdom or elsewhere; and

(ii) to any person residing in the United Kingdom from any trade, profession, employment, or vocation, whether the same be respectively carried on in the United Kingdom or elsewhere; and

(iii) to any person, whether a British subject or not, although not resident in the United Kingdom, from any property whatever in the United Kingdom, or from any trade, profession, employment, or vocation exercised within the United Kingdom; and

(b) All interest of money, annuities, and other annual profits or gains not charged under Schedule A, B, C or E, and not specially exempted from tax;

in each case for every twenty shillings of the annual amount of the profits or gains.

2. Tax under this Schedule shall be charged under the following cases respectively; that is to say,—

Case I.—Tax in respect of any trade not contained in any other Schedule;

Case II.—Tax in respect of any profession, employment, or vocation not contained in any other Schedule;

Case III.—Tax in respect of profits of an uncertain value and of other income described in the rules applicable to this Case;

Case IV.—Tax in respect of income arising from securities out of the United Kingdom, except such income as is charged under Schedule C; Schedule D.

Case V.—Tax in respect of income arising from possessions out of the United Kingdom;

Case VI.—Tax in respect of any annual profits or gains not falling under any of the foregoing Cases, and not charged by virtue of any other Schedule;

and subject to and in accordance with the rules applicable to the said Cases respectively.

RULES APPLICABLE TO SCHEDULE D.

Rule applicable to Case I.

The tax shall extend to every trade carried on in the United Kingdom or elsewhere, other than a trade relating to lands, tenements, hereditaments, or heritages directed to be charged under Schedule A, and shall be computed on the full amount of the balance of the profits or gains upon a fair and just average of three years ending on that day of the year immediately preceding the year of assessment on which the accounts of the said trade have been usually made up, or on the fifth day of April preceding the year of assessment. Case I

Rule applicable to Case II.

The tax shall extend to every employment by retainer in any character whatever, whether such retainer shall be annual or for a longer or shorter period, and to all profits and earnings of whatever value arising from employments, and shall be computed on the full amount of the balance of the profits, gains and emoluments of the professions, employments or vocations upon a fair and just average of three years ending as in Case I. Case II.

Rules applicable to Cases I. and II.

1.—(1) The tax shall be charged without any other deduction than is by this Act allowed. Cases I. and II.

(2) Where the trade, profession, employment, or vocation has been set up and commenced within the said period of three years, the computation shall be made on the average of the profits or gains for one year from the period of the first setting up of the same, and where it has been set up and commenced within the year of assessment, the computation shall be made according to the rules applicable to Case VI.

2.—(1) Weekly wage-earners shall be assessed and charged to tax in respect of their wages in each quarter of the year instead of in the whole year, and shall in all cases be assessed and charged in respect of the actual amount of their wages for that quarter, and as respects any such assessment and charge and the collection of the tax the provisions of this Act shall have effect as if tax were charged for each quarter instead of for the year.

(2) This rule applies only to weekly wage-earners employed by way of manual labour in respect of the wages arising from that employment, and does not apply to persons employed as clerks, typists, draftsmen, or in any other similar capacity.

Schedule D.
Cases I. and
II.

(3) If any question arises whether any person is a person to whom this rule applies, that question shall be determined jointly by the Commissioners of Inland Revenue and the general commissioners, and their determination shall be final and conclusive on the question.

3. In computing the amount of the profits or gains to be charged, no sum shall be deducted in respect of—

- (a) any disbursements or expenses, not being money wholly and exclusively laid out or expended for the purposes of the trade, profession, employment, or vocation :
- (b) any disbursements or expenses of maintenance of the parties, their families or establishments or any sums expended for any other domestic or private purposes distinct from the purposes of such trade, profession, employment or vocation :
- (c) the rent or annual value of any dwelling-house or domestic offices or any part thereof, except such part thereof as is used for the purposes of the trade or profession : Provided that where any such part is so used, the sum so deducted shall be such as may be determined by the commissioners, and shall not exceed two-thirds of the annual value or of the rent *bonâ fide* paid for the said dwelling-house or offices :
- (d) any sum expended for repairs of premises occupied, or for the supply, repairs, or alterations of any implements, utensils, or articles employed for the purposes of the trade, profession, employment or vocation, beyond the sum usually expended for those purposes according to an average of three years preceding the year of assessment :
- (e) any loss not connected with or arising out of the trade, profession, employment or vocation :
- (f) any capital withdrawn from, or any sum employed or intended to be employed as capital in such trade, profession, employment or vocation :
- (g) any capital employed in improvements of premises occupied for the purposes of the trade, profession, employment or vocation :
- (h) any interest which might have been made if any such sums as aforesaid had been laid out at interest :
- (i) any debts, except bad debts proved to be such to the satisfaction of the commissioners and doubtful debts to the extent that they are respectively estimated to be bad. In the case of the bankruptcy or insolvency of a debtor, the amount which may reasonably be expected to be received on any such debt shall be deemed to be the value thereof :
- (j) any average loss beyond the actual amount of loss after adjustment :
- (k) any sum recoverable under an insurance or contract of indemnity :
- (l) any annual interest, or any annuity, or other annual payment payable out of the profits or gains :
- (m) any royalty or other sum paid in respect of the user of a patent.

4.—(1) Where any person has paid excess profits duty, the amount so paid shall be allowed as a deduction in computing the profits or gains of the year which included the end of the accounting period in respect of which the excess profits duty has been paid ; but where any person

has received repayment of any amount previously paid by him by Schedule D. way of excess profits duty, the amount repaid shall be treated as profit for the year in which the repayment is received : Cases I. and II.

Provided that any excess profits duty which becomes chargeable by virtue only of the provisions of the Finance Act, 1918, relating to profits arising from the sale of trading stock otherwise than in the ordinary course of trade, shall not be deemed to be excess profits duty for the purposes of this rule. 8 & 9 Geo. 5. c. 151.

(2) The payment of excess profits duty shall not be deemed to be a specific cause for the purpose of rule 3 of the miscellaneous rules applicable to this Schedule.

(3) Where in any year of assessment the profits or gains from which a deduction may be made under this rule come into computation, but owing to the time at which the amount of the excess profits duty became ascertained it was impracticable to give effect to the deduction when assessing income tax, the amount by which that tax would have been reduced if effect had been given to the deduction shall be deducted from the amount payable for excess profits duty or, if there is no excess profits duty, shall be repaid to the taxpayer.

(4) This rule shall apply to sums actually paid in respect of munitions Exchequer payments as it applies to excess profits duty, except that the relief to the taxpayer under the last preceding paragraph of this rule shall in all cases be given by means of repayment and not by deduction.

(5) Any excess profits duty and any munitions Exchequer payments which under the provisions contained in section forty-eight of the Finance Act, 1916 (which provides for the adjustments of excess profits duty and munitions Exchequer payments in the case of controlled establishments), are remitted for the purpose of collection, shall not be deemed to have been paid for the purposes of this rule. 8 & 7 Geo. 5. c. 24.

(6) The expression "munitions Exchequer payments" means any sums paid or payable into the Exchequer under section four of the Munitions of War Act, 1915, on account of the excess of the net profits of a controlled establishment. 5 & 6 Geo. 5. c. 54.

5.—(1) The computation of tax shall be made exclusive of the profits or gains arising from lands, tenements, hereditaments, or heritages occupied for the purpose of the trade or profession :

Provided that where any lands, tenements, hereditaments, or other premises of whatsoever description used for the purpose of any trade, profession, employment, or vocation, are situate outside the United Kingdom, no deduction or set-off shall, in estimating the amount of annual profits or gains arising or accruing from that trade, profession, employment, or vocation, in any manner be allowed on account or in respect of the annual value of those premises.

(2) Where, in estimating the amount of annual profits or gains arising or accruing from any trade, profession, employment, or vocation and chargeable to tax under this Schedule, any sum is deducted on account of the annual value of the premises used for the purpose of such trade, profession, employment, or vocation, the sum so deducted shall not exceed the amount of the assessment of the premises for the purpose of tax under Schedule A as reduced for the purpose of collection :

Provided that this provision shall not apply in the case of any premises being mills, factories or other similar premises.

Schedule D.
Cases I. and
II.

6.—(1) In charging the profits or gains of a trade under this Schedule, such deduction may be allowed as the commissioners having jurisdiction in the matter may consider just and reasonable, as representing the diminished value by reason of wear and tear during the year of any machinery or plant used for the purposes of the trade and belonging to the person by whom it is carried on.

(2) Where machinery or plant is let to the person by whom the trade is carried on, on the terms of his being bound to maintain the same and deliver it over in good condition at the end of the lease, the machinery or plant shall be deemed to belong to that person for the purpose of this rule.

(3) Where full effect cannot be given to any such deduction in any year owing to there being no profits or gains chargeable for that year, or owing to the profits or gains chargeable being less than the deduction, the deduction or part of the deduction to which effect has not been given, as the case may be, shall, for the purpose of making the assessment for the following year, be added to the amount of the deduction for wear and tear for that year, and deemed to be part of that deduction, or, if there is no such deduction for that year, be deemed to be the deduction for that year, and so on for succeeding years.

(4) Any claim in respect of the aforesaid deduction shall be included in the annual statement required to be delivered under this Act of the profits or gains of the trade for which the machinery or plant is used, and the additional commissioners, in assessing those profits or gains, shall make such allowance in respect thereof as they think just and reasonable.

(5) Where machinery or plant is let upon such terms that the burden of maintaining and restoring it falls upon the lessor, he shall be entitled, on presenting a claim to the general or special commissioners, to have repaid to him such a portion of the sum assessed and charged in respect of the machinery or plant, and deducted by the lessee on payment of the rent, as shall represent the tax upon an amount which the commissioners consider just and reasonable as representing the diminished value by reason of wear and tear of the machinery or plant during the year.

No such claim shall be allowed unless made within twelve months after the expiration of the year of assessment.

(6) No deduction for wear and tear, or repayment on account of any such deduction, shall be allowed for any year if the deduction, when added to the deductions allowed on that account for any previous years to the person by whom the trade is carried on, will make the aggregate amount of the deductions exceed the actual cost to that person of the machinery or plant, including in that actual cost any expenditure in the nature of capital expenditure on the machinery or plant by way of renewal, improvement, or re-instatement.

(7) Where an application is made to the Commissioners of Inland Revenue for the alteration of the amount of any deduction for wear and tear, the Commissioners, unless they are of opinion that the application is frivolous or vexatious, shall refer the case to the Board of Referees, and that Board shall, if they are satisfied that the application is made by or on behalf of any considerable number of persons engaged in any class of trade or business, take the application into their consideration, and determine the deduction to be allowed.

In this rule the expression "Board of Referees" means any Board of Referees appointed for the purpose of Part III. of the Finance

(No. 2) Act, 1915, or, if there is no such Board, a Board of Referees to be appointed for the purpose of this rule by the Treasury.

Schedule D.
Cases I. and II.

7. In estimating the profits or gains of any trade, manufacture, adventure, or concern in the nature of trade chargeable under this Schedule there shall be allowed to be deducted as expenses incurred in any year so much of any amount expended in that year in replacing any plant or machinery which has become obsolete as is equivalent to the cost of the plant or machinery replaced after deducting from that cost the total amount of any allowances which have at any time been made in estimating profits or gains as aforesaid on account of the wear and tear of that plant and machinery, and any sum realised by the sale of that machinery or plant.

8.—(1) Where a person charged or chargeable with tax in respect of any trade, profession or vocation which has been set up or commenced within the period of three years upon the average of which the profits or gains are to be taken, or within the year of assessment, proves at the end of the year of assessment to the satisfaction of the commissioners by whom the assessment has been or can be made that the actual profits or gains arising from the trade, profession or vocation in the year of assessment fall short of the profits or gains as computed in accordance with this Act, he shall be entitled to be charged on the actual amount of the profits or gains so arising, instead of on the amount of the profits or gains so computed, and, if he has paid the full amount of the tax on the profits or gains so computed, he shall be entitled to repayment of the amount overpaid.

(2) Where a trade, profession, or vocation is discontinued in any year, any person charged or chargeable with tax in respect thereof, shall be entitled to be charged on the actual amount of the profits or gains arising therefrom in that year, and shall also, if he proves to the satisfaction of the commissioners by whom the assessment has been or could have been made, that the total amount of the tax paid for the three previous years in respect of that trade, profession, or vocation exceeds the total amount which would have been paid if he had been assessed for each of those years on the actual amount of the profits or gains arising in each year, be entitled to repayment of the excess.

9.—(1) If a person charged under this Schedule ceases within the year of assessment to carry on the trade, profession, or vocation in respect of which the assessment is made, and is succeeded therein by another person, the surveyor shall, within four months from the fifth day of April next after any such change, certify to the general commissioners for the division in which the assessment is made the particulars thereof, and the full name and residence of the person charged and of his successor and the date of the change, if the same be known to the surveyor.

(2) On receipt of the certificate the commissioners shall cause notice to be given to the respective persons of a meeting of the commissioners to consider it, and after examination of the said persons, if they attend, or on other satisfactory proof of the facts, the commissioners shall adjust the assessment by charging the successor with a fair proportion thereof from the time of his succeeding to the trade, profession, or vocation, and relieving the person originally charged from a like amount.

(3) The determination of the commissioners on any such certificate shall be final, and the sum apportioned to each such person shall be

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II.**

recoverable from him in like manner as if he had been charged under the original assessment.

(4) If either of the said persons has paid in respect of an assessment so certified more than the proportion which appears by the determination of the commissioners to be chargeable on him, the amount overpaid shall, when recovered from the person liable, be paid to the person by whom the overpayment was made.

10.—(1) Where a trade or profession is carried on by two or more persons jointly, the tax in respect thereof shall be computed and stated jointly and in one sum, and shall be separate and distinct from any other tax chargeable on those persons or any of them, and a joint assessment shall be made in the partnership name.

(2) The precedent partner, that is to say, the partner who, being resident in the United Kingdom—

- (i) is first named in the agreement of partnership; or
- (ii) if there be no agreement, is named singly or with precedence to the other partners in the usual name of the firm; or
- (iii) is the precedent acting partner, if the person named with precedence is not an acting partner;

shall make and deliver a statement of the profits or gains of such trade or profession, on behalf of himself and the other partners, and declare therein the names and residences of the other partners, under the penalty prescribed by this Act for default in delivering a statement.

(3) Where no partner is resident in the United Kingdom the statement shall be made and delivered by the agent, manager, or factor of the firm resident in the United Kingdom.

(4) Any other partner may, if a statement has been delivered as aforesaid, notify the fact that he is a partner together with his name and place of abode, without returning the amount of tax payable in respect of the partnership, but the respective commissioners may, if they think fit, require from every partner a like statement and the like information and evidence, as they are entitled to require from the precedent partner.

11. If within the year of assessment or the period of average upon which the assessment is to be based a change occurs in a partnership of persons engaged in any trade or profession, by reason of death, or of dissolution of the partnership as to all or any of the partners, or by the admission of a new partner, or if any person succeeds to a trade or profession, the tax payable in respect of the partnership, or any of the partners, or of the person so succeeding shall be computed according to the profits or gains of the trade or profession during the respective periods prescribed by this Act, notwithstanding the change or succession, unless the partners or the person succeeding to the trade or profession prove to the satisfaction of the commissioners that the profits or gains have fallen or will fall short from some specific cause, to be alleged to them, since such change or succession took place, or by reason thereof.

12.—(1) Where any trade or business is carried on by two or more persons in partnership, and the control and management of such trade or business is situate abroad, the trade or business shall be deemed to be carried on by persons resident outside the United Kingdom, and the said partnership shall be deemed to reside outside the United Kingdom, notwithstanding the fact that some of the members of the

said partnership are resident in the United Kingdom and that some of the trading operations of the said partnership are conducted within the United Kingdom. Schedule D.
Cases I. and II.

(2) Where any part of the trade or business of a partnership firm whose management and control is situate abroad consists of trading operations within the United Kingdom, the said firm shall be chargeable in respect of the profits of such trading operations within the United Kingdom to the same extent as, and no further than, a person resident abroad is chargeable in respect of trading operations by him within the United Kingdom, notwithstanding the fact that one or more of the members of the said firm are resident in the United Kingdom :

Provided that for the purpose of charging any such firm in respect of the profits of the said trading operations within the United Kingdom, an assessment may be made on the said firm in respect of the said profits in the name of any partner resident in the United Kingdom.

13. A person who carries on, either solely or in partnership, two or more distinct trades the profits of which are chargeable under the rules of this Schedule, may deduct from or set off against the profits as computed under this Act in respect of one or more such trades, the loss so computed sustained in any other such trade, and may make separate statements as to each such trade.

14. Any bank which has obtained relief from tax under Schedule C by reason of the provisions of rule 3 of the general rules applicable to Schedule C in respect of the interest on any securities representing subscriptions of the bank to a war loan shall include the amount of any such interest in the computation of its profits or gains for the purpose of assessment under Case I. of this Schedule.

15.—(1) Where an assurance company carries on life assurance business in conjunction with assurance business of any other class, the life assurance business of the company shall for the purposes of this Act be treated as a separate business from any other class of business carried on by the company.

(2) In ascertaining whether an assurance company has sustained a loss in respect of its life assurance business for the purpose of setting off such loss against the profits of any other business carried on by the company, or for the purpose of obtaining an adjustment of its liability by reference to the loss and to the aggregate amount of its income under the provisions contained in this Act, any income of the company derived from the investments of its life assurance fund shall be treated as part of the profits of the company acquired in that business.

16. Every statement of profits to be charged under this Schedule which is made by any person—

- (i) on his own account; or
- (ii) on account of some other person for whom he is chargeable, or who is chargeable in his name,

shall include every source of income so chargeable, and a person shall be chargeable in respect of the whole of the tax so chargeable in one and the same division and by the same commissioners :

Provided that where the same person is engaged in different partnerships or in different trades in different places, a separate assessment and charge shall be made in respect of each concern at the place where, if singly carried on, it would be assessed and charged under the provisions of this Act.

Schedule D.
Cases I. and
II.

17. Where a person delivers a statement of profits as aforesaid on behalf of some other person, or of a body of persons the statement shall be delivered in the division where the person delivering the statement or the body of persons respectively would be assessable and chargeable if acting on his or their own behalf.

Rules applicable to Case III.

Case III.

1. The tax shall extend to—

- (a) any interest of money, whether yearly or otherwise, or any annuity, or other annual payment, whether such payment is payable within or out of the United Kingdom, either as a charge on any property of the person paying the same by virtue of any deed or will or otherwise, or as a reservation thereout, or as a personal debt or obligation by virtue of any contract, or whether the same is received and payable half-yearly or at any shorter or more distant periods;
- (b) all discounts;
- (c) profits on securities bearing interest payable out of the public revenue other than such as are charged under Schedule C;
- (d) interest, annuities, dividends and shares of annuities payable out of any public revenue where the half-yearly payments in respect thereof do not exceed fifty shillings and are not chargeable under Schedule C;
- (e) interest paid or credited in full without deduction of tax by any savings bank to any depositor;
- (f) interest on any Exchequer bonds issued under the authority of the Treasury during the continuance of the present war and a period of six months thereafter and on any securities issued under the War Loan Acts, 1914 to 1917, or any Act amending those Acts, in cases where such interest is paid without deduction of tax.

2. The tax shall be computed in each case on the full amount arising within the year ending on that day of the year preceding the year of assessment on which the accounts are usually made up, or on the fifth day of April preceding the year of assessment, and shall be paid on the actual amount as aforesaid without any deduction.

3.—(1) Where an assurance company not having its head office in the United Kingdom carries on life assurance business through any branch or agency in the United Kingdom, any income of the company from the investments of its life assurance fund (excluding the annuity fund, if any), wherever received, shall, to the extent provided in this rule, be deemed to be profits comprised in this Schedule and shall be charged under this Case.

(2) Such portion only of the income from the investments of the life assurance fund for the year preceding the year of assessment shall be so charged as bears the same proportion to the total income from those investments as the amount of premiums received in that year from policy holders resident in the United Kingdom and from policy holders resident abroad whose proposals were made to the company at or through its office or agency in the United Kingdom bears to the total amount of the premiums received by the company :

Provided that in the case of an assurance company having its head office in any British possession, the Commissioners of Inland Revenue

may, by regulation, substitute some basis other than that herein prescribed for the purpose of ascertaining the portion of the income from investments to be so charged as being income derived from business carried on in the United Kingdom. Schedule D.
Case III.

(3) Every such charge shall be made by the special commissioners as though the company under the provisions of this Act had required the proceedings relating to the charge to be had, and taken before those commissioners.

(4) Where a company has already been charged to tax, by deduction or otherwise, in respect of its life assurance business, to an amount equal to or exceeding the charge under this rule, no further charge shall be made under this rule, and where a company has already been so charged, but to a less amount, the charge shall be proportionately reduced.

4. If the commissioners find that lands which have been charged under Schedule B on the assessable value, and which are occupied by a dealer in cattle or a dealer in or a seller of milk, are insufficient for the keep of the cattle brought on to the lands, so that the assessable value affords no just estimate of the profits, they may require a statement of the profits to be delivered, and charge such further sum thereon as, together with the charge under Schedule B, will make up the full sum wherewith the dealer or seller ought to be charged in respect of the like amount of profits charged according to rule 2 of the rules applicable to this Case.

Rules applicable to Case IV.

1. The tax in respect of income arising from securities in any place out of the United Kingdom shall be computed on the full amount thereof arising in the year of assessment, whether the income has been or will be received in the United Kingdom or not, subject in the case of income not received in the United Kingdom, to the same deductions and allowances as if it had been so received, and to the deduction, where such a deduction cannot be made under any other provision of this Act, of any sum which has been paid in respect of income tax in the place where the income has arisen, and to a deduction on account of any annual interest or any annuity or other annual payment payable out of the income to a person not resident in the United Kingdom, and the provisions of this Act (including those relating to the delivery of statements) shall apply accordingly. Case IV.

2. The foregoing rule shall not apply—

- (a) to any person who satisfies the Commissioners of Inland Revenue that he is not domiciled in the United Kingdom, or that, being a British subject, he is not ordinarily resident in the United Kingdom; or
- (b) to income arising from such securities as aforesaid which form part of the investments of the foreign life assurance fund of an assurance company.

The tax in any such case shall be computed on the full amount, so far as the same can be computed, of the sums which have been, or will be, received in the United Kingdom in the year of assessment without any deduction or abatement.

3. Any person aggrieved by any decision of the Commissioners of Inland Revenue, on a question of domicile or residence under the last

Schedule D. preceding rule, shall have the same right to require those Commis-
Case IV. sioners to state a case on the question as an appellant has to require
the general or special commissioners to state a case on a point of law,
and the provisions of this Act shall apply accordingly.

Case V.

Rules applicable to Case V.

1. The tax in respect of income arising from stocks, shares or rents in any place out of the United Kingdom shall be computed on the full amount thereof on an average of the three preceding years, as directed in Case I., whether the income has been or will be received in the United Kingdom or not, subject, in the case of income not received in the United Kingdom, to the same deductions and allowances as are provided in rule 1 of the rules applicable to Case IV., and the provisions of this Act, including those relating to the delivery of statements, shall apply accordingly.

2. The tax in respect of income arising from possessions out of the United Kingdom, other than stocks, shares or rents, shall be computed on the full amount of the actual sums annually received in the United Kingdom from remittances payable in the United Kingdom, or from property imported, or from money or value arising from property not imported, or from money or value so received on credit or on account in respect of any such remittances, property, money, or value brought or to be brought into the United Kingdom, on an average of the three preceding years as directed in Case I., without any deduction or abatement other than is therein allowed.

3. Rule 1 of the foregoing rules shall not apply—

(a) to a person who satisfies the Commissioners of Inland Revenue that he is not domiciled in the United Kingdom, or that, being a British subject, he is not ordinarily resident in the United Kingdom; or

(b) to the income therein described arising from the investments of the foreign life assurance fund of an assurance company; and in such cases the computation shall be made in accordance with rule 2.

4. Rule 3 of the rules applicable to Case IV. shall apply to this Case.

Case VI.

Rules applicable to Case VI.

1. The nature of the profits or gains, and the basis on which the amount thereof has been computed, including the average, if any, taken thereon, shall be stated to the commissioners.

2. The computation shall be made, either on the full amount of the profits or gains arising in the year of assessment, or according to an average of such a period, being greater or less than one year, as the case may require, and as may be directed by the commissioners.

3. Every such statement and computation shall be made to the best of the knowledge and belief of the person in receipt of or entitled to the profits or gains.

Miscellaneous
Rules.

Miscellaneous Rules applicable to Schedule D.

1. Tax under this Schedule shall be charged on and paid by the persons or bodies of persons receiving or entitled to the income in respect of which tax under this Schedule is hereinbefore directed to be charged.

2. A person shall not be charged to tax under this Schedule as a person residing in the United Kingdom, in respect of profits or gains received in respect of possessions or securities out of the United Kingdom, who is in the United Kingdom for some temporary purpose only, and not with any view or intent of establishing his residence therein, and who has not actually resided in the United Kingdom at one time or several times for a period equal in the whole to six months in any year of assessment, but if any such person resides in the United Kingdom for the aforesaid period he shall be so chargeable for that year.

Schedule D.
Miscellaneous
Rules.

3.—(1) If a person charged under this Schedule, whether the computation has been made on the profits of one year or on an average of years, ceases to carry on the trade, profession, employment or vocation in respect of which the assessment was made, or dies or becomes bankrupt, before the end of the year of assessment, or from any other specific cause is deprived of or loses the profits or gains so computed, he or his executors or administrators may, within three months after the end of the year of assessment, apply to the general commissioners of the division for the amendment of the assessment.

(2) The general commissioners, on proof to their satisfaction that paragraph (1) of this rule applies to the case, shall cause the assessment to be amended or vacated, and give such relief as is just, and shall, if necessary, direct repayment to be made of any sum which has been overpaid.

(3) A person who has succeeded to the trade, profession or vocation of a person charged shall, subject to the provisions of rule 9 of the rules applicable to Cases I. and II., be liable to pay the full tax charged without any new assessment, and no relief under this rule shall be granted in any such case unless the person so succeeding proves, to the satisfaction of the commissioners, that the profits or gains have fallen short, from some specific cause, since, or by reason of, the succession.

4.—(1) A person engaged in a trade, profession, employment, or vocation shall be assessable and chargeable in the parish—

(a) where the trade, profession, employment, or vocation is carried on, whether carried on wholly or in part only within the United Kingdom, and whether he is engaged in one or more of such concerns; or

(b) where he ordinarily resides,

except that a person engaged in a trade within the United Kingdom carried on by the manufacture of goods, wares, or merchandise shall be assessable and chargeable—

(a) at the place of manufacture, although the sales thereof be elsewhere; or

(b) where he ordinarily resides.

(2) A person who is a householder and not engaged in a trade, profession, employment, or vocation shall be assessable and chargeable in the parish in which his dwelling-house is situate, or where he ordinarily resides:

(3) A person not engaged in a trade, profession, employment, or vocation, who has two or more places of ordinary residence, shall be assessable and chargeable at either such place.

(4) A person who is neither a householder, nor engaged in a trade, profession, employment, or vocation, who has a place of ordinary

Schedule D.
Miscellaneous
Rules.

residence, shall be assessable and chargeable in the parish in which he ordinarily resides.

(5) Every other person not hereinbefore described shall be assessable and chargeable in the parish where he resides at the time of the issue of the general notices under this Act, or where he first comes to reside after the time of the issue of those general notices.

(6) Every assessment and charge made in pursuance of the above provisions shall be valid and effectual, notwithstanding the subsequent removal of the person from the parish in which he is assessed or charged.

(7) For the purpose of ascertaining the proper parish of assessment and charge, every person who delivers a list or statement under this Act shall deliver at the same time a signed declaration stating—

(a) where he is assessable and chargeable; and

(b) whether he is or is not engaged in a trade, profession, employment, or vocation, and, if so, the place within the United Kingdom where it is carried on, and particulars of every trade, profession, employment, or vocation in which he shall be engaged in such place, whether it be carried on wholly or partly within the United Kingdom.

5. The commissioners may require a person who has two residences, or who carries on or exercises a trade or profession in different parishes, or in a parish other than the parish of his ordinary residence, to deliver in each such parish the like lists, declarations, and statements as he is required to deliver in the parish where he ought to be assessed and charged, but no such person shall by reason thereof be liable to any double charge.

6. Where any creditor on any rates or assessments not chargeable as profits is entitled to any interest of money, the proper officer having the management of the accounts may be charged with the tax payable thereon, and shall be answerable for all matters necessary to enable the tax to be duly charged and for payment thereof, as if the rates or assessments were profits chargeable to tax, and shall be, in like manner, indemnified in respect of all such matters as if the said rates or assessments were chargeable.

7.—(1) Where—

(a) any interest, dividends, or other annual payments payable out of or in respect of the stocks, funds, shares, or securities of any foreign or colonial company, society, adventure, or concern; or

(b) any annuities, pensions, or other annual sums payable out of the funds of any institution in India,

are intrusted to any person in the United Kingdom for payment to any persons in the United Kingdom, the same shall be assessed and charged to tax under this Schedule by the special commissioners.

(2) All the provisions of Schedule C relating to the tax to be assessed and charged in respect of dividends payable out of any public revenue other than that of the United Kingdom, and intrusted to any person (other than the National Debt Commissioners or the Bank of England or the Bank of Ireland) for payment to any persons in the United Kingdom, shall extend to the tax to be assessed and charged under this rule.

(3) Any person who, if acting in relation to dividends chargeable under the aforesaid provisions of Schedule C would be deemed to be a

person intrusted with the payment of such dividends, shall, if acting in relation to sums chargeable under this rule, be deemed to be a person intrusted with the payment thereof.

Schedule D.
Miscellaneous
Rules.

SCHEDULE E.

Tax under Schedule E shall be charged in respect of every public office or employment of profit, and in respect of every annuity, pension, or stipend payable by the Crown or out of the public revenue of the United Kingdom, other than annuities charged under Schedule C, for every twenty shillings of the annual amount thereof.

RULES APPLICABLE TO SCHEDULE E.

Schedule E.

1. Tax under this Schedule shall be annually charged on every person having or exercising an office or employment of profit mentioned in this Schedule, or to whom any annuity, pension, or stipend, as described in this Schedule, is payable, in respect of all salaries, fees, wages, perquisites or profits whatsoever therefrom for the year of assessment, except as otherwise provided, after deducting the amount of duties or other sums payable or chargeable on the same by virtue of any Act of Parliament, where the same have been really and bonâ fide paid and borne by the party to be charged.

2. Every assessment shall be made for one year, and the tax in respect thereof shall be levied for that year without any new assessment, notwithstanding any change in the holder of any office or employment; but if, during the year of assessment, any person chargeable quits the office or employment, or dies, he, or his executors or administrators, respectively, shall be liable for tax in respect of the period during which he held or exercised the office or employment, and any successor shall in like manner be liable in respect of the period during which he has held or exercised the same.

3. If an annuity, pension, or stipend ceases within the year of assessment, the assessment thereon shall be discharged as from the date of cessation.

4.—(1) Perquisites may be estimated either on the profits of the preceding year, or on the average for one year of the amount of the profits thereof in the three preceding years.

(2) In any such case the preceding year or years shall be taken to end on the fifth day of April, or on the day of each year on which the accounts of such profits have been usually made up.

(3) Perquisites shall be deemed to be such profits as arise in the course of exercising an office or employment from fees or other emoluments.

5. If at any time, either during the year of assessment or in respect of that year, a person becomes entitled to any additional salary, fees, or emoluments beyond the amount for which an assessment has been made upon him, or for which at the commencement of that year he was liable to be charged, an additional assessment shall, as often as the case may require, be made upon him in respect of any such additional salary, fees or emoluments, so that he may be charged in respect of the full amount of his salary, fees or emoluments for that year.

Schedule E.
Rules.

6. The tax shall be paid in respect of all the public offices and employments of profit within the United Kingdom or by the officers hereinafter respectively described, namely—

- (a) offices belonging to either House of Parliament;
- (b) offices belonging to any court of justice in the United Kingdom, whether civil, criminal, ecclesiastical, naval, military, or air-force;
- (c) public offices under the civil government of the Crown, or in any county palatine, or the Duchy of Cornwall;
- (d) officers in His Majesty's navy;
- (e) commissioned officers in His Majesty's military forces;
- (f) commissioned officers in His Majesty's air force;
- (g) offices or employments of profit under any ecclesiastical body;
- (h) offices or employments of profit under any company or society, whether corporate or not corporate;
- (i) offices or employments of profit under any public institution, or on any public foundation of whatever nature, or for whatever purpose established;
- (j) offices or employments of profit under any public corporation or local authority, or under any trustees or guardians of any public funds, tolls, or duties;
- (k) all other public offices, or employments of profit which are of a public nature.

7.—(1) Tax in respect of offices and employments of profit held under a railway company shall be charged by the special commissioners, who shall notify to the secretary or other officer of the company the particulars of the assessments.

(2) Any such assessment shall be deemed to be and shall be an assessment upon the company, and the tax in respect thereof shall be paid, collected, and levied accordingly, and the company or the secretary or other officer may deduct out of the emoluments of the holder of any such office or employment of profit the tax so charged.

8. In estimating the tax payable, all official deductions and payments made on receipt of the emoluments of any office or employment of profit, or on receipt of any annuity, pension, or stipend, or on passing the accounts of the office, may be deducted if a due account thereof is rendered to the commissioners and proved to their satisfaction.

9. If the holder of an office or employment of profit is necessarily obliged to incur and defray out of the emoluments thereof the expenses of travelling in the performance of the duties of the office or employment, or of keeping and maintaining a horse to enable him to perform the same, or otherwise to expend money wholly, exclusively, and necessarily in the performance of the said duties, there may be deducted from the emoluments to be assessed the expenses so necessarily incurred and defrayed.

10. Where the Treasury are satisfied with respect to any class of persons in receipt of any salary, fees, or emoluments payable out of the public revenue that such persons are obliged to lay out and expend money wholly, exclusively, and necessarily in the performance of the duties in respect of which such salary, fees, or emoluments are payable, the Treasury may fix such sum, as in their opinion represents a fair equivalent of the average annual amount laid out and expended as aforesaid by persons of that class, and in charging the tax on the

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said salary, fees, or emoluments, there shall be deducted from the amount thereof the sums so fixed by the Treasury :

Schedule E
Rules.

Provided that if any person would, but for the provisions of this rule, be entitled to deduct a larger amount than the sum so fixed, that sum may be deducted instead of the sum so fixed.

11.—(1) Where any official pay is payable at a public office, or by any officer of the Royal household, or by a Crown receiver or paymaster, or by any agent employed in that behalf, the tax chargeable thereon shall be deducted out of the official pay, or out of any money which is payable on account of that official pay or any arrears thereof, and shall be applied in satisfaction of any such tax which has not been otherwise paid, and shall be paid to the Commissioners of Inland Revenue.

(2) If the tax payable is charged by the general commissioners in their respective divisions, they shall transmit an account of the amount of tax so charged to the office where the official pay is payable, in order that it may be there deducted.

(3) In this rule the expression “ official pay ” means any salary, fees, wages, perquisites, or other profits, or any annuity, pension, or stipend.

(4) Where an annuity or pension is payable out of any particular branch of the public revenue at the office of that branch, the commissioners acting for that department may charge the tax in respect of the same as if the annuity or pension were salary or wages payable thereout.

12. Where any emoluments chargeable under this Schedule do not arise as described in the last preceding rule, but arise from any other office or employment of profit, and are payable by any officer, receiver, or agent, any tax chargeable in respect thereof which has not been otherwise paid shall be deducted therefrom or from the arrears thereof and paid to the proper officer.

13.—(1) If either—

- (i) the tax in respect of any office or employment of profit cannot be deducted in the hands of the appropriate officer or of an agent for payment of the emoluments thereof ; or
- (ii) the said emoluments have been paid over to the person entitled to them ;

and the person charged neglects or refuses to pay the tax, the commissioners for the offices concerned may, by writing under their hands and seals, certify the neglect or refusal, and the sum payable, to the general commissioners for the division comprising the parish in which the person charged resides.

(2) The said last-mentioned commissioners on receipt of the certificate shall, by warrant under their hands and seals, empower the respective collectors of the said tax under this Schedule, or the collectors of the parish where the person chargeable resides, to levy the tax in the same manner and with the like powers as other tax is leviable by them under this Act.

(3) The collectors shall execute the warrant in the manner prescribed by this Act and as if the person chargeable had been charged with tax in the parish where he resides, and the moneys recovered shall be paid over to the proper officer.

14.—(1) If an office or employment of profit chargeable under this Schedule is executed by deputy, the deputy, if he is in receipt of the

Schedule E.
Rules.

profits thereof, shall pay the tax charged thereon, and deduct it out of the profits of the office or employment.

(2) If the profits of any officer or officers are received by any other officer on his or their behalf, or as a fund to be divided among such officers, the officer receiving the same shall pay the tax charged thereon and deduct it out of the sums received before they are handed over or divided.

(3) In the case of non-payment of the tax, the said deputy or officer receiving the profits shall be liable to such distress as is prescribed by this Act against any person holding the office or employment, and to any other remedy and penalty herein provided.

15. Where deduction of tax is authorised to be made out of any sums, the deduction shall be made at such times in each year as the said sums are payable.

16. If any emoluments of any office or employment of profit, or any annuity, pension, or stipend charged under this Schedule are charged with a sum payable to another person, such portion of the tax shall be deducted from that sum as the tax thereon would amount unto, and that person, or any agent or receiver on his behalf, shall allow the deduction on receipt of the residue of the sum payable.

17. If a deputy, clerk, or other person is employed under the holder of an office or employment of profit, and his salary or wages are paid out of the emoluments thereof, the holder of the office may deduct out of the salary or wages payable by him such a portion of the tax charged on the emoluments of the office or employment as the tax on the said salary or wages would amount unto, and the deduction shall be allowed upon receipt of the residue of the salary or wages.

18.—(1) The tax shall be assessed and charged by the respective commissioners for all the offices in each department, in the place where the said commissioners execute their offices, although certain of the offices in the same department may be executed elsewhere.

(2) A person chargeable in respect of an office or employment of profit shall be deemed to exercise it at the head office of the department under which it is held, and shall be assessed and charged at that head office, although the duties of the office or employment are performed, or any profits thereof are payable elsewhere, whether within the United Kingdom or not.

(3) An office shall be deemed to belong to, and shall be charged by or under, the principal officers of the department by or under whom the appointment to the office is made, but if the appointment is made by an inferior officer of the department, such office shall be charged by the commissioners by whom that inferior officer is chargeable in respect of his own office :

Provided that an officer who holds an appointment under the Great Seal or Privy Seal of England or Scotland, or an appointment under the Royal Sign Manual, or an appointment under the Treasury but not exercised in the Treasury, shall be assessed and charged in that department in which his office is exercised.

(4) Nothing in this rule shall limit the right given by this Act to any other commissioners to assess and charge offices within their jurisdiction, although those offices may not be held under their appointment, or although the profits thereof may not be payable by them or by their order.

(5) Notwithstanding anything in this rule, a person may be assessed and charged under this Schedule by the commissioners acting for any parish in which he ordinarily resides.

**Schedule E.
Rules.**

GENERAL RULES APPLICABLE TO SCHEDULES A, B, C, D AND E. **All Schedules;
Rules.**

1. Every body of persons shall be chargeable to tax in like manner as any person is chargeable under the provisions of this Act.

2.—(1) In assessing the tax chargeable under any Schedule upon a clergyman or minister of any religious denomination, the following deductions may be made from any profits, fees or emoluments of his profession or vocation—

(a) any sums of money paid or expenses incurred by him wholly, exclusively, and necessarily in the performance of his duty as a clergyman or minister;

(b) such part of the rent (not exceeding one-eighth), as the commissioners by whom the assessment is made may allow, paid by him in respect of a dwelling-house any part of which is used mainly and substantially for the purposes of his duty as such clergyman or minister;

and where any such clergyman or minister is in the occupation of a dwelling-house, but pays no rent therefor, he shall for the purposes of the foregoing provision be deemed to pay a rent equal to the annual value of the dwelling-house as assessed to tax under Schedule A.

(2) If no such deduction has been made, a proportionate part of the tax paid by him shall be repaid to the clergyman or minister on proof to the commissioners that any sum has been expended as aforesaid.

3. Every British subject whose ordinary residence has been in the United Kingdom shall be assessed and charged to tax, notwithstanding that at the time the assessment or charge is made he may have left the United Kingdom, if he has so left the United Kingdom for the purpose only of occasional residence abroad, and shall be charged as a person actually residing in the United Kingdom upon the whole amount of his profits or gains, whether they arise from property in the United Kingdom or elsewhere, or from any allowance, annuity, or stipend (save as herein is excepted), or from any trade, profession, employment, or vocation in the United Kingdom or elsewhere.

4. The trustee, guardian, tutor, curator, or committee of any incapacitated person having the direction, control, or management of the property or concern of any such person, whether such person resides in the United Kingdom or not, shall be assessable and chargeable to tax in like manner and to the like amount as that person would be assessed and charged if he were not an incapacitated person.

5. A person not resident in the United Kingdom, whether a British subject or not, shall be assessable and chargeable in the name of any such trustee, guardian, tutor, curator, or committee, or of any factor, agent, receiver, branch, or manager, whether such factor, agent, receiver, branch, or manager has the receipt of the profits or gains or not, in like manner and to the like amount as such non-resident person would be assessed and charged if he were resident in the United Kingdom and in the actual receipt of such profits or gains.

6. A non-resident person shall be assessable and chargeable in respect of any profits or gains arising, whether directly or indirectly,

All Schedules. through or from any factorship, agency, receivership, branch, or
Rules. management, and shall be so assessable and chargeable in the name of the factor, agent, receiver, branch, or manager.

7. Where a non-resident person, not being a British subject or a British, Indian, Dominion, or Colonial firm or company, or branch thereof, carries on business with a resident person, and it appears to the commissioners by whom the assessment is made that, owing to the close connection between the resident person and the non-resident person, and to the substantial control exercised by the non-resident person over the resident person, the course of business between those persons can be so arranged, and is so arranged, that the business done by the resident person in pursuance of his connection with the non-resident person produces to the resident person either no profits or less than the ordinary profits which might be expected to arise from that business, the non-resident person shall be assessable and chargeable to tax in the name of the resident person as if the resident person were an agent of the non-resident person.

8. Where it appears to the commissioners by whom the assessment is made or, on any objection or appeal, to the general or special commissioners, that the true amount of the profits or gains of any non-resident person chargeable with tax in the name of a resident person cannot in any case be readily ascertained, the commissioners may, if they think fit, assess and charge the non-resident person on a percentage of the turnover of the business done by the non-resident person through or with the resident person in whose name he is chargeable as aforesaid, and in such case the provisions of this Act relating to the delivery of statements by persons acting on behalf of others shall extend so as to require returns to be given by the resident person of the business so done by the non-resident person through or with the resident person, in the same manner as statements are to be delivered by persons acting for incapacitated or non-resident persons of profits or gains to be charged.

9.—(1) The amount of percentage under the last preceding rule shall in each case be determined, having regard to the nature of the business, by the commissioners by whom the assessment on the percentage basis is made, subject, in the case of an assessment made by the additional commissioners, to objection or appeal to the general or special commissioners.

(2) If either the resident person or non-resident person is dissatisfied with the percentage determined either in the first instance or by the general or special commissioners on objection or appeal, he may, within four months of that determination, require the commissioners to refer the question of the percentage to a referee or board of referees to be appointed for the purpose by the Treasury, and the decision of the referee or board shall be final and conclusive.

10. Nothing in these rules shall render a non-resident person chargeable in the name of a broker or general commission agent, or in the name of an agent not being an authorised person carrying on the regular agency of the non-resident person or a person chargeable as if he were an agent in pursuance of these rules, in respect of profits or gains arising from sales or transactions carried out through such a broker or agent.

11. The fact that a non-resident person executes sales or carries out transactions with other non-residents in circumstances which would make him chargeable in pursuance of these rules in the name

of a resident person shall not of itself make him chargeable in respect of profits arising from those sales or transactions. All Schedules.
Rules.

12. Where a non-resident person is chargeable to income tax in the name of any branch, manager, agent, factor or receiver in respect of any profits or gains arising from the sale of goods or produce manufactured or produced out of the United Kingdom by the non-resident person, the person in whose name the non-resident person is so chargeable may, if he thinks fit, apply to the commissioners by whom the assessment is made, or in case of an appeal to the general or special commissioners, to have the assessment to income tax in respect of those profits or gains made or amended on the basis of the profits which might reasonably be expected to have been earned by a merchant or, where the goods are retailed by or on behalf of the manufacturer or producer, by a retailer of the goods sold, who had bought from the manufacturer or producer direct, and on proof to the satisfaction of the commissioners concerned of the amount of the profits on the basis aforesaid, the assessment shall be made or amended accordingly.

13. The person who is chargeable in respect of an incapacitated person, or in whose name a non-resident person is chargeable, shall be answerable for all matters required to be done under this Act for the purpose of assessment and payment of tax.

14. Any person who has been charged under this Act in respect of any incapacitated or non-resident person as aforesaid may retain, out of money coming into his hands on behalf of any such person, so much thereof from time to time as is sufficient to pay the tax charged, and shall be indemnified for all such payments made in pursuance of this Act.

15.—(1) A receiver appointed by any court in the United Kingdom which has the direction and control of any property in respect of which tax is charged in accordance with the provisions of this Act shall be assessable and chargeable with tax in like manner and to the like amount as would be assessed and charged if the property were not under the direction and control of the court.

(2) Every such receiver shall be answerable for doing all matters and things required to be done under this Act for the purpose of assessment and payment of tax.

16. A married woman acting as a sole trader, or being entitled to any property or profits to her separate use, shall be assessable and chargeable to tax as if she were sole and unmarried :

Provided that—

- (1)** the profits of a married woman living with her husband shall be deemed the profits of the husband, and shall be assessed and charged in his name, and not in her name or the name of her trustee; and
- (2)** a married woman living in the United Kingdom separate from her husband, whether the husband be temporarily absent from her or from the United Kingdom or otherwise, who receives any allowance or remittance from property out of the United Kingdom, shall be assessed and charged as a feme sole if entitled thereto in her own right, and as the agent of the husband if she receives the same from or through him, or from his property, or on his credit.

All Schedules.
Rules.

17.—(1) If an application is made for the purpose in such manner and form as may be prescribed by the Commissioners of Inland Revenue, either by a husband or wife, within six months before the sixth day of May in any year of assessment, income tax for that year shall be assessed, charged and recovered on the income of the husband and on the income of the wife as if they were not married, and all the provisions of this Act with respect to the assessment, charge, and recovery of tax, and the penalties for failure to deliver a statement of profits or gains, shall, save as otherwise provided by this Act, apply as if they were not married.

(2) The Commissioners of Inland Revenue may require returns for the purposes of this rule to be made at any time, and the provisions of this Act relating to penalties for neglect or refusal to deliver, or for delay in delivering true and correct statements of profits or gains, shall, with the necessary modifications, apply in the case of the neglect or refusal to make, or wilful delay in making, any such return.

18. Where any person dies without having delivered a statement of all his profits or gains chargeable to tax with a view to an assessment thereon in due course, an assessment in respect of the profits or gains which arose or accrued to him before his death may be made at any time within the year of assessment, or within three years after the expiration thereof, upon his executors or administrators, and the amount of the tax thereon shall be a debt due from and payable out of his estate.

19.—(1) Where any yearly interest of money, annuity, or any other annual payment (whether payable within or out of the United Kingdom, either as a charge on any property of the person paying the same by virtue of any deed or will or otherwise, or as a reservation thereout, or as a personal debt or obligation by virtue of any contract, or whether payable half-yearly or at any shorter or more distant periods), is payable wholly out of profits or gains brought into charge to tax, no assessment shall be made upon the person entitled to such interest, annuity, or annual payment, but the whole of those profits or gains shall be assessed and charged with tax on the person liable to the interest, annuity, or annual payment, without distinguishing the same, and the person liable to make such payment, whether out of the profits or gains charged with tax or out of any annual payment liable to deduction, or from which a deduction has been made, shall be entitled, on making such payment, to deduct and retain thereout a sum representing the amount of the tax thereon at the rate or rates of tax in force during the period through which the said payment was accruing due.

The person to whom such payment is made shall allow such deduction upon the receipt of the residue of the same, and the person making such deduction shall be acquitted and discharged of so much money as is represented by the deduction, as if that sum had been actually paid.

(2) Where any royalty, or other sum, is paid in respect of the user of a patent, wholly out of profits or gains brought into charge to tax, the person paying the royalty or sum shall be entitled, on making the payment, to deduct and retain thereout a sum representing the amount of the tax thereon at the rate or rates of tax in force during the period through which the royalty or sum was accruing due.

20. The profits or gains to be charged on any body of persons shall be computed in accordance with the provisions of this Act on the full amount of the same before any dividend thereof is made in respect of any share, right or title thereto, and the body of persons paying such dividend shall be entitled to deduct the tax appropriate thereto. All Schedules Rules.

21.—(1) Upon payment of any interest of money, annuity, or other annual payment charged with tax under Schedule D, or of any royalty or other sum paid in respect of the user of a patent, not payable, or not wholly payable out of profits or gains brought into charge, the person by or through whom any such payment is made shall deduct thereout a sum representing the amount of the tax thereon at the rate of tax in force at the time of the payment.

(2) Any such person shall forthwith render an account to the Commissioners of Inland Revenue of the amount so deducted, or of the amount deducted out of so much of the interest, annuity, annual payment, royalty, or other sum respectively, as is not paid out of profits or gains brought into charge, as the case may be, and every such amount shall be a debt from him to the Crown and shall be recoverable as such; and the provisions contained in section two of the Stamp Duties Management Act, 1891, in relation to money in the hands of any person for stamp duty, shall apply to money deducted by any such person in respect of tax. 54 & 55 Vict c. 38.

(3) The amount of annuities which an assurance company carrying on the business of granting annuities is entitled, for the purposes of this rule, to treat as having been paid out of profits or gains brought into charge to tax, shall not exceed the amount of the taxed income of its annuity fund.

22.—(1) If a difference arises—

- (a) between tenant and landlord or any other persons with regard to the deduction on account of tax to be made from any annual sum; or
- (b) between the occupier for the time being and any former occupier of lands, tenements, hereditaments or heritages, his executors, administrators, or assigns, with regard to the proportion of tax to be paid or allowed by either of them respectively;

the general commissioners of the division shall settle the proportion of the payments or deductions to be made according to the provisions of this Act, and, in default of payment, shall levy the same as if the proportions settled by them had been charged upon the respective persons, and shall pay over the same to the collector or to the proper person, as the case may require.

(2) In any such case the determination of the general commissioners shall be final.

(3) In this rule “annual sum” means any interest, annuity, rent, rentcharge, fee-farm rent, rent-service, quitrent, feu duty, or other rent or annual payment.

23.—(1) A person who refuses to allow a deduction of tax authorised by this Act to be made out of any payment, shall forfeit the sum of fifty pounds.

(2) Every agreement for payment of interest, rent, or other annual payment in full without allowing any such deduction shall be void.

SECOND SCHEDULE.

Section 59 (3) GENERAL COMMISSIONERS FOR CERTAIN CITIES AND TOWNS.
(6 (f))

—	By whom chosen.	From whom chosen.	Number to serve.	Number to supply Vacancies.
Birmingham	Magistrates and justices for the city or town, and justices for the county.	- - - -	8	8
Bristol -	Do. do.	- - - -	8	8
Exeter -	Do. do.	- - - -	8	8
Great Yarmouth.	Do. do.	- - - -	8	8
King's Lynn	Do. do.	- - - -	8	8
Kingston-on-Hull.	Do. do.	- - - -	8	8
Leeds -	Do. do.	- - - -	8	8
Liverpool -	Do. do.	- - - -	8	8
London, City of.	Lord Mayor and aldermen.	From eight persons, four being aldermen, returned to the Lord Mayor and aldermen by Common Council.	2	2
	Bank of England -	- - - -	2	2
	London Assurance Corporation (Governor and directors of).	- - - -	1	1
	Port of London Authority.	- -	3	3
	Royal Exchange Assurance Corporation (Governor and directors of).	- - - -	1	1
Manchester	Magistrates and justices for the city and justices for the county.	- - - -	8	8
Newcastle-upon-Tyne.	Do. do.	- - - -	8	8
Norwich .	Magistrates and justices for the city.	Four of each class to be from the magistrates and justices, and four from inhabitants of the city.	8	8

THIRD SCHEDULE.

QUALIFICATIONS OF GENERAL COMMISSIONERS.

Section 65 (1).

1. The qualification of a general commissioner shall be either—
 - (a) in respect of real estate, that is to say, in England and Wales the seisin or possession in right of own estate of lands, tenements, hereditaments, or heritages in the United Kingdom, freehold, copyhold or leasehold, for a term of which at least seven years are unexpired, and in Scotland the infetment in superiority or property, or possession as proprietor or liferenter, of lands in Scotland; or
 - (b) in respect of personal estate; or
 - (c) in respect of a combination of real estate (as above defined) and personal estate.

2. The real estate, personal estate, or combination of real and personal estate (as the case may be) must be of a value not less than that shown, as respects the localities specified in the first column of the table appended to this Schedule, in the second, third and fourth columns of that table respectively.

3. The value of real estate shall, in England and Wales, be calculated free of all ground rents, incumbrances and reservations payable out of the same, and in calculating the value of combined real and personal estate, one hundred pounds personal estate shall be taken to represent four pounds per annum, and four pounds per annum from personal estate shall be taken to represent one hundred pounds personal estate.

TABLE.

Locality.	Value of Qualifying Property.		
	(a) Real Estate.	(b) Personal Estate.	(c) Combined Real and Personal Estate.
County divisions in England generally and divisions in or of the several cities or towns of London, Westminster, Birmingham, Bristol, Exeter, Great Yarmouth, King's Lynn, Kingston-on-Hull, Leeds, Liverpool, Manchester, Newcastle-on-Tyne, and Norwich.	Two hundred pounds per annum.	Five thousand pounds or producing annual income of two hundred pounds.	Two hundred pounds per annum.

Locality.	Value of Qualifying Property.		
	(a) Real Estate.	(b) Personal Estate.	(c) Combined Real and Personal Estate.
Divisions in Wales and Monmouth and any city division in England other than the cities and towns above mentioned.	One hundred and sixty pounds per annum.	Four thousand pounds, or producing an annual income of one hundred and sixty pounds.	One hundred and sixty pounds per annum.
County divisions in Scotland.	One hundred and fifty pounds (Scots) per annum valued rent.	Five thousand pounds (sterling) or producing annual income of two hundred pounds (sterling).	Two hundred pounds (sterling) per annum.
City divisions in Scotland.	Ninety pounds (Scots) per annum valued rent.	Three thousand pounds (sterling) or producing an annual income of one hundred and twenty pounds (sterling).	One hundred and twenty pounds (sterling) per annum.

FOURTH SCHEDULE.

DECLARATIONS.

PART I.

FORM of DECLARATION to be made by GENERAL, ADDITIONAL and SPECIAL COMMISSIONERS, acting in respect of TAX under Schedule D.

"I, A.B., do solemnly declare, that I will truly, faithfully, impartially, and honestly, according to the best of my skill and knowledge, execute the powers and authorities vested in me by the Income Tax Act, 1918, and that I will exercise the powers entrusted to me by the said Act in such manner only as shall appear to me necessary for the due execution of the same; and that I will judge and determine upon all matters and things which shall be brought before me under the said Act, without favour, affection, or malice; and that I will not disclose any particular contained in any schedule, statement, return or other document delivered with respect to any tax charged under the provisions relating to Schedule D of the said Act, or any evidence or answer given by any person who shall be examined, or shall make

affidavit or deposition, respecting the same, in pursuance of the said Act, except to such persons only as shall act in the execution of the said Act, and where it shall be necessary to disclose the same to them for the purposes of the said Act, or to the Commissioners of Inland Revenue, or in order to, or in the course of, a prosecution for perjury committed in such examination, affidavit or deposition."

FORM of DECLARATION to be made by SURVEYORS.

"I, A.B., do solemnly declare, that in the execution of the Income Tax Act, 1918, I will examine and revise all statements, returns, schedules, and declarations delivered within my district, and, in objecting to the same, I will act according to the best of my information and knowledge; and that I will conduct myself without favour, affection, or malice, and that I will exercise the powers, entrusted to me by the said Act, in such manner only as shall appear to me to be necessary for the due execution of the same, or as I shall be directed by the Commissioners of Inland Revenue; and that I will not disclose any particular contained in any statement, return, schedule or other document, with respect to any tax charged under the provisions relating to Schedule D of the said Act, or any evidence or answer given by any person who shall be examined, or shall make affidavit or deposition, respecting the same, in pursuance of the said Act, except to such persons only as shall act in the execution of the said Act, and where it shall be necessary to disclose the same to them for the purposes of the said Act, or to the Commissioners of Inland Revenue, or in order to, or in the course of, a prosecution for perjury committed in such examination, affidavit or deposition."

FORM of DECLARATION to be made by ASSESSORS.

"I, A.B., do solemnly declare, that in the execution of the Income Tax Act, 1918, I will in all respects act diligently and honestly, and without favour or affection, to the best of my knowledge and belief, and that I will not disclose any particular contained in any statement, return, schedule or other document delivered to me in the execution of the said Act, with respect to any tax charged under the provisions relating to Schedule D of the said Act, except to such persons only as shall act in the execution of the said Act, and where it shall be necessary to disclose the same to them for the purposes of the said Act, or in order to, or in the course of, a prosecution for perjury committed in any matter relating to such statement, return, schedule or other document."

FORM of DECLARATION to be made by COLLECTORS and
OFFICERS for receiving TAX.

"I, A.B., do solemnly declare, that in the execution of the Income Tax Act, 1918, I will not disclose any assessment, or the amount of any sum paid or to be paid by any person, under the said Act, or the books of assessment which shall be delivered to me in the execution of the said Act, with respect to any tax charged under the provisions relating to Schedule D of the said Act, except to such persons only as shall act in the execution of the said Act, and where it shall be necessary to disclose the same to them for the purposes of the said Act, or to the Commissioners of Inland Revenue, or in order to, or in the course of, a prosecution for perjury committed in relation to the said tax."

FORM of DECLARATION to be made by a CLERK or CLERK'S ASSISTANT to the COMMISSIONERS aforesaid.

"I, A.B., do solemnly declare, that I will diligently and faithfully execute the office of a clerk [*or assistant clerk, as the case may be*], according to the Income Tax Act, 1918, to the best of my knowledge and judgment; and that I will not disclose any particular contained in any statement, return, declaration, schedule or other document, with respect to the tax charged under the provisions relating to Schedule D of the said Act, or any evidence or answer given by any person who shall be examined, or shall make affidavit or deposition, respecting the same, except to such persons only as shall act in the execution of the said Act, and where I shall be directed so to do by the said Act, or by the commissioners under whom I act, or by the Commissioners of Inland Revenue, or in order to, and in the course of, a prosecution for perjury committed in such examination, affidavit or deposition."

PART II.

Sections 72,
76 (2).

FORM of DECLARATION to be made by a COMMISSIONER acting in the execution of this ACT in relation to PUBLIC OFFICES and EMPLOYMENTS of PROFIT and PENSIONS and STIPENDS.

"I, A.B., do solemnly declare that I will truly, faithfully, impartially and honestly, according to the best of my skill and knowledge, execute the powers and authorities vested in me as a Commissioner for Offices, by the Income Tax Act, 1918, and that I will judge and determine upon all matters and things which shall be brought before me under the said Act without favour, affection or malice."

FORM of DECLARATION to be made by an ASSESSOR on his APPOINTMENT.

"I, A.B., do solemnly declare, that I will diligently execute the office of an Assessor to which I am appointed by authority of the Income Tax Act, 1918, and that in any assessment which I am required to make by any Act relating to income tax, I will faithfully and honestly act without favour or affection, according to the best of my skill and knowledge."

FIFTH SCHEDULE.

Section 207.

STATEMENTS, LISTS, AND DECLARATIONS.

I.—By every OCCUPIER of LANDS, TENEMENTS, HEREDITAMENTS or HERITAGES to be charged under Schedules A and B, or either of them.

A statement of the rent and annual value, or the annual value, as the case shall require, of all lands, tenements, hereditaments, or heritages, occupied in every parish, distinguishing the proportions in each parish, and estimating separately such as are occupied as owner or tenant, and also such as are held under different landlords, and

also such as are chargeable by reference to the rent or annual value, or on the amount of profits; and also estimating separately the rent or annual value chargeable in respect of the property, and the amount chargeable in respect of the occupation, distinguishing the same as follows:—

- Lands and tenements occupied as owner;
- Lands and tenements let at rackrent within seven years;
- Lands and tenements let at rackrent before the period of seven years, with the rent and annual value thereof estimated separately;
- Lands and tenements let, but not at rackrent, with the rent and annual value thereof estimated separately;
- The amount at which such land and tenements are rated to the poor;
- The amount of any composition, rent, rentcharge, or annual payment paid in the preceding year to the rector or vicar or other person, for tithes of the above lands and tenements;
- The amount of each deduction claimed in respect thereof, and stating if tithe-free, in part or in the whole, and the amount of any modus for tithes or real composition.

II.—By every LAY IMPROPRIATOR, and every ECCLESIASTICAL RECTOR, VICAR, or other PERSON (describing himself) receiving any TITHES in kind, or any PAYMENTS in RIGHT of the CHURCH, or by ENDOWMENT, or in LIEU of any TITHES, or any TEINDS in Scotland, to be charged under Schedule A.

The amount of the profits from tithes taken in kind for one year, on an average of the three preceding years;

The amount of dues and money payable in right of the Church, or by endowment, or in lieu of tithes not arising from lands, on the above average;

The amount of compositions, rents, and payments in lieu of tithes, arising from lands, for the preceding year.

III.—By every PERSON carrying on any concern hereinafter mentioned, or his AGENT or OFFICER, in the cases authorised to be charged under Schedule A.

The amount of profits—

- of quarries of stone, slate, limestone, or chalk in the preceding year;
- of ironworks, gasworks, salt springs or works, alum mines or works, water works, streams of water, canals, inland navigations, docks, drains, levels, fishings, rights of markets and fairs, tolls, railways and other ways, bridges and ferries, and other concerns of a like nature, in the preceding year;
- of mines of coal, tin, lead, copper, mundie, iron, and other mines, on an average of the five preceding years.

IV.—By every LORD of a MANOR or other ROYALTY, or TENANT of the same.

The amount of all dues and other services or other casual profits (except rents and annual payments) of such manors or royalties, on an average of the seven preceding years.

V.—By the RECEIVER of any FINE paid in consideration of a demise of LANDS or TENEMENTS (except customary) to be charged under Schedule A.

The amount of such fines in the preceding year, or for such lesser period since the interest therein commenced, and an estimate of the average value for one year.

VI.—By every PERSON entitled to PROFITS arising from LANDS, TENEMENTS, HEREDITAMENTS or HERITAGES, not before stated, to be charged under Schedule A.

The amount, on a fair average, to be allowed by the respective commissioners

VII.—By or for every PERSON carrying on any TRADE to be charged under Schedule D

The amount of the profits or gains thereof, upon a fair and just average of the three preceding years, or of such shorter period as the trade has been carried on.

VIII.—By every PERSON (other than a Weekly Wage-earner, who is to be assessed and charged quarterly) exercising any PROFESSION, EMPLOYMENT, or VOCATION, to be charged under Schedule D.

The amount of the profits, gains and emoluments thereof, upon a fair and just average of the three preceding years, or of such shorter period as the profession, employment or vocation has been exercised.

IX.—By every PERSON entitled to PROFITS of an UNCERTAIN VALUE not before stated, or any INTEREST, ANNUITY, ANNUAL PAYMENT, DISCOUNT or DIVIDEND, to be charged under Schedule D.

The full amount of the profits or gains arising therefrom within the preceding year.

X.—By every PERSON entitled to or receiving INCOME from SECURITIES out of the United Kingdom to be charged under Schedule D.

(1) The full amount, as far as the same can be computed, arising in the year of assessment, and the amount of every deduction or allowance claimed in respect thereof, together with the particulars of such deduction and the grounds for claiming such allowance; or

(2) In the case of any such person who satisfies the Commissioners of Inland Revenue that he is not domiciled in the United Kingdom or that, being a British subject, he is not ordinarily resident in the United Kingdom, or, in the case of income arising from any such securities as aforesaid which form part of the investments of the foreign life assurance fund of an assurance company, the full amount, so far as the same can be computed, of the sums which have been, or will be, received in the United Kingdom, in the year of assessment, without any deduction or abatement.

XI.—By every PERSON entitled to or receiving INCOME from POSSESSIONS out of the UNITED KINGDOM to be charged under Schedule D.

(1) In the case of income from stocks, shares or rents, save as hereinafter mentioned, the full amount arising therefrom, on an

average of the three preceding years, and the amount of every deduction of allowance claimed in respect thereof, together with the particulars of such deduction and the grounds for claiming such allowance.

(2)—

- (a) In the case of income received from such possessions other than stocks, shares or rents; or
- (b) in the case of income from stocks, shares or rents, where the person entitled to or receiving the same satisfies the Commissioners of Inland Revenue that he is not domiciled in the United Kingdom, or that, being a British subject, he is not ordinarily resident in the United Kingdom, or where such income arises from any such possessions as aforesaid which form part of the foreign life assurance fund of an assurance company;

the full amount of the actual sums annually received in the United Kingdom, either from remittances, or importation of property, or money or value from property not imported, or on credit, or on account, in respect of remittances, property, money or value, on an average of the three preceding years.

XII.—By every PERSON entitled to any ANNUAL PROFITS or GAINS not falling under any of the foregoing Rules, and not charged by any of the other Schedules, to be charged under Schedule D.

The full amount thereof received annually, or according to the average directed to be taken by the commissioners on a statement of the nature of such profits or gains, and the grounds on which the amount has been computed, and the average taken, to the best of the knowledge and belief of such person.

XIII.—DECLARATIONS to be delivered by PARTNERS in respect of the TAX to be charged under Schedule D.

First. Declaration by the precedent acting partner, or by the agent, if none of the partners are resident in the United Kingdom, of the names of the several partners, their respective residences, and the place of carrying on the trade or exercising the profession, and the style or description of the firm.

Second. Declaration by any partner, not being the precedent acting partner, of his being assessed with the firm, describing the same, and the place where the statement of the precedent partner was delivered.

XIV.—STATEMENT of PROFITS of any PUBLIC OFFICE, or EMPLOYMENT of PROFIT, to be charged under Schedule E.

The amount of the salary, fees, wages, perquisites, and profits of the year of assessment or of the preceding year, or on an average of the three preceding years, as the case shall require.

XV.—GENERAL DECLARATION by each PERSON returning a STATEMENT of PROFITS or GAINS to be charged under Schedules A, B, D, or E.

Declaring the truth thereof, and that the same is fully stated on every description of property, or profits or gains, included in the Act

relating to the said tax, and appertaining to such person, estimated to the best of his judgment and belief, according to the provisions of this Act.

XVI.—LISTS and DECLARATIONS for facilitating the EXECUTION of the ACT in RELATION to the TAX chargeable on others.

First. List containing the name of every lodger or inmate resident in any dwelling-house, with the ordinary place of residence of every lodger or inmate who has any ordinary place of residence elsewhere at which he can be, and is desirous of being, assessed.

Second. List containing the name and place of residence of every person in any service or employ, and the payments made to every such person in respect of the service or employment.

Third. List to be delivered by every person chargeable on behalf of another person, and by any person whomsoever who, in whatever capacity, is in receipt of any money or value, or of profits or gains, of or belonging to any other person, describing the person for whom he acts, and stating his name and address, and the amount of such money, value, profits or gains, and declaring whether such person is of full age, or a married woman living with her husband, or a married woman whose husband is not accountable for the payment of any tax charged on her, or is resident in the United Kingdom, or is an incapacitated person. The person delivering such list shall also deliver a list containing the names and addresses of any other person or persons acting jointly with him.

Fourth. Declaration on whom the tax is chargeable in respect of any such money, value, profits or gains.

Fifth. List containing the proper description of every body of persons, or trust, for which any person is answerable under this Act; and where any such person is answerable under this Act for the tax to be charged in respect of the property or profits or gains of other persons, he shall deliver such lists as aforesaid, together with the required statements of such profits or gains.

XVII.—LISTS, DECLARATIONS, and STATEMENTS to be delivered in order to obtain any EXEMPTION, ABATEMENT, or RELIEF, dependent upon the TOTAL INCOME from all sources of the CLAIMANT.

First. Declaration of the amount of value of property or profits or gains returned, or for which the claimant has been, or is liable to be, assessed.

Second. Declaration of the amount of rents, interests, annuities, or other annual payments, in respect of which the claimant is liable to allow the tax, with the names of the respective persons by whom such payments are to be made, distinguishing the amount of each payment.

Third. Declaration of the amount of interest, annuities, or other annual payments to be made out of the property or profits or gains assessed on the claimant, distinguishing each source.

Fourth. Statement of the amount of income derived according to the three preceding declarations.

Fifth. Statement of any tax which the claimant may be entitled to deduct, retain or charge against any other person.

SIXTH SCHEDULE.

FORMS.

Section 215
(1).

[NOTE.—These forms may be varied or other forms prescribed by the Commissioners of Inland Revenue as circumstances require.]

1.—ASSESSORS' CERTIFICATE OF ASSESSMENTS.
Schedules A and B.

County of _____, division of _____.

Assessments of income tax under Schedules A and B made upon the several persons chargeable with the said tax within the* of _____ in the said division, for the year ending the 5th day of April 19 _____, duly certified upon [_____]† by the assessors, and signed and allowed by the commissioners whose names are signed at the end hereof.

[Here follow particulars of assessment in such tabular form as the Commissioners of Inland Revenue prescribe.]

We, the undersigned assessors of income tax for the* of _____ aforesaid, for the year ending the 5th day of April 19 _____, do hereby certify the foregoing assessments under Schedules A and B for the _____ aforesaid, and we do make [_____]† and declare that in the foregoing assessments we have assessed ourselves and all other persons who are chargeable with the said tax within the said _____, and that we have made our said assessments conformably to the provisions of the laws now in force according to the best of our knowledge and belief.

As witness our hands this _____ day of _____ 19 _____.

} Assessors.

NOTE.—This certificate must be signed by each assessor.

We, the undersigned General Commissioners of Income Tax, acting in and for the division of _____ aforesaid, do hereby sign and allow the foregoing assessments, the same having been duly verified before us by the above-named assessors.

Given under our hands and seals this _____ day of _____ 19 _____.

} General
Commissioners of
Income Tax.

* NOTE.—Where parishes have been united for tax purposes, all the names should be inserted and described as the "united parishes of."

† Oath or affirmation, as the case may be.

2.—ADDITIONAL COMMISSIONERS' CERTIFICATE OF FIRST ASSESSMENTS.

SCHEDULE D.

County of _____, division of _____.

Assessments of income tax, under Schedule D, made upon the several persons chargeable with the said tax within the*
of _____, in the said division, for the year
ending the 5th day of April 19____, by the Commissioners whose names
are signed at the end hereof.

[Here follow particulars of assessment in such tabular form as the Commissioners of Inland Revenue prescribe.]

We, the undersigned Additional Commissioners of Income Tax acting in and for the division of _____ aforesaid, do hereby certify the foregoing first assessments under Schedule D for the*
of _____ aforesaid, amounting to the
sum of _____.

Given under our hands and seals this _____ day
of _____ 19____.

} Additional
Commissioners of
Income Tax.

The foregoing certificate of assessments having been presented to us, the undersigned General Commissioners of Income Tax, acting in and for the division of _____ aforesaid, and the time for hearing appeals against such assessments having expired, we do hereby allow and confirm the said assessments.

Given under our hands and seals this _____ day
of _____ 19____.

} General
Commissioners of
Income Tax.

3.—ASSESSORS' CERTIFICATE OF RE-ASSESSMENT.

SCHEDULES A AND B.

County of _____, division of _____.

A re-assessment of income tax under Schedules A and B, made upon the several persons chargeable with the said tax within the
of _____ in the said division, for raising
the sum of _____, being the amount of an arrear of
the said tax which has arisen within the said _____ for the
year ending the 5th day of April 19____, by the default of _____,
collector of the said tax for the said _____, for the said year,
duly verified upon †[_____] by the assessors, and allowed by
the General Commissioners of Income Tax acting for the said division,
whose names are signed at the end hereof.

[Here follow particulars of re-assessment in such tabular form as the Commissioners of Inland Revenue prescribe.]

* NOTE.—Where parishes have been united for tax purposes, all the names should be inserted and described as the “united parishes of.”

† Oath or affirmation, as the case may be.

We, the undersigned assessors of income tax, do hereby certify the foregoing re-assessment under Schedules A and B, and do make *], and declare that we have assessed ourselves and all other persons who are chargeable with the said re-assessment, and that we have made our re-assessment conformably to the provisions of the laws now in force, according to the best of our knowledge and belief.

Witness our hands this day of 19 .

} Assessors.

We, the undersigned General Commissioners of Income Tax, acting in and for the division of _____ aforesaid, do hereby sign and allow the foregoing re-assessment under Schedules A and B, amounting to the sum of _____, the same having been duly verified before us by the above-named assessors.

Given under our hands and seals this day
of 19 .

} General
Commissioners of
Income Tax.

4.—ADDITIONAL COMMISSIONERS' CERTIFICATE OF RE-ASSESSMENT.
SCHEDULE D.

County of _____, division of _____

A re-assessment of income tax under Schedule D, made upon the several persons chargeable, with the said tax within the _____ of _____ in the said division, for raising the sum of _____, being the amount of an arrear of the said tax which has arisen within the said _____ for the year ending the 5th day of April 19____, by the default of _____, collector of the said tax for the said _____, for the said year.

[Here follow particulars of re-assessment in such tabular form as the Commissioners of Inland Revenue prescribe.]

We, the undersigned Additional Commissioners of Income Tax, acting in and for the division of _____ aforesaid, do hereby certify the foregoing re-assessment under Schedule D.

Given under our hands and seals this _____ day
' of _____ 19__.

Additional
Commissioners of
Income Tax.

We, the undersigned General Commissioners of Income Tax, acting in and for the division of aforesaid, do hereby allow and confirm the foregoing re-assessment under Schedule D, amounting to the sum of _____, the time for hearing appeals against the same having expired.

Given under our hands and seals this _____ day
of _____ 19__.

General
Commissioners of
Income Tax.

* Oath or affirmation, as the case may be.

5.—COLLECTORS' DUPLICATE OF [*first, additional first, or supplementary, as the case may require*] ASSESSMENTS.

County of _____, division of _____

A duplicate of the assessments of income tax under Schedules A and B [*or D and E as the case may require*], made upon the several persons chargeable with the said tax within the* of _____ in the said division, for the year ending the 5th day of April 19 ____.

[*Here follow particulars of assessment in such tabular form as the Commissioners of Inland Revenue prescribe.*]

We, the undersigned General Commissioners of Income Tax, acting in and for the division of _____ aforesaid, do hereby sign and allow the foregoing duplicate of the assessments under Schedules A and B [*or D and E as the case may require*], amounting in the whole to the sum of _____.

Given under our hands and seals this _____ day of _____ 19 ____.

} General
Commissioners of
Income Tax.

6.—COLLECTORS' WARRANT.†

To _____ and _____ of _____ in the
division of _____ in the county of _____.

Whereas you, the above-named _____ and _____, have been duly appointed by the General Commissioners of Income Tax acting in and for the division aforesaid, in the county aforesaid, collectors of income tax for the* of _____ in the said division, for the year ending the 5th day of April 19 ____:

And whereas, by virtue and in pursuance of the powers and authorities of the several Acts in that behalf, we, the said General Commissioners, have signed and allowed the [foregoing] duplicate of the assessments under Schedules A and B [*or D and E as the case may require*], charged upon the several persons mentioned in the [foregoing] duplicate, within the _____ aforesaid, for the year ending the 5th day of April 19 ____:

Now we, the said General Commissioners, do hereby enjoin and require you the above-named collectors, or either of you, to make demand of the several sums contained in the [foregoing] duplicate from the persons charged therewith, or at the places of their last abode, or on the premises charged with the assessment or tax, as the case may require, within the time, and in the manner appointed and directed by the said Acts; and, upon payment thereof, to give receipts under your hands (without taking anything for such receipts) unto the several persons who shall pay the same; and if any person or persons shall neglect or refuse to pay the sum or sums so charged,

* Where parishes have been united for tax purposes all the names should be inserted and described as the "united parishes of."

† This warrant may be printed on the duplicate or be a separate document.

upon demand duly made by you, or either of you, then we do hereby enjoin and strictly require you, or either of you, for non-payment thereof, to distrain for the same according to the directions of the said Acts, by virtue of this our warrant, without further authority.

Given under our hands and seals this _____ day
of _____ 19 ____.

} General
Commissioners of
Income Tax.

7.—CERTIFICATE OF REMOVAL.

To the General Commissioners of Income Tax acting within and
for the division of _____ in the county of _____.

We, the undersigned General Commissioners of Income Tax,
acting in and for the division of _____ in the county of _____,
do hereby certify that in and by the* _____ assessments of income
tax under Schedule _____, for the _____ of _____ in the
said division, for the year ending the 5th day of April 19 _____,
now residing at _____, in the county of _____, has been
duly assessed and charged with the under-mentioned tax (that is
to say) :—

N.B.†	Sched.	Income Tax.			‡
		£	s.	d.	
Name and Address of Collector _____					
Total - - - £					

And we do further certify that the said person has left unpaid
the sum of _____ in respect of the income tax so assessed and
charged as aforesaid, which became due and payable on the
day of _____ 19 _____, and the said sum _____ now in arrear :

And we, the undersigned General Commissioners, do request you,
the said General Commissioners of Income Tax, acting in and for the
division of _____ aforesaid, to raise and levy the said sum of _____
, so assessed and charged upon the said person, and now
in arrear as aforesaid, and to cause the same to be paid and applied
according to the directions of the Acts in that behalf.

Given under our hands and seals this _____ day
of _____ 19 ____.

} General
Commissioners of
Income Tax.

* First, additional first, or supplementary, as the case may be.

† Here specify the particulars of the assessment, viz., the description and amount of property, profits, or sources of income, to which the assessment applies, and whether on own return or estimate. If the arrear is under Schedule A, the name and address of the owner should be stated, and if the assessment is in respect of a house in London or a large town, the certificate should set forth the street and number of the house.

‡ State whether the amount is included in Commissioners' Schedule of Defaulters. If so, quote the consecutive number.

To _____ and _____, collectors of income tax for the _____ of _____, in the division of _____, in the county of _____.

We, the undersigned General Commissioners of Income Tax, acting in and for the division aforesaid, do hereby authorise and require you, the above-named collectors, or either of you, to make due demand of and from _____, the person named in the foregoing certificate, for payment of the sum of _____, in respect of the income tax assessed and charged, as in the said certificate is mentioned, and if he shall neglect or refuse to pay the same upon such demand being made, then we hereby empower and require you, or either of you, to distrain for the same, according to the directions of the Acts in that behalf, by virtue of this our warrant, without further authority; and upon receipt of the said sum of money, or any part thereof, we hereby direct and enjoin you to pay over the same to _____ to the account of the collectors for the _____ of _____, for which this shall be your sufficient authority.

Given under our hands and seals this _____ day
of _____ 19 _____.

} General
Commissioners of
Income Tax.

8.—WARRANT TO BREAK OPEN.

To _____ and _____, collectors of income tax for the _____ of _____, in the division of _____, in the county of _____.

Whereas, in and by the _____ assessments of income tax for the aforesaid _____ for the year ending the 5th day of April 19 _____, of _____ has been duly charged to the said tax in the sum of _____:

And whereas it appears by the oath of _____, collector of income tax appointed for the said _____, taken before us, whose hands and seals are hereunto subscribed and set, being two of the General Commissioners of Income Tax, acting in and for the division aforesaid, that the said sum of _____ has been duly demanded from the said person, and that he has neglected and refused to pay the same, and that the same now remains due and unpaid:

And whereas it further appears, by the oath aforesaid, that divers goods and chattels, liable by law to be distrained for the said tax, are lying and being in certain premises, situate at _____ in the _____ of _____, in the division and county aforesaid, now in the possession of _____:

These are therefore to authorise and require you, the above-named collectors, and either of you, calling to your assistance any constable or other peace officer, and in the presence of the said constable, or other peace officer, to demand entrance into the said premises, and in case of resistance, or neglect or refusal to open the same, to break open, in the daytime, the said premises, and enter the same, and to distrain therein the said goods and chattels, and the distress there

General
Commissioners of
Income Tax.

Now, therefore, we, the said general commissioners, whose hands and seals are hereunto subscribed and set, do hereby command you, the above-named collectors, or either of you, to apprehend the said _____, and to take him to His Majesty's prison at _____, in the said county of _____ and to deliver him to the Governor thereof, together with this warrant; and we do hereby command you, the said Governor, to receive him, the said _____, into your custody in the said prison, there to be kept without bail until payment shall be made, or security to our satisfaction be given for payment, of the said sum of _____ remaining due and unpaid as aforesaid, and also of the further sum _____

of _____, which we, the said general commissioners, do adjudge to be reasonable, for the costs and expenses of apprehending the said _____ and conveying him to prison.

Given under our hands and seals this _____ day
of _____, 19 _____.

} General
Commissioners of
Income Tax.

10.—REVOCATION OF COLLECTOR'S APPOINTMENT.

To _____, of _____, in the
county of _____.

Whereas, by virtue and in pursuance of the powers and authorities of the Acts in that behalf, the General Commissioners of Income Tax, acting in and for the division of _____, did appoint _____ and _____ to be collectors of income tax for the _____ of _____, for the year ending the 5th day of April 19 _____:

And whereas delay or failure has occurred in demanding, receiving, recovering or paying over divers sums of tax or money assessed and charged within the said _____ for the year aforesaid, through the wilful neglect of the said _____:

Now we, the undersigned, two of the said General Commissioners of Income Tax, do, by virtue and in pursuance of the powers and authorities given by the Acts in this behalf, hereby revoke the appointment of the said _____ as such collector as aforesaid; and we do hereby appoint you, the above-named _____, in the place of the said _____, to be collector of the tax and sums of money remaining due and in arrear and uncollected on the duplicates of assessments herewith delivered to you for the said year, with full power to collect all arrears and sums of money which are now due and unreceived. And we do hereby enjoin and require you immediately to make demand of the several sums contained in the said duplicates from the persons charged therewith, or at the places of their last abode, or on the premises charged with the assessment or tax, as the case may require; and, upon payment thereof, to give receipts unto the several persons who shall pay the same; and if any person shall neglect or refuse to pay the sum or sums so charged upon demand duly made by you, then we hereby enjoin and strictly require you, for non-payment thereof, to distrain for the same, according to the directions of the said Acts, by virtue of this our warrant, without further authority.

Given under our hands and seals this _____ day
of _____, 19 _____.

} General
Commissioners of
Income Tax.

11.—WARRANT TO IMPRISON PERSON AND SEIZE ESTATE OF DEFAULTING COLLECTOR.

To _____, constable at _____, in the
county of _____, and to _____, Governor of
His Majesty's Prison at _____, in the said county.

Whereas it appears to us _____ and _____, whose
hands and seals are hereunto subscribed and set, being two of the

General Commissioners of Income Tax, acting in and for the division of _____, in the county of _____, upon the oath of _____ and other sufficient evidence, that _____, of _____, a collector of income tax for the _____ of _____, in the said division, has, as such collector, collected and received, from divers persons within the said _____, the sum of _____, in respect of the said tax, and that the said collector has neglected to pay the said sum of money according to the directions of the Acts in that behalf, and that he has detained, and now detains, the same in his hands :

Now, therefore, we, the said general commissioners whose hands and seals are hereunto subscribed and set, do hereby command you, the above-named constable, to apprehend the said _____, and him safely to convey to His Majesty's prison at _____, in the said county of _____, and to deliver him to the Governor thereof; and we do hereby command you, the said Governor, to receive him, the said _____, into your custody in the said prison, and there to detain and keep him until payment shall be made of the aforesaid sum of money, or until he shall be otherwise discharged by due course of law; and we do hereby further command you, the said constable, to seize and secure the estate, as well freehold as copyhold, and all other estate, both real and personal, of him the said collector, to him belonging, wheresoever the same can be discovered and found; and if the said collector shall not pay or satisfy the said sum of money, as ought to be done according to the directions of the said Acts, you are forthwith to give notice to us, that we may proceed further as the law directs; and for so doing this shall be to you, and each of you, a sufficient warrant and authority.

Given under our hands and seals this _____ day
of _____, 19 _____.

} General
Commissioners of
Income Tax.

12.—NOTICE OF SEIZURE OF COLLECTOR'S ESTATE.

Whereas by a certain warrant, dated the _____ day of 19 _____, under the hands and seals of two of the General Commissioners of Income Tax, acting in and for the division of _____, in the county of _____, reciting that _____ of _____, a collector of income tax for the _____ of _____, in the said division, had, as such collector, collected and received, from divers persons within the said _____, the sum of _____ in respect of the said tax, and that the said collector had neglected to pay the said sum of money according to the directions of the Acts in that behalf, and that he had detained, and did then detain, the same in his hands, the said general commissioners did command constable at _____, to whom the said warrant was directed, to seize and secure the estate, as well freehold as copyhold, and all other estate, both real and personal, of the said collector to him belonging, wheresoever the same could be discovered and found :

And whereas certain estates, goods, and chattels of the said collector have been seized and secured under the said warrant :

require and empower you, the above-named _____, to sell and dispose of the said estates, goods, and chattels, so seized and secured for the cause aforesaid, or any part of them, to satisfy and pay over to the proper officer the aforesaid sum of money so detained by the said collector and remaining unpaid as aforesaid, together with the reasonable costs and charges of recovering, raising, and paying the same, and for your so doing this shall be your sufficient authority.

Given under our hands and seals this _____ day
of _____ 19 _____.

} General
Commissioners of
Income Tax.

14.—CHARGE DUPLICATE OF INCOME TAX.

This duplicate, amounting to _____, contains the full amount of the sums charged in each parish in the division of _____, in the county of _____, by virtue of the Acts relating to income tax, together with the names and surnames of the several assessors and collectors, in the year ending the 5th day of April, 19 _____.

Signed, sealed, and delivered by us, this _____ day
of _____ 19 _____.

} General
Commissioners of
Income Tax.

To the Commissioners of Inland Revenue.

[Here follow particulars in such tabular form as the Commissioners of Inland Revenue prescribe.]

I do hereby certify that I have examined this duplicate thoroughly, and have compared it with the assessments, and that it is a correct duplicate thereof.

Surveyor of Taxes.

Date.

N.B.—This duplicate should be made out within the time appointed by the Income Tax Act, 1918, and should contain the full amount of the sums given in charge for collection, and which remain charged in the assessments after the appeals. All discharges subsequent to that period must be included in the Schedules, under section 175 of the said Act.

15.—SCHEDULE OF DEFAULTERS.

A schedule made in pursuance of the Income Tax Act, 1918, by the General Commissioners of Income Tax acting in and for the division of _____, in the county of _____, containing the names of certain persons charged with income tax and sums of

money in the assessments made within and for the several and respective parishes, herein mentioned, in the said division, for the year ending the 5th day of April 19 , and whose names have been returned to the said general commissioners, by the respective collectors for the said several and respective parishes, as persons who have made default in payment of the tax and sums of money set opposite to their respective names and charged upon them respectively in the said assessments, and from whom the respective collectors have not been able to collect or receive such tax and sums of money for the particular reasons herein mentioned, and which have been duly verified on the [oath or affirmation, *as the case may be*], of the several and respective collectors.

[*Here follow particulars in such tabular form as the Commissioners of Inland Revenue prescribe.*]

Given under our hands and seals this _____ day
of _____, 19 .

} General
Commissioners of
Income Tax.

N.B.—A total of each column to be made for each parish.

16.—SCHEDULE OF DISCHARGES.

A schedule containing the sums discharged from the assessments of income tax for the under-mentioned parishes in the division of _____, in the county of _____, for the year ending the 5th day of April 19 , pursuant to the Acts in that behalf.

[*Here follow particulars in such tabular form as the Commissioners of Inland Revenue prescribe.*]

We, the undersigned General Commissioners of Income Tax, acting in and for the said division of _____, in the said county, do hereby certify that the above-mentioned sums, amounting to _____, have been discharged from the respective assessments for the said parishes in due course of law.

Witness our hands and seals this _____ day
of _____, 19 .

} General
Commissioners of
Income Tax.

SEVENTH SCHEDULE.

Section 238.

ENACTMENTS REPEALED.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
5 & 6 Vict. c. 35.	The Income Tax Act, 1842.	The whole Act.
5 & 6 Vict. c. 37.	The Land Tax Act, 1842	Sections three, four and five, so far as they relate to income tax.
5 & 6 Vict. c. 80.	The Income Tax (Foreign Dividends) Act, 1842.	The whole Act.
16 & 17 Vict. c. 34.	The Income Tax Act, 1853.	The whole Act.
16 & 17 Vict. c. 91.	The Income Tax (Insurance) Act, 1853.	The whole Act.
17 & 18 Vict. c. 24.	The Income Tax Act, 1854.	The whole Act.
18 & 19 Vict. c. 35.	The Income Tax (Insurance) Act, 1855.	The whole Act.
19 & 20 Vict. c. 80.	The Taxes Act, 1856	The whole Act.
22 & 23 Vict. c. 18.	The Income Tax Act, 1859.	The whole Act.
23 & 24 Vict. c. 14.	The Income Tax Act, 1860.	The whole Act.
24 & 25 Vict. c. 91.	The Revenue (No. 2) Act, 1861.	Section thirty-six.
26 & 27 Vict. c. 33.	The Revenue Act, 1863 -	Section twenty-two.
27 & 28 Vict. c. 18.	The Revenue (No. 1) Act, 1864.	Section fifteen.
29 & 30 Vict. c. 36.	The Revenue Act, 1866 -	The whole Act.

Session and Chapter.	Title or Short Title	Extent of Repeal.
31 & 32 Vict. c. 28.	The Revenue Act, 1868 -	The whole Act
35 & 36 Vict. c. 82.	The Income Tax (Public Offices) Act, 1872.	The whole Act.
39 & 40 Vict. c. 16.	The Customs and Inland Revenue Act, 1876.	Section eight.
41 & 42 Vict. c. 15.	The Customs and Inland Revenue Act, 1878.	Section twelve. Section sixteen so far as it relates to income tax.
42 & 43 Vict. c. 21.	The Customs and Inland Revenue Act, 1879.	Section eighteen.
43 & 44 Vict. c. 19.	The Taxes Management Act, 1880.	The whole Act so far as it relates to income tax.
44 & 45 Vict. c. 12.	The Customs and Inland Revenue Act, 1881.	Section twenty-three so far as it relates to income tax.
46 & 47 Vict. c. 55.	The Revenue Act, 1883 -	Section twelve so far as it relates to income tax.
47 & 48 Vict. c. 62.	The Revenue Act, 1884 -	Sections six and seven so far as they relate to income tax.
48 & 49 Vict. c. 51.	The Customs and Inland Revenue Act, 1885.	Sections twenty-five and twenty-six.
50 & 51 Vict. c. 15.	The Customs and Inland Revenue Act, 1887.	Section eighteen.
51 & 52 Vict. c. 8.	The Customs and Inland Revenue Act, 1888.	Section twenty-four.
52 & 53 Vict. c. 42.	The Revenue Act, 1889 -	Sections ten and twelve. Sections thirteen and fourteen so far as they relate to income tax.
53 & 54 Vict. c. 8.	The Customs and Inland Revenue Act, 1890.	Sections twenty-three, twenty-four and thirty. Sections twenty-seven and twenty-eight so far as they relate to income tax.
54 & 55 Vict. c. 13.	The Taxes (Regulation of Remuneration) Act, 1891	The whole Act so far as it relates to income tax.
56 & 57 Vict. c. 2	The Trades Union (Provident Funds) Act, 1893.	The whole Act.
56 & 57 Vict. c. 7.	The Customs and Inland Revenue Act, 1893.	Section seven.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
56 & 57 Vict. c. 39.	The Industrial and Provident Societies Act, 1893.	Section twenty-four.
57 & 58 Vict. c. 30.	The Finance Act, 1894 -	Sections thirty-four, thirty-five and thirty-six.
59 & 60 Vict. c. 28.	The Finance Act, 1896 -	Sections twenty-six, twenty-seven and twenty-eight. Section thirty so far as it relates to income tax.
60 & 61 Vict. c. 24.	The Finance Act, 1897 -	Section five.
61 & 62 Vict. c. 10.	The Finance Act, 1898 -	Sections eight, nine, ten and eleven.
3 Edw. 7. c. 46.	The Revenue Act, 1903 -	Sections ten and thirteen.
4 Edw. 7. c. 7.	The Finance Act, 1904 -	Sections eight and nine.
6 Edw. 7. c. 20.	The Revenue Act, 1906 -	Section eleven.
7 Edw. 7. c. 13.	The Finance Act, 1907 -	Sections nineteen, twenty, twenty-one, twenty-two, twenty-three, subsection (1), twenty-four, twenty-five, twenty-six, twenty-seven, and twenty-eight.
10 Edw. 7. c. 8.	The Finance (1909-10) Act, 1910.	Sections sixty-six, sixty-seven, sixty-eight, sixty-nine, seventy, seventy-one, and seventy-two.
1 Geo. 5. c. 2.	The Revenue Act, 1911 -	Sections twelve, thirteen and fourteen.
2 & 3 Geo. 5. c. 8.	The Finance Act, 1912 -	Sections six and seven.
3 & 4 Geo. 5. c. 30.	The Finance Act, 1913 -	Section three.
4 & 5 Geo. 5. c. 10.	The Finance Act, 1914 -	Sections three, four, five, seven, eight, nine, ten and eleven.
5 Geo. 5. c. 7.	The Finance Act, 1914 (Session 2).	Section thirteen.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
5 & 6 Geo. 5. c. 62.	The Finance Act, 1915 -	Sections eleven, twelve, thirteen, fourteen, fifteen, sixteen, seventeen, eighteen, nineteen, twenty, twenty-one, twenty-two, twenty-three and twenty-eight, subsection (1).
5 & 6 Geo. 5. c. 89.	The Finance (No. 2) Act, 1915.	Section twenty-one except subsection (5). Sections twenty-two, twenty-three, twenty-four, twenty-five, twenty-six, twenty-seven, twenty-eight, twenty-nine, thirty, thirty-one, thirty-two, thirty-three, thirty-four, thirty-five, thirty-six, and thirty-seven.
5 & 6 Geo. 5. c. 93.	The War Loan (Supplemental Provisions) Act, 1915.	Section three.
6 & 7 Geo. 5. c. 24.	The Finance Act, 1916 -	Sections twenty-five, twenty-six, twenty-seven, twenty-eight, twenty-nine, thirty, thirty-one, thirty-two, thirty-three, thirty-four, thirty-five, thirty-six, thirty-seven, thirty-eight, thirty-nine, forty, forty-two, forty-three, forty-four, except subsection (1), fifty-three and sixty-four.
7 & 8 Geo. 5. c. 31.	The Finance Act, 1917 -	Sections eleven, twelve, thirteen, fourteen, fifteen, sixteen, seventeen, eighteen and nineteen.
8 & 9 Geo. 5. c. 15	The Finance Act, 1918 -	Subsection (2) of section eighteen; sections twenty-one, twenty-three, twenty-four, twenty-five, twenty-six, twenty-seven, twenty-eight, twenty-nine, thirty, thirty-one, and thirty-two, thirty-three so far as it relates to income tax, and forty; and in section forty-one the words from "and section forty-two" to "that section."